

CITATION: M.N. v. J.D.R., 2026 ONSC 870

COURT FILE NO.: FC-23-662

DATE: 20260212

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:	)	
	)	
M.N.	)	Michael Tweyman, for the Applicant
	)	("Wife")
	)	
	)	
– and –	)	
	)	
J.D.R.	)	Johnathan D. Pecchia, for the Respondent
	)	("Husband")
	)	
	)	
	)	
	)	
	)	
	)	HEARD: November 17, 18, 19, 20, 21, 24, 25, 26 and 27, 2025

JUSTICE ALEX FINLAYSON

PART I: OVERVIEW

[1] This is my Judgment following a family law trial about equalization, spousal support and certain tort claims, heard over the course of several days in November 2025. There were no children of this relationship; parenting and child support were not in issue.

[2] The net family property and equalization issues were minor compared to the amount of trial time taken for the other issues for trial. Mid-trial, the parties agreed on the value of the husband’s business interests, and certain other net family property items. Those which remained in dispute mostly concerned whether the wife was entitled to exclude certain assets, and whether certain assets of the husband’s already formed part of his agreed upon businesses’ values.

[3] In her proposed draft Order and net family property statement submitted at the end of the trial, the wife says that the husband owes her an equalization payment of \$20,899.22. The husband's divergent position is that the wife owes him an equalization payment of \$251,224.56. Neither is accurate. The amounts each claimed to be owing to her and him were premised on the Court making findings of fact that this Court is not prepared to make on this record. The end result is that the wife owes the husband a small equalization payment of \$973.70: see the Court's equalization calculation at **Schedule "A"** attached to this Judgment. This small amount will be set-off against the post-separation adjustments that I find the husband owes the wife.

[4] Regarding spousal support, a number of constituent issues within the wife's spousal support claim were either not in dispute at all, or not seriously in contention, specifically:

- (a) The parties were married on June 11, 2017;
- (b) They did not have children;
- (c) They separated on October 13, 2022;
- (d) Although the wife framed her entitlement to support as a hybrid of both compensatory and non-compensatory, it was predominantly (if not entirely) a non-compensatory, needs'-based claim; and
- (e) On November 3, 2023, Daurio J. made a temporary support Order at a case conference, requiring the husband to pay the wife \$2,800.00 per month commencing November 1, 2023, pending a spousal support motion that was never brought. The husband came into this trial in non-compliance with that Order, despite his attempt to argue that Daurio J. ordered too much support and so in reality he was not in breach.

[5] The most significant, contested factual issue within the wife's spousal support claim, was the length of the relationship prior to the marriage, to be used in the analysis. The parties' positions were quite divergent on this, with a decade long gap between them. Both sides were well aware, that the Court's finding about the length of the relationship, would have a material impact on both the quantum and duration of spousal support that the *Spousal Support Advisory Guidelines* ("SSAG") calculations produce, given the manner in which the "Without Child Support Formula" operates.

[6] The wife's position was that the relationship's total length was 20 years, and 10 months. She says that the parties began cohabiting sixteen years prior to their marriage, on December 7, 2001, and that this continued until their October 13, 2022 separation. While the husband prior to trial took different positions about the date of cohabitation, in paragraph 21 of his Opening Statement, he framed the "actual cumulative" length of this relationship as an 8 ½ year one. He says they began cohabiting on November 7, 2011, although there "were periods [after that] in which the parties separated and lived apart before the eventual marriage". His end of trial DivorceMate calculations then used 11 years. For the most part in his closing submissions, the husband maintained a November 7, 2011 date of cohabitation, with an 8 month separation between the spring of 2016 and early 2017. He still minimized the spousal nature of the relationship somewhat after November 7, 2011 though.

[7] I agree with the wife, that the Court need not engage in a microscopic examination of this relationship and make findings for "every second of time". Somewhat ironically though, this submission stands in some contrast alongside the manner in which both sides proceeded during the trial. They both called the very minute evidence about their pre-marital cohabitation that the wife submitted the Court need not be overly focused upon.

[8] There are issues with both parties' credibility here, and thus their reliability when it comes to this determination about the total length of the relationship. Regardless of whether the situation is viewed minutely or more holistically, I am not able to adopt the wife's position as to a 2001 date of cohabitation. The situation before 2011 was chaotic. Certainly the parties spent periods of time together, but by most accounts the relationship was unstable.

[9] By contrast, although there was still chaos, after 2011, the nature of the relationship changed. The wife began to be identified on documents associated with the parties' residences. The parties got engaged, and later married. The financial arrangements changed; the husband made provision for the wife's support. So too, did others' impressions of the nature of the couple's relationship change.

[10] Therefore, for these reasons and others to follow, I accept a November 7, 2011 date of cohabitation. I also accept that there was an eight-month period of separation, between June 2016 and January 2017. When that is taken into account, the "actual cumulative" length of the relationship was 10 years and 4 months.

[11] The parties were quite far apart in their positions about quantum and duration of spousal support by the end of the trial, in part due to these differing positions on the length of the relationship. In her end of trial proposed draft Order the wife asks the Court to order retroactive spousal support, net of tax, in the amount of \$82,064.00 for the period November 1, 2022 to December 31, 2024, and prospective spousal support of \$5,775.00 per month commencing January 1, 2025.¹ To arrive at these calculations, the wife used the high range of the SSAGs, without her having any income, and with the husband having annual incomes of \$178,000.00 for prior periods, and \$165,000.00 going forward after January 1, 2025. The income figures for the husband were based on a mid-trial agreement that the parties reached. The wife asked that the Court index the prospective spousal support payments annually, commencing September 1, 2026.

[12] Also based on their mid-trial agreement, the wife's end of trial proposed draft Order says that either party may seek to review the husband's income commencing January 1, 2028, but only to determine whether the annual income of \$165,000.00 remains the proper income for support purposes. She otherwise seeks indefinite support.

[13] The husband takes the position that the Court should find that no arrears of spousal support are owing, because the amount that he paid prior to trial under Daurio J.'s Order was too high to begin with. He wants the Court to order a lower amount of spousal support retroactively, and to credit him with \$73,950.00, being the payments he says he made to the wife already. He even says there may be a left-over credit to apply against any prospective Order too, when this exercise is all said and done. The husband otherwise proposes that the Court order him to pay the wife \$1,719.00 per month commencing November 1, 2025. His end of trial draft Order states that this sum is the "mid-point between the low and mid-range" of the SSAGs, based on the husband's income of \$165,000.00, and an imputed income of \$40,000.00 to the wife.

[14] The husband's end of trial draft Order proposes that spousal support end on December 1, 2028. This is 11 months after the income review that he is entitled to, pursuant to the mid-trial agreement. Were I to adopt his position about duration and order a termination in about three years, there would be a review of the husband's income only, on consent, in early 2028, two years

¹ In fact, the wife's end of trial draft Order calculated all support owing to the end of December 31, 2025 under this proposal, to be \$124,368.63 (less any payments made between the end of the trial and the end of 2025), although some of that amount would be tax deductible and some would not be.

or so from now, followed by a termination shortly thereafter. The husband's counsel submitted in the alternative, that were the Court to order an additional review of the wife's circumstances instead of a termination, it should still be in three years (i.e. still shortly after the first income review).

[15] Notwithstanding the husband's arguments that the wife has worked in the past and that she has the capacity to contribute to her own support, the wife has some long-standing mental health troubles. I would neither impute \$40,000.00 to her as argued for by the husband, nor would I use a 0 income for her, as argued for by the wife. The record at this trial did not support either position. I intend to include some income to the wife in the Court's SSAG calculations based on the interest and other investment income that she has been able to earn, and some imputed income based upon the small amounts of revenue she has been able to generate from doing some online internet sales in the last few years. While I would not go further with imputing right now, the wife needs to develop a better plan; she did not prove that she is permanently disabled or permanently unemployable.

[16] Applying the statutory factors and objectives in section 15.2 of the *Divorce Act, R.S.C. 1985, c. 3 (2nd Supp.) as amended*, I have determined that spousal support should be front end loaded. The wife needs more support now so she can have a more reasonable budget, and develop a plan, including a health care plan, to better her health and work towards her self-sufficiency. I find the husband shall pay spousal support to the wife in the amount of \$4,000.00 per month on a go forward basis. That quantum I am selecting on its face exceeds the SSAG ranges, but when adjusted back down into the ranges and for duration, that is not necessarily so. A further explanation for why I say this, along with some calculations, follow later.

[17] In my view, the husband's position about duration makes little sense and is counterproductive to the wife developing a plan and being able to make efforts to become self-sufficient. I am not prepared to order a termination 11 months after his income review. But I do not order indefinite support either as the wife asked. I find there should be a proper review of the wife's circumstances, given the existing uncertainties. Only because the parties settled the determination of the husband's income mid-trial with the ability to review it in early 2028, I will give effect to that, which unfortunately means that there will be more than one review. That is not something that I would have ordered, but for the settlement. To be clear, any review in early 2028 should the parties actually embark upon it, shall be limited to that to which the parties agreed (i.e. the husband's income). It should not be used as an opportunity by either to attempt to engage in a wholesale revisitation of the principles upon which the support Order now being made, was based.

The proper review of the wife's circumstances will occur four years from now. The reason I have selected four years, is further explained later on.

[18] The parties' competing positions on retroactivity are disposed of below. I decline to make any further upwards or downwards order for spousal support for a prior period, whether for periods that precede Daurio J.'s temporary without prejudice Order, or to the quantum during the prior periods that it covered. The wife asked for, and will receive post-separation adjustments for rent. The quantum in Daurio J.'s temporary without prejudice Order was otherwise very much in the range of acceptable outcomes for spousal support, according to the Court's end of trial SSAG calculations. The husband has obligations to his other family. The front end loaded support that I intend to order on a go forward basis, for the next four years until the review, combined with what the husband has already paid or still owes (but is still obliged to pay) under Daurio J.'s Order, effectively falls within the total durational range that the Court's SSAG calculations produce.

[19] Finally, the wife claims damages for three intentional torts in the amount of \$125,000.00. Her claim for damages was initially plead based on the "tort of family violence". The Ontario Court of Appeal later found that this tort does not exist in *Ahluwalia v. Ahluwalia*, 2023 ONCA 476. At trial, the wife reframed her claim for damages as arising from the torts of assault, battery and intentional infliction of emotional distress instead. The husband did not object to what was in effect a request to amend at trial. The wife chose to proceed in this fashion, knowing that an appeal to the Supreme Court of Canada of *Ahluwalia v. Ahluwalia*, 2023 ONCA 476 had been taken, and the Supreme Court's decision is under reserve. The wife did not seek an adjournment. I will therefore deal with the claims as they were pursued, namely the torts of assault, battery and intentional infliction of emotional distress.

[20] The disposal of this aspect of the litigation largely turns on an assessment of the evidence called, then considered in the applicable legal frameworks. For the reasons that follow, I find that the wife has not discharged her onus to prove these torts on a balance of probabilities. The wife's claim for damages shall be dismissed.

PART II: ADDITIONAL BACKGROUND AND CONTEXT

A. The Wife

[21] The wife was 42 years old at the time of trial. She did not pursue post-secondary education after high school. She testified that she never worked in a full-time capacity. It was common ground that she had a troubled and dysfunctional relationship with her mother, now deceased. This

troubled history with her family of origin has some relevance to the disputed equalization of net family property, spousal support and tort claims, discussed in some further detail later on.

[22] In her trial affidavit sworn November 4, 2025 (the wife's "trial affidavit"), the wife alleges her lack of work history is on account of "ongoing and significant mental health challenges". She says that there has been "lasting psychological impact" from the abuse she experienced during and after this relationship, too.

[23] The husband's counsel's cross-examination about the wife's work history revealed that any work that she did in the past, such as at a summer camp, as a receptionist at a gym, selling spa packages, or to help her father at his place of employment, was many years ago, and it was temporary or transitory. I was not given much indication of the amount of money she would have earned doing any of this work. Probably whatever she did would have been *de minimus*, and again this work history was dated anyway.

[24] The wife has not reported any significant earnings to the Canada Revenue Agency over the course of the last decade. The wife was in receipt of OSDP for many years, until 2019. Where the wife has reported some other income in more recent times, it appears that was done, in coordination with the husband, to entitle her to be eligible other forms of government assistance, such as CERB and then CRB Benefits during the Covid-19 pandemic, and then Employment Insurance. The wife's highest level of income reported to the Canada Revenue Agency in the last decade was \$39,663.00 in 2024. The vast majority of that year's income was spousal support paid after Daurio J. made the temporary without prejudice Order dated November 3, 2023.

B. The Husband

[25] The husband is 43 years old. He admits that he was the primary earner during the relationship, although he claimed to have encouraged the wife to work.

[26] The husband also has a troubled history. He had learning difficulties when he was younger in school. He says he did not finish his high school education on time, later to pursue a GED. He testified that after not initially finishing high school, he had various odd jobs, such as working in grocery stores.

[27] In his trial affidavit sworn November 13, 2025 (the husband's "trial affidavit"), the husband says that he was "addicted to drugs" between 2001 and 2004. It is common ground that the husband dealt with addiction for a few years, during the decade in dispute about whether the two

were cohabiting. I also heard some evidence from both, that the husband dealt drugs to earn some money and to support his habit.

[28] The husband was in receipt of Ontario Works in the first part of the 2000s. He then started to obtain financial and counselling support from Jewish Child and Family Services (“JF&CS”) in about April of 2005. That enabled him to turn his life around.

[29] In this trial affidavit, the husband says that he started working for a car parts company at the end of 2006 doing deliveries. He described this job as a “full-time minimum wage job”. The financial assistance from JF&CS then ended.

[30] Since about 2008, the husband works in the construction industry. At first, he did sales. The husband says in his trial affidavit, that he earned around \$50,000.00 to \$60,000.00. He characterized this as “the most money that he had ever made” by that point. This stands in stark contrast to the exaggerated claims that the wife made about the parties’ lifestyle during this trial. While it is true that the husband now makes more, those increased earnings would come later.

[31] In 2012, the husband started a construction company. His first business venture involved assembling the products that he was previously selling. He says that he lost money in the first three years, and he sustained his lifestyle by not paying HST and income tax on the company’s revenue.

[32] In his trial affidavit, the husband says “at the moment, [N.B.C.] is the company which I operate on a day-to-day basis, which specializes in prefabricated building garages and workshops.” However, his Financial Statement sworn eighteen days earlier on October 27, 2025, indicates that he owned different businesses over the years, but his current, operational business appears to be a 1/3 interest in a different company named I.C.R. That is a roofing business. It is said to have “significant debt”. The husband’s Financial Statement says that the husband owns a 1/3 interest in N.B.C., but it is apparently “no longer active as of 2024”. The husband reported annual income of \$80,568.00 plus an additional \$12,500.00 in benefits paid for on his behalf by his company, on his Financial Statement sworn October 27, 2025. That was significantly less than what I understood the husband’s valuator had attributed to him, which then formed the basis of the parties’ mid-trial agreement as to the husband’s income.

[33] The above inconsistencies were not explored during this trial. The husband raised a complaint during this trial about not wanting to call his valuator to testify, because of the cost associated with that. I ruled that it was his responsibility to call the valuator (as Daurio J. before

me had also ruled), but he never then did call the valuator. On the second day of trial, the parties agreed to the following for the purposes of calculating the husband's net family property:

- (a) The value of three of the husband's five companies listed on his Financial Statement had no value on the valuation date;²
- (b) The husband had as an asset worth \$40,560.00 on the valuation date, money owing to him from one of the companies;
- (c) The husband had a personal loan on the valuation date of \$47,322.00 owing to one of the companies; and
- (d) There was no corresponding date of marriage asset or liability pertaining to the three companies, or money owing to the husband, or a corresponding personal loan.³

[34] On the third day of trial, the parties entered into a Statement of Agreed Facts, agreeing that the husband's income was \$178,000.00 for the years 2022 to 2024.⁴ The Statement of Agreed Facts states that if a support Order was made (after trial), then commencing January 1, 2025, his income to use in the analysis would be \$165,000.00. The parties further agreed in their Statement of Agreed Facts, that either could request to review the husband's income commencing January 1, 2028, to determine whether \$165,000.00 remains the proper income for support purposes. Finally, there are also various other agreed upon facts about each parties' net family properties in the settlement, that narrow down the disputed terrain that the Court has to decide in order to calculate the equalization payment owing. As a result of these various agreements, a decision was made not to call the valuator to testify.

² No evidence was called about the value (or lack thereof), of the other two listed companies. Notably though, one of the remaining two companies is identified as a holding company that holds the shares of one of the three companies, agreed to have no value.

³ Similarly there was no evidence called about the value of the other listed companies on the date of marriage.

⁴ Although the Statement of Agreed Facts does not say this, the husband in his trial affidavit says this is a three-year average of the incomes the valuator determined for those years. The husband also testified that the valuator had grossed up certain amounts, to arrive at the incomes.

[35] Healthwise, the husband had a stroke in 2000. Whereas before, the husband says that he was smoking and overweight, he altered his lifestyle after this. At times, the wife attributed the husband's mistreatment of her to his stroke, such as when she said in writing that he mistreated her after the stroke, but not before. At other times, the wife claimed the husband's mistreatment of her was prevalent throughout. The husband claimed that the wife mocked and berated him, after he had the stroke. I will have more to say about these competing assertions when analyzing the wife's tort claims, later on.

[36] The husband now has a new family since the separation. He told the Court some, but guarded information this new relationship. This includes that his spouse has a child from a prior relationship and they now have a new child together. The limited information he divulged was a choice he made. The husband's choice to divulge little information about the financial arrangements in his new relationship, or the financial consequences of the relationship, has limited the extent to which I can take into account second family considerations in the support analysis.

PART III: CREDIBILITY AND RELIABILITY

[37] At ¶ 36 of *Re Novak Estate, 2008 NSSC 283*, the Court wrote that there are many tools for assessing credibility, namely:

- (a) the ability to consider inconsistencies and weaknesses in the witness's evidence, which includes internal inconsistencies, prior inconsistent statements, inconsistencies between the witness' testimony and the testimony of other witnesses;
- (b) the ability to review independent evidence that confirms or contradicts the witness' testimony;
- (c) the ability to assess whether the witness' testimony is plausible or, as stated by the British Columbia Court of Appeal in *Faryna v. Chorny, 1951 CarswellBC 133*, it is "in harmony with the preponderance of probabilities which a practical [and] informed person would readily recognize as reasonable in that place and in those conditions", but in doing so I am required not to rely on false or frail assumptions about human behavior;
- (d) It is possible to rely upon the demeanor of the witness, including their sincerity and use of language, but it should be done with caution (*R. v. Mah, 2002 NSCA 99* ¶ 70-75); and

(e) Special consideration must be given to the testimony of witnesses who are parties to proceedings; it is important to consider the motive that witnesses may have to fabricate evidence (*R. v. J.H.*, 2005 CanLII 253 (ON CA) ¶ 51-56).

[38] See also *Christakos v. De Caires*, 2016 ONSC 702 (S.C.J.) ¶ 10, in which Nicholson J. of this Court, adopted and applied these principles.

[39] At ¶ 41 of *R. v. H.C.*, 2009 ONCA 56, Watt J.A. wrote:

Credibility and reliability are different. Credibility has to do with a witness' veracity, reliability with the accuracy of the witness' testimony. Accuracy engages consideration of the witness' ability to accurately observe, recall and recount events in issue. Any witness whose evidence on an issue is not credible cannot give reliable evidence on the same point. Credibility on the other hand, is not a proxy for reliability: a credible witness may give unreliable evidence.

[40] Some cases in a separate stand-alone section of the Judgment, explain why the Court prefers one person's evidence over the other's, overall, on a credibility or reliability analysis. I would not do so in this case. There are issues with the credibility and reliability of aspects of both parties' evidence about most of the issues in this case, the spousal support and the tort claims in particular. Both parties have exaggerated at times. Both parties have at times tailored the evidence to fit her and his narratives and to support his and her claims.

[41] But as the Court also wrote at ¶ 37 of *Re Novak Estate*, "[t]here is no principle of law that requires a trier of fact to believe or disbelieve a witness' testimony in its entirety. On the contrary, a trier may believe none, part or all of a witness' evidence, and may attach different weight to different parts of a witness' evidence. (see *R. v. D.R.*, [1996 2 SCR 291 at ¶ 93 and *R. v. J.H. supra*)."

[42] I intend to deal with the parties' credibility and reliability on a topic by topic basis, as I analyze the issues. For now at the outset I provide in a list, a foreshadow summary of the areas in which I have found each side to have given incredible and therefore unreliable evidence. The lists covers a wide gamut of areas, such that I have searched for confirmatory, objective evidence to aid me in making findings of fact on important points of substance. The lists are:

The Wife

- (a) The wife misrepresented her residence and spousal status to ODSP, and to the Canada Revenue Agency. After she stopped receiving ODSP, she likely engaged in coordinated income tax filings (with the husband) to obtain other government benefits, first during the Covid-19 pandemic, and then she collected employment insurance once the pandemic ended;
- (b) Making false reports to the Canada Revenue Agency (or to ODSP), or not paying taxes that are actually owing adversely impacts a person's credibility: see *Fleury v. Budd*, 2025 BCSC 2035 ¶ 73, 75. To be clear, as indicated below in the husband's list too, both parties engaged in this behaviour;
- (c) The wife tailored her evidence about the length of the relationship, knowing the impact of a finding of a longer period of cohabitation would have on the SSAG calculations. This included her testimony about 24 Cavotti Crescent, her use of parking tickets and her use of a pharmacy record to suggest a longer period of cohabitation, and her refusal to make a reasonable concession when testifying about leases and utility bills, all discussed further below;
- (d) The wife exaggerated the parties' lifestyle, in her pursuit of a greater amount of spousal support;
- (e) The wife alleged some kinds of abuse that she did not prove at all;
- (f) The wife exaggerated her post-separation hardship, somewhat. She overstated the extent to which the husband did not make provision for her support after the separation. In tandem, she misrepresented that funds, which were gifted to her, or inherited, were in fact locked-in to an investment, thereby exacerbating her hardship. The funds were not locked-in. The wife didn't need to make these exaggerated claims, to make her case;
- (g) The wife misrepresented the reason she took out a line of credit post-separation. While she claimed it was to meet her needs, in reality, she purchased a new car, that she then said she couldn't afford to drive. Her evidence in this regard didn't make sense;
- (h) The wife made inconsistent statements to others about abuse she says she endured in the relationship. She didn't call certain evidence that she said exists;

- (i) The wife claimed to have “psychosis” to explain away some of her own highly inappropriate behaviour in this relationship. The wife’s medical evidence did not establish that she suffered from “psychosis”;

The Husband

- (j) The husband underreported his income to the Canada Revenue Agency. He then consented to higher income in this case, based on his valuator’s analysis;
- (k) The husband was incredible in his assertion that he did not know about the wife’s receipt of ODSP until after the marriage. In my view, the husband was likely complicit with the wife in his tax filings to enable the wife’s continued collection of ODSP, followed by other government benefits;
- (l) The husband tailored his evidence about the length of the relationship too, knowing the impact of a finding of a shorter period of cohabitation on the SSAG calculations. Although at trial he conceded a 2011 date of cohabitation, earlier in the lifespan of this case he claimed they only cohabited later, and when he was confronted with this at trial, he tried to attribute such statements to a typographical error or his lawyer’s error. This was incredible and unnecessary, particularly when viewed alongside his trial concession as to a November 7, 2011 date of cohabitation. He would have had more credibility in the eyes of the Court had he just admitted the real reason why he said what he said about the length of the relationship before;
- (m) Similarly, the husband misrepresented that he did not have contact with the wife between August 2007 and November 2009, after he was criminally charged. He did not need to do this, in light of the weight of the evidence that the parties were not cohabiting prior to 2011. But he did have contact with her, and his contact with her was very likely a breach of his release terms;
- (n) Similarly, the husband was not truthful when he claimed that the wife didn’t have a key to his earlier residences (prior to 2011) either. She had a key at least in respect of a residence he occupied in 2010. When confronted with a police record to that effect, the husband made up an incredible story on the spot, claiming the key must have just been given to her that morning; and

- (o) The husband unnecessarily sought to minimize the spousal nature of this relationship after 2011 for some reason, despite the position he decided to take at trial that cohabitation started on November 7, 2011.

[43] Before departing from this overview summary about both sides' credibility and reliability, I wish to comment briefly and also in an overviewing way, about the police records that were introduced in this case. There were numerous police occurrence reports introduced. Some were obtained prior to trial, pursuant to a joint direction the parties signed. Other records were produced pursuant to a mid-trial summons. Questions about only some, but not all of the police occurrence reports, were then posed during the trial. Reference was made to others in closing submissions. Frankly, this was not dissimilar to what transpired with the wife's health records, which I address separately later on.

[44] On their face, the police records (and to some extent the wife's health records) cumulatively document conflict between the wife and her parents, conflict between the wife and others, and conflict between the parties. The police records document charges or occurrences involving one or the other party, during which one or the other of them was said to have been in possession of drugs (marijuana). There was an assault charge laid against the husband in 2007 that was later withdrawn in favour of a peace bond. I heard evidence about non-compliance with the husband's release terms back then, which I will come back to. The police records contain several complaints about the wife engaging in harassing behaviour against the husband, his parents, and at least two other persons. The wife was charged with criminal harassment and extortion in 2016, charges which were also later withdrawn in favour of a peace bond. There are police records documenting that the wife was charged with fraud. That record essentially alleges that the wife stole purses from a store. If that was true, fraud is a crime of dishonesty and this may very well have been relevant to credibility, but questions about that were not pursued during this trial. There are also various records of various traffic violations in the police records, as well as numerous parking tickets that the wife herself tendered for other reasons.

[45] Probably, it could be argued, especially had more questions been posed about specific records, that any one individual entry within these numerous pages of police records has some import or relevance to one side's or the other's credibility. Even in the absence of more questions, the records as a whole reveal that both sides have behaved in a chaotic manner, for two decades. In general, cumulatively these records reflect poorly on both parties here. And now, after two decades of that chaos, they want this Court, to accept that one or the other's story about the length of the relationship, and about family violence, is the more reliable one, and make a greater or lower

monetary award accordingly. The Court has done its best to do so, but there are many challenges with the evidence and in a number of respects, the evidentiary record was far from perfect.

PART IV: EQUALIZATION OF NET FAMILY PROPERTY

[46] The Court's determination that the wife owes the husband an equalization payment of \$973.70 is calculated using the net family property items in the aforementioned mid-trial agreements, and the following additional analysis of the remaining net family property issues still in dispute.

A. The Parties' Household Contents and Certain Personal Items

[47] The wife apparently guessed on a previous sworn financial statement, that she had household contents worth \$30,000.00. The wife now places no value for household contents in her ledger. She says that almost all of the items were inherited and had nominal value, and they have been disposed of in any event when she had to move post-separation. The husband would have the Court attribute that earlier sum of \$30,000.00 to the wife as an asset on the valuation date.

[48] The wife's current position as to the value of household contents on valuation date has more of an air of reality to it. I was not even really told what these items consisted of. No entry for household contents appears on the Court's calculation.

[49] Nor do any entries for a luxury watch or designer clothing that the wife originally claimed the husband owned on the valuation date. The wife conceded these could be omitted at the end of the trial.

[50] Nor is there an entry in the Court's calculation of \$1,000.00, for the husband's "snowboard and gear". The husband testified those items were essentially now worthless (i.e. perhaps a \$200 value).

[51] Nor is there an entry of \$500 for tools. Not only are these amounts all *de minimus*, but their values were ascribed by the parties guessing.

[52] Nor is there an entry in the Court's calculation for a \$2,000.00 amount to the wife, for a computer that the husband's company bought for her. The reasoning for not inserting that is

similar. Plus, as explained when addressing the wife's tort claims, the husband bought this computer for the wife to use for work, and he asked for it back.

B. The Wife's Handbag Collection

[53] The husband's end of trial net family property statement inserts as an asset of the wife's on valuation date the sum of \$50,000.00 for a handbag collection, with no corresponding date of marriage deduction for the values of any of the handbags in the collection, even though some then existed. This approach is fictitious and exaggerated, in light of the evidence I heard at trial. The failure to allow a date of marriage deduction for what existed, also departs from the structure in the legislation. Some additional background and context is required, to dispose of this particular net family property dispute. What I say here, has some dual relevance when it comes to addressing the wife's income and financial circumstances, in the spousal support analysis.

[54] It is common ground that the wife is knowledgeable about designer clothing and handbags. At her questioning prior to trial, the wife said she was able to re-sell items online, as a hobby. In fact, in cross-examination during this trial, the wife explained that she had in the past ordered 25 or 30 items from a designer that she liked, and then sold them online.

[55] The evidence about the value of the wife's handbag collection was less than ideal. For example, the husband's counsel read in from the transcript of the wife's questioning, at which she said that she owned 12 handbags, valued at \$40,000.00 or \$50,000.00. The wife's evidence at trial was different. For example, her Financial Statement sworn October 24, 2025, lists a handbag collection consisting of only eight purses at the valuation date (not twelve), only two of which now remain as the others were sold post-separation.

[56] To provide values for the eight purses, the wife went to a website called "Lux de Jour". "Lux de Jour", according to the wife, is a "well known seller of high-end handbags". From there, she obtained quotes of the values of the eight handbags that existed on separation. She did not get quotes precisely at the valuation date though, but rather as of some point in time afterwards.

[57] The wife's "Lux de Jour" quotes show what that online company would pay her for her various handbags outright. That "buy" sum on the quote, is a lesser amount than what would be paid to her if the bag was placed on "consignment". The wife was prepared to use the higher "consignment" value for each of her handbags, rather than the "buy" value, even though in the case of the purses she has sold post-separation, the "consignment value" was never realized, and it may not ever be realized for those purses which she still owns. The wife gave some evidence

during the trial, about what she had actually paid to purchase some of these purses. The purchase prices that she told me, were less than the Lux de Jour quotes that she supplied, too. No one gave me a documentary record of her purchases and sales, but her oral evidence about these amounts was not impugned.

[58] On her Financial Statement sworn October 24, 2025, and on her net family property statement, the wife deducted the same “Lux de Jour” “consignment” amounts for all eight purses on the date of marriage. She admitted during her in court testimony though, that she did not own some of these handbags on the date of marriage. The wife is not entitled to deduct handbags on the date of marriage, that she acquired after the fact.

[59] In this imperfect context (i.e. the wife’s exaggerated ballpark guess at her pre-trial questioning, followed by her obtaining hearsay and opinion internet evidence, and her deduction of the value of purses at the date of marriage that she did not yet own), I considered using either the actual purchase amounts prior to valuation date, or the sale amounts after the separation, that the wife told me about, as values to calculate the wife’s net family property on valuation date.

[60] I have decided against that. That is no more accurate than the other indicators. And the wife was prepared at trial to use the higher “Lux de Jour” “consignment” numbers (even though they exceed what she paid and sold some of the purses for). Using the consignment value is effectively an adverse inference being drawn against the wife, for her failure to call better evidence. It benefits the husband, because there is greater value being shared.

[61] Regarding the handbags that did exist on the date of marriage, I considered using the evidence I was given of the pre-date of marriage purchase prices, as the date of marriage values. The problem with that approach though, is that the wife also testified that she then sold some of these purses for less than the Lux de Jour amounts. I agree with the wife’s counsel that the approach to determining value should be consistent. The Court should not use the higher Lux de Jour internet valuations on the valuation date when the wife did not garner that much money on an actual sale, only to use a lower purchase price for the date of marriage. That would fictitiously inflate the growth for the purposes of the equalization.

[62] I have decided that where the wife was clear in her evidence about the existence of a purse on the date of marriage, I will allow her to deduct the same purse value from the Lux de Jour quote that the wife used for the valuation date. This at least compares ‘apples to apples’ and not ‘apples to oranges’. The wife, whom both sides agreed had knowledge about these kinds of things, also

said that there would be little fluctuation in the value of these purses between the date of marriage and the valuation date anyway. Where she admitted that the purse was acquired after the date of marriage, or she couldn't remember, she will not get a date of marriage deduction.

[63] In taking this approach, I recognize that the wife bears the onus to prove the values of her assets on the relevant dates and the failure to do so could result in an adverse inference being drawn. I have drawn an adverse inference against the wife to an extent. But I find that using the husband's suggested value of \$50,000.00 with no date of marriage deduction, is too much of an adverse inference to draw. The wife's prior statement at questioning was a "ballpark" estimate. The wife has exaggerated other areas of the evidence; this is no different except that here, she exaggerated the values of her purses, against her interest, instead of exaggerating in favour of her interest. I am prepared to accept that her say-so, that her earlier statement about value was also just that, her say-so at the time. It was a wrong "ballpark" estimate in light of the evidence I heard about the lower amounts that the wife actually paid for some of these items, and what she garnered for them on re-sale. And to deny her a date of marriage deduction for some of her purses, when the evidence established they existed on marriage, would be unfair to her.

[64] Using the numbers from the wife's end of trial net family property statement for what existed on the valuation date only, the value of the wife's handbag collection on the valuation date is \$14,840.00.

[65] The wife was clear that on the date of marriage, she only owned three purses, being the Louis Vuitton Speedy 356 Damier Ebene purse (purse #1 on her net family property statement), the Chanel Timeless Camera Bag Vintage (purse #6 on her net family property statement), and the Chanel Bucket Bag (purse #7 on her net family property statement). The Lux de Jour values for those items, which the wife will be allowed to deduct also on the date of marriage, is \$5,840.00 (i.e. \$1,050.00, \$1,800.00 and \$2,990.00).

[66] These are the numbers that appear in the Court's calculation at **Schedule "A"** to this Judgment.

C. The Wife's Jean Paul Gauthier Dress

[67] The wife had an elderly friend named Terri. The wife says she met Terri around the time that the husband "had [her] arrested". As explained later on, that arrest was in May of 2016. That was prior to the marriage.

[68] The wife says that Terri had a troubled daughter, and that Terri became like a maternal figure to her. It was in the context of that kind of a relationship that the wife says Terri gave her a Jean Paul Gautier designer dress. This dress came out of Terri's closet. Like the wife's handbag collection, what I say here about this dress, has some dual relevance when it comes to addressing the wife's income and financial circumstances, in the spousal support analysis.

[69] The wife testified that she listed the dress for sale online, and she was able to sell it to someone in Florida for \$20,000.00 USD. She converted that sum to \$27,508.60 CAD on the valuation date, using an exchange rate of 1.37542. Both parties include as an asset of the wife's on the valuation date, the sum of \$27,508.60 for a Jean Paul Gauthier Dress. That is not where the dispute between the parties lies.

[70] In an earlier version of the net family property statements in the Trial Record, the wife in error tried to both deduct this dress on the date of marriage, and to exclude it as a gift. She cannot do both. This error was then fixed on her end of trial statement. She removed the exclusion, but still claims a date of marriage deduction for the dress.

[71] The husband's end of trial net family property statement does not allow a date of marriage deduction for the dress. The husband claimed when he was cross-examined, that the wife may have obtained this dress in 2018 or 2019, after the date of marriage. The husband also tried to suggest that the wife was given the dress not as a gift, but rather it was paid to her as remuneration for helping Terry to declutter her closet. The wife disagreed with this, arguing that it would be overcompensation for that kind of work. This only mattered if the dress was obtained during the marriage, as it could theoretically impact the Court's determination about whether the dress was gifted (an exclusion) or not.

[72] In any event, the husband's evidence about the timing that the wife received the dress (i.e. his use of the word "may") was equivocal. The wife's recollection that she obtained this prior to the marriage is more reliable, tied with her recollection of the timing of her arrest. Whether it was compensation (which I would not find), or a gift, is therefore unimportant, because I find she obtained it before the marriage. She is entitled to a date of marriage deduction for it.

[73] While the parties have both used the sale price as the valuation date value for the dress, I must decide upon its value on the date of marriage. There is no other evidence of its value at the date of marriage. I will use the wife's approach, and give her a deduction for the same amount of the valuation date figure. No one gave me another methodology to calculate the value of this dress

at the earlier valuation date. Nor did anyone tell me whether the exchange rate on the date of marriage was materially different either, such that would impact the calculation.

[74] I considered whether the failure to provide better evidence means that I should deny the wife a date of marriage deduction for failing to prove its value. But that is not fair. I know the dress existed. There was apparently some discussion at a second Trial Scheduling Conference about whether certain evidence about this dress would be called. Some evidence may therefore not have been called about the dress as a result of that discussion, which I was told focused on proportionality. If the dress is included on the valuation date, without deduction on the date of marriage, the wife's net family property is inflated.

[75] For simplicity, I have just left the dress off the Court's calculation at **Schedule "A"**. As I find it should be an inclusion on the valuation date and a deduction on the date of marriage in the same amount, it doesn't impact the calculation.

[76] Finally, although relevant to income rather than the equalization calculation *per se*, the wife was not yet been paid in full for the dress by the time of this trial. The wife testified that she has been collecting payments for the dress from the person in Florida, for the last three years. The wife testified that the dress is almost fully paid now, and it is about ready to ship to Florida. I will come back to this evidence later in the spousal support analysis, below.

D. The Wife's Jewelry

[77] The wife has included on her end of trial net family property statement values for her engagement ring, her wedding band, and the sum of \$5,160.00 for her mother's jewelry. The wife testified that she sold her mother's jewelry and her engagement ring for \$5,160.00 after the date of separation, to get by. In any event, the wife then deducts the same values for her engagement ring and her wedding band on the date of marriage, and she properly excludes the \$5,160.00 for her mother's jewelry as part of her inheritance.

[78] The husband did not include any of these items on his end of trial net family property statement. Whether these are included and deducted (or excluded), or not inserted onto a net family property statement at all, achieves the same result in the calculation.

[79] They do not form part of any growth in the wife's net family property over the course of the marriage. For ease, I leave them out of the Court's calculations at **Schedule "A"**.

E. The Wife's Vehicles

[80] The wife had a 2012 BMW X1 on the valuation date. The husband says that the wife previously claimed the car was worth \$21,000.00 on prior financial statements, but then reduced the amount to \$8,000.00. The wife says that the husband purchased the vehicle in her name in 2019 for \$21,000.00. She estimates the car was worth \$8,500.00 on the valuation date. She traded the car for \$8,000.00 at the end of 2023.

[81] I do not know that the vehicle would have only depreciated by \$500.00 in the one-year period from the date of separation, until the trade. But there was no other evidence called about this, and the husband's position, which appears to use the purchase price from 3 to 4 years earlier, is not more accurate or reliable. I shall use the wife's figure of \$8,500.00 for this vehicle on the valuation date.

[82] The wife claims a date of marriage deduction of \$10,000.00 for a different, 2009 BMW. The wife testified that she bought the BMW prior to the date of marriage, using \$5,000.00 that the husband gave her, and the sale proceeds of her previous Mustang, of \$8,000.00 (i.e. for a total purchase price of \$13,000.00). She said she sold the BMW for \$5,000.00 after the date of marriage.

[83] If \$10,000.00 is supposed to be some kind of mid-point number, it is not actually right in the middle, and the dates that these buying and selling transactions occurred were not clear. These numbers were not documented either, and came from the wife's memory. As such, I will use the lower sale price as the date of marriage value, as that seems to be the most reliable data I was given. This is a small adverse inference against the wife for failing to call better evidence. By placing a lower number at the date of marriage, this benefits the husband, in that it results in more growth to the wife's net family property over the marriage.

F. The Wife's Gifted and Inherited Property

[84] The wife had a fractured relationship with her mother for many years. She testified that her mother was a school-teacher and principal, who was strict. The wife testified that her mother started kicking her out of the house at age 15. She characterized her mother as "volatile and abusive". This is one of the reasons that the wife says she started to cohabit with the husband, as early as 2001, although as I explain later, the weight of the evidence was that the wife was not "kicked out" until November of 2011.

[85] The wife and her mother would later reconcile when the wife's mother was suffering from cancer for a second time, in the mid 2010s. The wife's mother died in 2019, during the marriage. The wife testified that they became close before her mother died, and she cared for her mother alongside her father, during the time that her mother was suffering from cancer. This background has some relevance to the factual dispute about the length of the parties' relationship as well, but I mention this here first, as it forms a backdrop to the dispute about the wife's excluded property.

(1) The Wife's Excluded Investments

[86] The wife received some funds as part of an inheritance during the marriage, following her mother's death. Incidentally, she also received two *inter vivos* gifts from her maternal grandmother during the marriage.

[87] According to her Financial Statement sworn October 24, 2025, the wife had \$148,632.33 in a Scotiabank account at the valuation date, which she subsequently moved into a GIC. There is no serious dispute that these funds are excluded assets in the calculation of the wife's net family property and the equalization payment, but the husband's end of trial net family property statement omits to award the wife this exclusion for no good principled reason. This has contributed to creating the fictitious equalization payment that his closing submissions claim he is owed. I find the wife is entitled to this exclusion. For ease, I have omitted reference to it entirely in the calculation at **Schedule "A"**.

(2) The Alleged Value from A Family Trust Issue

[88] I also heard some evidence about whether the wife was entitled to an interest in family trust, that should have been included in the equalization calculation (or perhaps that is available to the wife for her own support). The subject matter of the trust in issue consisted originally of a single asset, being the wife's parents' home, and then later, a successor property.

[89] By way of background, prior to 2001 (when the wife asserts that she began to cohabit with the husband) the wife lived with her parents and her younger sister. The family then moved into another home, which I shall refer to as the Grenadier Crescent property in Vaughan in around

2005.⁵ The parcel register for this property reveals that title to the Grenadier Crescent property was taken in the wife's mother's name alone.

[90] The wife's father testified that his late wife was concerned that he would meet someone else after her death, and that person would benefit from sharing in her part of the home. So in 2015 the wife's mother transferred the property into her, and the wife's father's names, along with other trustees.

[91] The wife's mother's Will provided that upon her death, her estate trustees would hold the property during the wife's father's lifetime, or perhaps for a shorter period of time in certain circumstances. If the house was disposed of before the wife's father's death, the wife's father was entitled to half of the sale proceeds, and the wife (and her two siblings) would each be entitled to the other half (one-sixth of the sale proceeds each). But there is also provision in the Will for the wife's father to request to move to another property, with similar provisions then applying to the new property. Otherwise the wife is entitled to one third of the property when it is disposed of after her father's death.

[92] The wife's father testified that he decided he wanted to move into a different property. With the trustees' approval, the Grenadier property was sold and the sale proceeds were used, along with some of his own funds, to acquire a new property in Oro Medonte. This was done following the mechanism, as authorized in his deceased spouse's Will.

[93] Upon its acquisition, the new Oro Medonte property was also put into a trust, to give effect to his deceased spouse's intention in her Will. Additional trust documents were created. Those documents were tendered during this trial. I was referred to a text message from the wife, that documents she obtained legal advice about this when this transaction occurred. The husband relied on this as part of some kind of argument that the wife could have then accessed her interest, but chose not to.

⁵ I come back to move into this property, what the wife's father told the Ontario Court of Justice about the family's move into Grenadier Crescent property (in an affidavit he swore in support of his daughter for use in a criminal proceeding in that Court), and its relevance to my determination about the date of the parties' cohabitation, later on.

[94] The husband's end of trial net family property statement now includes the sum of \$228,333.33, supposedly representing an approximate amount of 1/3 of the value of the Oro Medonte property. Not only was there was no evidence of value for this property on valuation date called, but there was no evidence whatsoever, that the wife received any funds from the sale of the Grenadier Property. Even if she had, that value would have been excluded as it would have come from an inheritance. When the wife eventually receives her interest on the sale of the Oro Medonte Property and/or on her father's death, those funds too, will still be from an inheritance. Their nature has not changed as a result of the wife's father having moved from one property to another.

[95] This sum of \$283,333.33 should not have been included in the husband's net family property. It has very much contributed to the husband's artificial scenario, that the wife owes him a more sizeable equalization payment, than what she actually owes him in reality.

G. The Husband's Businesses' Values and Other Related Amounts

[96] The husband's businesses' values and other related amounts, resolved on consent. The numbers, which are detailed above in the background section of this Judgment, are reflected in the attached calculation at **Schedule "A"** of this Judgment.

H. The Husband's Steel and Construction Items on the Valuation Date

[97] Nevertheless, the wife separately claimed (at least initially) that the husband owned various steel and other equipment or construction items on the valuation date that did not form part of the businesses' values. By the end of the trial the wife conceded that some of these items would have formed part of the husband's agreed upon businesses' values, and they came off of the husband's ledger on her proposed net family property statement.

[98] Still the wife continued to pursue that the husband had a gas generator, said to be worth \$2,000.00, \$12,000.00 worth of steel or sheet metal, and construction fencing of \$4,500.00, all of which the husband sold after the separation.

[99] The husband admitted that he kept the money from the sale of the steel, but he said that the amount was still captured by his valuator in the income calculation. This wasn't proven as the valuator wasn't called. I nevertheless raised during the trial, if that was so whether this was a double count. The husband's end of trial net family property statement then accepted that the husband had a \$12,000.00 asset being the steel, so I need not deal with either of these issues further.

[100] The husband otherwise testified that he sold the generator for \$1,400.00 shortly after the date of separation but said the money for the sale was given to his company's controller and went into the business account. Likewise, he said the money he earned for the sale of temporary fencing was accounted for in the business. As there is an agreement as to the businesses' values, I do not include these amounts. If someone wanted to litigate these issues further, then he or she should have called the valuator to testify as to whether they formed part of his valuation or not. I only include in the calculation at **Schedule "A"** the \$12,000.00 amount for the steel, as the husband agreed he kept that sum, and he included it on his end of trial net family property statement.

I. The Husband's Vehicles

[101] The wife conceded at the end of the trial that the husband's 2017 Dodge Ram was a corporate asset, and therefore formed part of the agreed upon businesses values. While the wife originally said that another vehicle (the husband's 2013 Dodge Ram) was worth \$15,500.00 on the valuation date, her net family property statement that accompanied her closing submissions, inserted a value of \$5,000.00. The husband by contrast, placed a value of \$3,000.00 for this truck, saying he sold it for this amount on October 26, 2022. That was within days of the date of separation, so I shall use that sum. The husband did not claim a deduction for this truck on the date of marriage by the end of this trial, so I need say nothing further about the evidence I heard about that.

J. The Parties' Bank Accounts and Savings

[102] The parties mostly agree with the values that each had in the bank or in investments on valuation date. Where they depart, is that the husband's end of trial net family property statement did not give the wife an exclusion for the \$148,632.33 in her Scotiabank savings account, that was gifted or inherited. I have dealt with that already, and only include the wife's other financial investments on the valuation date in the calculation at **Schedule "A"** of this Judgment.

[103] The other area of divergence is with respect to the husband's cryptocurrency account. The evidence on this point is not great, either.

[104] The wife says that the husband refused to provide an accurate statement. The husband testified that he tried, but that the company with which he used to have a cryptocurrency account had been bought out by another, and the best he could get was a statement showing a cash balance in the month of the valuation date.

[105] A spreadsheet had been produced during the lifespan of this case, showing various transactions in and out of the account over time. The spreadsheet is hard to read, and does not clearly indicate what existed on the valuation date. It does not clearly identify withdrawals, but I know from the evidence that the husband made some. The wife tried to do some calculations of her own, but I am not persuaded that they are reliable.

[106] The best, albeit imperfect evidence I have is the cash value in the account in the month of separation, of \$9,266.96. If there is a difference between the cash value and the market value, I was not able to ascertain that, nor was anyone else during the trial able to better explain it. Accordingly, the sum of \$9,266.96 is shown in the calculation at **Schedule “A”** of this Judgment.

K. The Parties’ Valuation Date Debts

[107] The parties’ debts on the valuation date are agreed, except that the husband wants to deduct disposition costs on his investments and cryptocurrency. This is not agreed, and proper calculations were not supplied. I do not know that a 23% deduction for tax is appropriate. This is not deducted in the Court’s calculations.

L. Other Date of Marriage Assets and Debts

[108] I have already dealt with most of the parties’ date of marriage assets and debts, above. Apart from those, the parties agree that the wife had \$2,389.98 in the bank on the date of marriage. They agree that the husband had credit card debt of \$4,004.54. These sums are in the Court’s calculations.

M. Conclusions Respecting the Equalization Payment

[109] Based on the above analysis, the Court’s calculation attached at **Schedule “A”** to this Judgment shows that the wife owes the husband a small equalization payment of \$973.70.

PART V: POST-SEPARATION ADJUSTMENTS

[110] The wife seeks post-separation adjustments for rent in the amount of \$20,400.00.

[111] The parties’ rent was \$3,400.00 per month. The wife wants the husband to reimburse, 50% of the rent for a 12 month period, after he moved out and after he stopped paying.

[112] There are actually 13 months of rent to account for though. The husband says he paid rent until November of 2022. The wife tendered records of her e-transfers for the rent she paid after that. The first payment she appears to have made, was for December of 2022. The last one, was December of 2023. This is 13 months, not 12.

[113] But the husband did also send the wife \$2,140.00 in December 2022, \$1,500.00 in January 2023, and \$1,500.00 in February of 2023. He made another payment of \$2,595.37 on June 2, 2023. This adds up to \$7,735.37. This was prior to the temporary support Order of Daurio J. that came later on, in November of 2023. I will credit the husband with these payments towards the claim for post-separation adjustments, since I have decided to make no further Order for retroactive spousal support.

[114] The husband's post-separation adjustments owing to the wife are \$14,364.63. This is 50% of the rent for 13 months (i.e. $\$1,700.00 \times 13 = \$22,100.00$), less his direct payments of \$7,735.37.

[115] From this sum of \$14,364.63, I deduct the wife's equalization payment owing to the husband of \$973.70. As such, after the set-off, the husband owes the wife \$13,390.93.

PART VI: SPOUSAL SUPPORT

A. The Factors and Objectives in the *Divorce Act*

[116] The wife's spousal support application is governed by section 15.2 of the *Divorce Act*.

[117] Section 15.2(4) provides that the Court shall take into consider the condition, means, needs and other circumstances of each spouse, including:

- (a) the length of time the spouses cohabited;
- (b) the functions performed by each spouse during cohabitation; and
- (c) any order, agreement or arrangement relating to support of either spouse.

[118] There are four objectives of a spousal support order in section 15.2(6) of the *Divorce Act*. A spousal support order should:

- (a) recognize any economic advantages or disadvantages to the spouses arising from the marriage or its breakdown;

- (b) apportion between the spouses any financial consequences arising from the care of any child of the marriage over and above any obligation for the support of any child of the marriage;
- (c) relieve any economic hardship of the spouses arising from the breakdown of the marriage; and
- (d) in so far as practicable, promote the economic self-sufficiency of each spouse within a reasonable period of time.

[119] The Court considers the factors in section 15.2(4) of the *Divorce Act* against the background of the statutory objectives in section 15.2(6). Some factors may “loom larger than others”. The Court “must look at all the factors in light of the stipulated objectives of support” and exercise its discretion in a manner that “equitably alleviates the adverse consequences of the marriage breakdown”: see *Bracklow v. Bracklow*, [1999] 1 S.C.R. 420 ¶ 36.

[120] All of the objectives in section 15.2(6) of the *Divorce Act* must be taken into account; no single objective is paramount: see *Bracklow v. Bracklow* ¶ 35; see *Moge v. Moge*, [1992] 3 S.C.R. 813; see also *R.L. v. M.F.*, 2025 ONCA 595 ¶ 26.⁶

B. The Nature of the Wife’s Entitlement to Spousal Support

[121] These provisions (and the case law) recognize three conceptual grounds for entitlement to spousal support: compensatory, contractual, and non-compensatory: see *Bracklow v. Bracklow* ¶ 15, 49; see also *R.L. v. M.F.* ¶ 27.

[122] Regarding the wife’s claim that her entitlement is part compensatory, chapter 3 of the Spousal Support Advisory Guidelines, Revised User’s Guide, April 2016 (the “RUG”) identifies that good markers of compensatory claims include when a spouse had assumed child care responsibilities, moved for the payor’s career, supported their education or training, or worked in a family business. Except for the evidence I heard that the wife briefly did some sales work in the husband’s business (which may have had more to do with then being able to collect employment

⁶ In this case though, section 15.2(6)(b) of the *Divorce Act* is inapplicable on the facts; the parties do not have any children.

insurance), the evidence at this trial revealed none of these markers. Rather the wife's written closing submissions argue that "the nature of the relationship and economic integration, as well as their roles in the marriage, prevented her from needing to advance her education and career at all". But she then concedes that this is not a case of career opportunities foregone. She just says she did not pursue a career or education while in the relationship, and some element of compensatory support after a "lengthy" period of cohabitation and marriage should be inferred. This argument too, is weak on the facts of this case, especially given that the wife's health issues and her not working have been long standing, and given that the Court is not finding a "lengthy" relationship (at least not as long as the wife maintained it was).

[123] A court is not required to decide on one basis of support to the exclusion of others. Chapter 3 of the *RUG* explains that non-compensatory claims can include both an inability to meet basic needs, but also a significant decline in the standard of living. In contrast to the absence of compensatory claims' markers, these non-compensatory ones, particularly the wife's inability to meet her needs herself post-separation, are engaged. Moreover, the doctrine of equitable sharing, founded on the concept of economic merger, is the overarching principle to be focused on by the court. The merger of the parties' economic lifestyles creates a joint standard of living which must be considered in a support analysis. The Without Child Support Formula, which I am using to assist in my determination about the quantum and duration of the wife's spousal support, accounts for economic merger and lifestyle: see *R.L. v. M.F.* ¶ 32-24.

[124] My further analysis and findings about the statutory factors in section 15.2(4) of the *Divorce Act*, looked at "in light of [these] stipulated objectives of support" in section 15.2(6), now follows.

C. Analysis, Findings and Conclusions Regarding the Wife's Condition, Means, Needs and Other Circumstances

(1) The Wife's Reported Income

[125] The wife included in a chart at ¶ 130 of her trial affidavit, her Line 150 incomes for the years 2013 to 2024; I reproduce the same chart below. Although 2013 is the first year shown in

the chart, the wife was in receipt of ODSP for many years prior to that,⁷ and she continued to collect it until 2019. Notably, she continued to be in receipt of ODSP for several years after she cohabited, and then married the husband. This was not reported to ODSP, and is one of the credibility concerns I flagged earlier.

[126] The wife's incomes after 2019 included other forms of government benefits, some modest interest or other investment income, and then spousal support starting in 2023. Her incomes in 2023 and 2024 specifically, consisted almost entirely of spousal support.

2013	2014	2015	2016	2017	2018	2019	2020	2021	2022	2023	2024
\$12,596	\$12,732	\$12,812	\$13,044	\$13,240	\$13,677	\$27,899	\$27,527	\$34,093	\$8,939	\$6,166	\$39,663

(2) The Wife's Ability to Earn Self-Employment Income, Such As from Online Clothing Sales

[127] The husband would have the Court rely on the wife's knowledge of designer clothing and handbags, the evidence that she had purchased and re-sold items online as a "hobby", and his claim that the wife held "consignment sales" to impute an income of \$40,000.00 to her. As indicated earlier, I would not go that far. One of the husband's examples of what the wife was able to earn, was very dated, from back in 2011, when the wife was removed from her parents' home, and she sold some of her possessions that were no longer housed there. Even the husband said the wife only then made \$2,000.00 at this "consignment sale".

[128] Imputing \$40,000.00 may perhaps be approximating minimum wage, if not a bit higher than it. Despite the recent debate in cases like *Osanebi v. Osanebi*, 2023 ONSC 3456 or *de Pimentel v. Rodriguez*, 2024 ONSC 2848, about whether minimum wage versus some other level of income effectively operates like a "default" when it comes to imputing, there is no presumption or default to certain income thresholds for imputing. Minimum wage may be appropriate in some cases all other things being equal, but evidence is still needed to support an income determination

⁷ The wife's family doctor, Dr. Brigit Swensen, testified that the wife applied for ODSP in 2006, aided by her former psychiatrist. The ODSP payments on the tax returns that I was given starting in 2013, are reflected on Line 145 as non-taxable social assistance payments.

in whatever amount. On the facts of this case, neither \$40,000.00, nor minimum wage, are realistic, at least not right now.

[129] There is some data on the wife's tax returns. I considered whether it could be used to form the basis for some imputing. For example, the wife reported some self-employment income of \$5005.04 and \$640.00 on her 2020 and 2021 tax returns respectively. She also reported employment income of \$7,677.00 in 2021. But these amounts of income, showing up for the first time in 2020 and 2021, made her eligible for government benefits during the Covid-19 pandemic. She also then collected employment insurance of \$18,000.00 in 2021 and \$7,000.00 in 2022, after the employment for the husband's company. The wife made more money collecting benefits and employment insurance, than she ever did working or earning self-employment income. So while the husband now characterizes the wife's online sales and later the job with his company as evidence of the wife's ability to work, these filings have more to do with her accessing CERB, then the CRB, and then Employment Insurance after the wife stopped receiving ODSP, in my view.

[130] The evidence I heard (including from the wife herself) of what she actually earned doing online sales, whether as a hobby or not, is a more persuasive basis for the determination of her income right now. When determining the value of the wife's handbag collection to calculate net family property, I used the wife's Lux de Jour quotes for the reasons explained. At the same time, I noted the wife's evidence of the purchase price for the purses in her collection, and the online sale prices for six of the eight purses she sold post-separation, was different.

[131] More specifically, the wife recalled the purchase price for three of the six purses that she sold. In the aggregate, they totaled \$1,750.00.⁸ Extrapolating this sum (since I was not told the purchase price of the other three), I estimate the cost to purchase all six was perhaps \$3,500.00. Earlier, I noted the wife's testimony that she sold the six purses post-separation for \$5,700.00. As such, I find the wife made a small profit here of \$2,200.00. Incidentally, it is consistent with the amount of money the husband said the wife was able to earn at her 2011 "consignment sale". This sum will be imputed to the wife as reflective of her capacity to earn from online sales.

⁸ Specifically, she said that three of the six purses that the wife later sold, cost \$750, \$500, and between \$450 and \$500.00 to buy.

[132] There is also the Jean Paul Gauthier dress. I wasn't given a precise breakdown of the amount of installment payments that the wife has been collecting over three years, or the exchange rates at the time of each installment. But roughly, using the wife's own evidence of the sale price, and the only evidence of timing of the payments that I have (i.e. that she has received installments over three years), I estimate that the wife would have received payments worth just under \$9,200.00 CAD per year for this dress (i.e. \$27,508.60 divided by 3). That sum will be imputed to the wife as part of her capacity to earn from online sales. I wasn't given any evidence of whether there are legitimate expenses that can be deducted against these earnings. While I considered that perhaps the dress was an expensive one-off that she acquired by happenstance, was able to monetize, and it will not be recurring, it still illustrates the wife's resourcefulness and ability to source and re-sell vintage clothing online for a profit, whether as a hobby or not, in spite of the various health challenges that she is experiencing.

(3) The Wife's Investment Income

[133] The wife's Financial Statement sworn October 24, 2025 states that the gifted or inherited funds she received during the marriage now sit at \$140,465.66 in a GIC, generating 2.5% interest. The interest earned is invested back into the account.

[134] The interest rate may have been higher in the past, but I do not need to address this further as the wife's tax returns reveal the actual rate of return, in dollars, since 2019. In the years since separation, those amounts were \$1,939.37 in 2022, \$566.08 in 2023, and \$6,063.32 in 2024.

[135] I don't have the actual interest she earned for 2025 yet, given the timing of this trial. But a statement made in the wife's Financial Statement is that she can earn 2.5% interest on a GIC. That is consistent with current interest rate trends for GICs at a bank. Perhaps as a litmus test, the *Courts of Justice Act* post-judgment interest rates dropped in 2025, with the rate for the first quarter in 2026, now also being 2.5%. Therefore, for 2025, 2.5% interest on the current balance shown on the Financial Statement, would yield \$3,511.65.

[136] I considered the wife's claims in her Financial Statement sworn October 24, 2025, at ¶ 87 of her trial affidavit, and orally during this trial, that these funds are earmarked for her future medical expenses, specifically a potential future cancer diagnosis, since cancer runs in her family. I considered her claim that the funds were "locked in", and I considered her father's oral testimony that the wife had a moral obligation to her deceased mother, to preserve these funds. Inconsistently at ¶ 87 of her trial affidavit, the wife said that already post-separation she was forced to withdraw

from these “locked-in” funds, hence why the current balance is now lower from what existed on separation. How that was possible if the funds were locked in, was not explained.

[137] These claims of frozen or inaccessible funds were exaggerations. The wife didn’t need to overstate her alleged lack of access to these funds, to make her point. While I accept that she has faced difficulties post-separation, it is not true that she did not have access to this money. The funds were not locked in. Consequently there was no need for her to send hyperbolic photographs of the thermostat turned down, to claim an inability to pay for heat (which the wife also did).

[138] And just because the interest is reinvested doesn’t mean that it shouldn’t form part of the wife’s income in the spousal support calculation. I intend to include it. This was not even really disputed in closing submissions at the end of the trial, despite the claims of the “locking in” of funds.

(4) The Wife’s Current Financial Circumstances and Budget

[139] The wife says that she has been forced to rely on food banks, borrow money from family, and sell personal items. This included, she says, borrowing \$10,000.00 from her father and \$40,000.00 from her grandmother, and selling her mother’s jewelry at a pawn shop, as well as her engagement ring.

[140] The wife says she moved into a small, 400 square foot apartment, and she has been forced to access her GIC (i.e. again, the one that was supposedly “locked in”). The wife says she had to take out a line of credit at a high interest rate, and she is in debt to her lawyers, who agreed to stay on the record without a proper retainer. Her Financial Statement sworn October 24, 2025 does reveal, that she has credit card debt and owes outstanding balances on utilities.

[141] According to her Financial Statement sworn October 24, 2025, the wife’s bank account balance had dropped from over \$18,000.00 to about \$3,500.00, by the time of trial. As indicated already, the balance in the GIC dropped by about \$8,000.00 from the date of separation.

[142] While I accept that the wife does not have a lot of resources, I still find, again, that she exaggerated the gravity of the situation somewhat. She has also made some poor financial choices. For example, the husband describes the apartment into which the wife moved as a “luxury apartment in the prestigious Lawrence Park area of Toronto”, he says she shops at Pusateris and she orders regularly from Uber Eats. I do not know how “prestigious” the apartment is, but the wife’s rent on her budget is \$2,500.00 per month; that consumes the majority of the monthly

amount of support that Daurio J. ordered. It would also consume most of the spousal support were this Court only to order the high range, for example, of what its end of trial SSAG calculations reveal.

[143] Another notable example of the wife's exaggerations and poor financial decision-making is seen in the balance of \$8,966.44 owing on the line of credit on her Financial Statement sworn October 24, 2025. While she claimed to have incurred debt to make ends meet during her post-separation financial crisis, elsewhere on her Financial Statement, the wife says she traded her 2012 BMW X1 at the end of 2023 to obtain a larger 2012 X3. She says she used the trade value of \$8,000.00 and a line of credit. She estimated the current value of the car about two years later, to be \$15,000.00. It seems therefore as though she actually used the majority of this line of credit, to get a new car. She then gave evidence during this trial, that she cannot afford the cost of gas. This made no sense. The wife would have been better advised to spend the money on health care.

[144] This hyperbole about the line of credit was unnecessary, too. That is because I still recognize that the wife's Financial Statement sworn October 24, 2025, has a modest budget. It shows expenses of \$3,589.00 per month, the majority of which as I have said, is for rent. The wife says she can only afford to spend \$80.00 per month for groceries and, she fills up her gas tank for her infrequently. She lists no expenses for personal items, like clothing. In her written closing submissions, the wife proposed a more generous and reasonable budget, aspects of which I am prepared to take into account in crafting a support award.

(5) The Wife's Health

[145] In her trial affidavit, the wife says she was diagnosed with an anxiety disorder, generalized anxiety, attention deficit disorder, an eating disorder, bulimia, a panic disorder, and complex post traumatic disorder. The wife testified that she has anorexia in addition, and perhaps additional diagnoses that she could not recall. The wife pointed to her mental health in cross-examination, when confronted with the voluminous, and inappropriate text messages that she had sent to the husband (and others), to explain her conduct. She claimed that she was "panicking". More than once she testified that she was in a state of "psychosis". Only some, but not all of these health conditions (like "psychosis"), were proven in the expert opinion evidence I heard about the wife's health.

[146] The wife called her family doctor, Dr. Brigit Swensen, to testify. From Dr. Swensen, I learned that the wife had first come to her clinic, in 2011. The wife was initially seen by a social

worker/therapist named Wendy Martin, not by Dr. Swensen. She was originally followed by a nurse practitioner named Tania Correa, too.

[147] Dr. Swensen met the wife for the first time two years later, in about 2013, when the nurse practitioner consulted with her. The nurse practitioner later left the clinic in about 2017, after which Dr. Swensen became the wife's primary care provider. Before the wife came to Dr. Swensen's clinic, she had seen a psychiatrist for years. The wife already had various pre-existing diagnoses when she became a patient of Dr. Swensen's.

[148] The wife proposed that Dr. Swensen testify as a participant expert about her mental health diagnosis and prognosis, and about her ability to work based on her mental health diagnosis. The wife additionally sought to rely on four letters from Dr. Swensen dated February 23, 2023, June 6, 2023, January 29, 2024, and October 8, 2025. In addition to providing expert opinion evidence, Dr. Swensen's testimony and letters included some factual evidence about what the wife had reported to her or others in the clinic, about her past residential arrangements and about family violence.

[149] The husband objected to Dr. Swensen offering any opinion evidence about the wife's capacity to work. He also objected to Dr. Swensen's attempt to attribute him as a cause of the wife's mental health troubles.

[150] In part because of some other delays in the trial, I heard a *voir dire* on this, but indicated I would hear Dr. Swensen's substantive evidence at the same time too, and render a ruling as to what portion of the evidence was admissible, later on. My ruling regarding admissibility comes next.

(i) Applicable Legal Principles

[151] At ¶ 39 of *Girao v. Cunningham*, 2020 ONCA 260, the Ontario Court of Appeal summarized the threshold requirements for the admission of expert evidence. There are four elements: the evidence must be relevant; it must be necessary in assisting the trier of fact; no other evidentiary rule should apply to exclude it; and the expert must be properly qualified, assuming there is no novel science issue.

[152] Then the trial judge must execute the gatekeeper function. At that second discretionary step, the judge balances the potential risks and benefits of admitting the evidence in order to decide

whether the potential benefits justify the risks: see *White Burgess Langille Inman v. Abbott and Haliburton Co.*, 2015 SCC 23 ¶ 24.

[153] As in *Girao v. Cunningham*, in this case before me, Dr. Swensen was not offered up as a “litigation expert”, but rather as a “participant expert”. Rule 20.2(1) of the *Family Law Rules* defines a “participant expert” as a person who is not engaged to provide expert opinion evidence for the purposes of litigation, but who provides expert opinion evidence based on the exercise of his or her skills, knowledge, training or experiencing while observing or participating in the events in issue: see also ¶ 60 of *Westerhof v. Gee Estate*, 2015 ONCA 206, and see ¶ 40 of *Girao v. Cunningham*.

[154] Dr. Swensen qualifies as a participant expert. She graduated from Dalhousie Medical School in 2000, completed her residency in family medicine in Ontario in 2002, and has been in practice since 2003. Dr. Swensen testified that her practice involves the treatment and management of mental health disorders. She testified that she regularly assesses and treats anxiety, depression and post-traumatic stress disorder, while consulting with a psychiatrist as needed if there is some uncertainty as to a diagnosis, or the need for more complex medication management. Dr. Swensen has treated the wife for a number of years. I find she can provide “expert opinion evidence based on the exercise of her skills, knowledge, training or experiencing while observing or participating in the events in issue”.

(ii) **The Wife’s Diagnoses**

[155] There was no objection, and quite apart from that, there was in fact no issue with Dr. Swensen giving evidence as a participant expert about the wife’s diagnoses.

[156] Dr. Swensen’s letters confirm some, but not all of the wife’s own evidence about her diagnoses. The letters state:

- ***The February 23, 2023 Letter***

- (a) This letter states she has been diagnosed with anxiety disorder, depression, attention deficit disorder, and eating disorder.

- ***The January 29, 2024 Letter***

- (b) This letter adds panic disorder, bulimia nervosa, asthma and migraine headaches to the list of diagnoses, and details some of the wife’s medications.

- ***The October 8, 2025 Letter***

- (c) This letter states that Dr. Swensen has been treating the impacts of domestic violence too, and gastrointestinal complications consequent on the wife's eating disorder.

- **Additional Oral Evidence About the Wife's Diagnoses**

- (d) During her in court testimony, Dr. Swensen testified that the wife had previously shown symptoms of PTSD, but was not sure if she met the criteria for that diagnosis at this time. Nor was she certain about a diagnosis of major depressive disorder.

(iii) ***The Admissibility of Dr. Swensen's Prognostic and Causation Evidence***

[157] Dr. Swensen testified that the wife had a lot of "obvious extreme symptoms". She talked about the symptoms of these disorders. She testified about the impact of the wife's conditions on her. In general there is no issue with the admissibility of this kind of evidence, especially as it relates to describing the wife's symptoms and explaining their impact upon her. Normally there would be no issue with a family doctor giving evidence about prognosis. But issues arose respecting Dr. Swensen's evidence of prognosis, given some of the specific opinions that Dr. Swensen offered up.

[158] In discussing the impact of the wife's diagnoses on her, Dr. Swensen's February 23, 2023 letter states that over the time that she has known the wife, she has been unable to work due to her medical conditions. Dr. Swensen says this continues to be the case, and "one must assume, given their longevity and pervasiveness thus far, along with her ongoing trauma history, that this is highly unlikely to change." This is some of the opinion, to which the husband objects.

[159] Dr. Swensen has also attributed the cause of the wife's mental health troubles, heavily to the husband. While she agreed that the cause of the wife's mental health difficulties was not "unifactorial", there is no question Dr. Swensen feels the husband's conduct had contributed "significantly". This evidence of causation is objectionable to the husband, too.

[160] At ¶ 37 to 47 of *LaRoche v. Lynn*, 2019 ONSC 6602, Elies R.S.J. admitted some of the evidence of a psychiatrist, specifically the portion of it, in which the psychiatrist commented on

the instability of the wife's mental health. He found another statement, that there was "no employment which could accommodate" that instability, to fall outside of the scope of the psychiatrist's expertise, and therefore was not a matter upon which he could opine.

[161] Ellies R.S.J. was concerned about the foundation of the opinion as well, because the psychiatrist had not set out the kind of employment that was considered in rendering this conclusion. That was the kind of information, he said, that would be included in a litigation expert's report. Because the litigation expert's rule had not been followed, the opinion that Ms. LaRoche was unemployable, was found to be inadmissible.

[162] I agree that there is a fine line between when a treating doctor, who is testifying as a participant expert, becomes a litigation expert: see *Davies v. The Corporation of the Municipality of Clarington*, 2016 ONSC 1079 ¶ 36. While I found some of Dr. Swensen's evidence to perhaps be on the line, I also note that this Court, and other courts, have dealt with similar opinion in other cases somewhat differently when it comes to exercising the gatekeeping function.

[163] For example *N.T. v. P.T.*, 2022 ONSC 5263 was a spousal support variation case involving a recipient who had numerous health complications over many years associated with Chron's disease. In addition to various documentary evidence in the form of health records and a disability application that had been introduced at trial, the wife in that case (the support recipient) relied on the evidence of her family doctor.

[164] This followed an early DRO attendance, at which the wife had consented to obtain a "medical/legal report commenting on both her condition and her employability". Her consent to do so, was incorporated into the Order of Leef J. She did not then obtain the medical/legal report. At trial, the husband sought to rely on the failure to have obtained the litigation expert's report, to argue against continued spousal support.

[165] The difficulty with the husband's argument in *N.T. v. P.T.*, was that quite apart from the fact that obtaining the medical/legal report was not proportional, it was also not necessary. The Court found it was able to draw inferences from the medical evidence of the wife's serious health conditions, coupled with the length of time she had been out of the work force and her lack of education: see ¶ 205-208, 213-217.

[166] In *J.K.L.D. v. W.J.A.*, 2020 ONCJ 335, I relied on the mother's family doctor's report for its diagnosis of post-partum anxiety and for its description of the treatment being provided to the mother for that. Much of the decision concerns whether a doctor's unsworn letter was admissible

as a practitioner and participant expert's report on a motion. But regarding the substance of the letter to which there was a separate objection, it also said there were no medical or mental health concerns that should "limit her from having full access to her child". While I did not allow the family doctor to give evidence of the mother's parenting capacity generally, I did find this statement to be admissible medical evidence, arising from the family doctor's treatment of the mother, about the absence of an impact on parenting from the mother's mental health conditions: see ¶ 98.

[167] In *Davidson v. Patten*, 2021 ONCJ 437, Curtis J. had before her a Motion to Change. The payor had asserted that one of the adverse changes in his circumstances was related to a "major physical and mental breakdown" that he had experienced. At ¶ 15 Curtis J. described the doctor's letters that the payor had provided (for example, just saying he "could not work...due to medical reasons") as sparse and inadequate. But Curtis J. also went on to explain what medical evidence should contain to be helpful to the Court. Although ¶ 15 of *Davidson v. Patten* does not address the distinction between a participant and litigation expert, it is clear that what Curtis J. wrote out, were some suggestions for the future about what might be included in a treating doctor's report (i.e. someone who might then be qualified as a participant expert).

[168] Regarding Dr. Swenson attributing responsibility to the husband for the wife's ailments, I note Krause J. admitted the opinion in a participant expert's report (that of a psychologist) on a summary judgment motion in *Simcoe Muskoka Child, Youth and Family Services v. A.H.*, 2021 ONSC 2789. The psychologist not only diagnosed a child with Post Traumatic Stress Disorder and provided recommendations for intensive psychotherapy, but also opined about the cause of the disorder, relating to exposure to exposure to domestic violence in the mother's home: see ¶43, 48-49, 51.

[169] At ¶ 72, Krause J. wrote:

Dr. Phalen's opinion arises directly from the treatment of her patient, Z. She formed her opinions relevant to the matters at issue while participating in the events and as part of the ordinary exercise of her expertise. As a result, I find Dr. Phalen to be a participant expert.

[170] None of which takes away from this Court's responsibility to apply its gatekeeping function. But sometimes, in some family law contexts, applying the fine line in the manner argued for by the husband, to limit what a long-standing treating family doctor can say about her patient, risks excluding relevant and reliable aspects of the evidence.

[171] That is essentially what the majority decision of the Newfoundland Court of Appeal recently wrote in *Pike v. Wight*, 2025 NLCA 33, when it upheld the trial judge’s admission of opinion from a family doctor. In addition to indicating at ¶ 30, that the family doctor could give evidence given his training in diagnosing and treating mental health disorders as both a family and emergency doctor, the Court also commented on the fact that the doctor had relied on some patient self-reporting. The majority found at ¶ 33, that was “neither unusual or surprising” as self-reporting is part of the diagnostic process when it comes to mental health. Any reports of abuse to the doctor though, did not on their own make the wife more credible; that evidence could only be tendered for permissible uses: see ¶ 34. I mention this here, because I intend to treat the wife’s reports of abuse to Dr. Swensen and others, similarly. This is discussed later on.

[172] Dr. Swensen and/or her colleagues at the medical clinic have treated the wife for over a decade. There is no one else who could provide evidence about the wife’s conditions and their impact. The wife was previously seen by a psychiatrist, but that has not been the case for many, many years. Had the wife tried to call the psychiatrist, his evidence would not only have been dated, but importantly, the psychiatrist too would be a participant expert, potentially engaging similar objections. Even if the wife retained a litigation expert (at a cost that she can likely ill afford), that person would not know her better than Dr. Swensen. There is no other medical professional here, and there are limited resources.

[173] In the result, I am prepared to accept that Dr. Swensen’s views about the wife’s future employability, are intertwined with her medical training and her years of experience on the ground as a treating family doctor, who deals with mental health. I accept she relied on reports from the wife to formulate her opinions. She also relied on her own observations and interactions with the wife in appointments over the years. While I address later on the issue of the wife’s reports of abuse to Dr. Swensen and others, here I prefer to deal with Dr. Swensen’s evidence about employability, and about the cause of the wife’s mental health, as a matter of weight.

[174] That does not mean that the Court will ascribe great weight to the original conclusion that the wife is likely to never work again, or about causation. Aspects of Dr. Swensen’s evidence were watered down in cross-examination. It was also based in part on self-reporting from the wife that was not entirely accurate.

(iv) The Weight to be Ascribed to Dr. Swensen’s Evidence

[175] Dr. Swensen’s opinion was undermined in cross-examination in certain respects.

[176] For example, when testifying about her employability, Dr. Swensen used words like “right now” and that she was treating “situational crisis”. She said that “these things” can “wax and wane” although at the moment, the wife has been “quite anxious”.

[177] Dr. Swensen testified that in the past, the wife attended at her clinic in varying degrees, depending on whether she was in a situation of “crisis” or not. When in crisis, the wife came to see her every 2 to 4 weeks of so (this has been so post-separation too), but Dr. Swensen said that when things were more stable, the wife attended less frequently, suggesting higher functioning when not experiencing situational crisis.

[178] Dr. Swensen referred to the post-separation circumstances in this case (as they were reported to her (and not entirely accurately) as a “situational crisis”, more than once. When answering questions about the wife’s plan (or lack thereof – see below), Dr. Swensen testified that the wife’s current medications were “helpful”, but she would “like the crisis to be over” and “that would be the best thing for her mental health”.

[179] In regard to that plan, various therapies from which Dr. Swensen testified the wife would benefit, have not been tried. I was left questioning the veracity of Dr. Swensen’s evidence that “things are unlikely to change”, when more steps have not been taken to try to improve the wife’s mental health, and thus without knowing the efficacy of such treatments after they are tried.

[180] Regarding Dr. Swensen’s evidence about causation (specifically, the extent to which the husband has contributed to the wife’s troubles), it was the wife herself who first attributed a lot of her mental health challenges to a number of things that have occurred in this relationship and in the ensuing litigation. In cross-examination, Dr. Swensen then agreed that she relied on the wife’s self-reports, too.

[181] But the wife’s struggles with mental health are long standing, not just a product of this relationship. She was having difficulties as a teenager and young adult, living in her parents’ home. There was some discussion during this trial about the wife’s mother even trying to have the wife “committed” or assessed. By the accounts of the wife, the husband and the wife’s father, the wife’s and her deceased mother’s relationship was difficult and fractured. The wife’s father even referred to his deceased spouse as “controlling”. He testified as if he had been caught in a loyalty bind between his spouse and his daughter, and that he even may have failed in his role as a father at times. Although the wife reconciled with her mother during the cancer diagnosis, she then

referred in Court to this period as hugely traumatic, an experience that she says she is still also recovering from.

[182] In my view, it is more accurate to say that the causes of the wife's illnesses are not "unifactorial". There are likely other causes, not just this relationship and whatever went on in it. In any event, at least when it comes to spousal support (as distinct from the causation analysis in tort), what the Court is usually addressing in a spousal support award, is the fact, extent and impact of the mental health troubles, not their cause: see *Pike v. Wight* ¶ 44-46; see also *Leskun v. Leskun*, 2006 SCC 25 ¶ 20-21

(v) **The Wife Did Not Have A Plan For Her Own Self-Support, Other Than Spousal Support**

[183] The wife came into this trial without a plan to improve her education or employment prospects. The wife does not have a resume, nor has she created one post-separation. When asked about her plan during her pre-trial questioning (portions of which were read into the record at trial), the wife said she was physically unable to work.

[184] The wife came into this trial without a serious plan to address better, her mental health either. Surprisingly, neither side asked very many questions about this of Dr. Swensen.

[185] During her examination-in-chief, Dr. Swensen testified that the wife is on a wait list to get into an eating disorders clinic, and she is taking Diazepam and Dexedrine (or Adderall) for her anxiety and attention deficit disorder on an "as needed basis" only. Dr. Swensen testified that the wife has tried longer acting medications in the past, but she didn't tolerate them well. Dr. Swensen testified that the wife's current medications were "helpful", but again, ending the current crisis "would be the best thing for her mental health". That was the extent of the evidence that the wife's counsel elicited about a medical plan.

[186] Much of the evidence that was elicited about what the wife needs to address better her mental health, was told to the Court as a result of questions it asked. In addition to commenting

that regular spousal support will decrease the wife's anxiety flowing from financial insecurity,⁹ Dr. Swensen testified:

- (a) She is continuing to have regular visits with the wife, every two to four weeks. In cross-examination, Dr. Swensen testified that her visits with the wife had been longer than the norm for a family doctor, for example lasting up to 30 or 40 minutes, often over a lunch hour or at the end of the day; but
- (b) Dr. Swensen said the wife would benefit from dialectical behavioral therapy, to assist her with her emotional regulation and her reactivity. This hadn't been fully explored prior to trial. Dr. Swensen said there are clinics that offer this therapy at CAMH and the North York Hospital. This type of program tends to be a 12-week program; and
- (c) Dr. Swensen said the wife would benefit from more regular psychotherapy, from a dedicated psychotherapist. No one called any evidence about the cost of this. Dr. Swensen estimated that this kind of therapy might cost \$250 per hour.

(6) Conclusions Regarding the Wife's Condition, Means, Needs and Other Circumstances

[187] In conclusion, I determine the wife's income to be \$13,339.00 in 2022, \$11,966.00 in 2023, \$17,463.00 in 2024, and \$14,912.00 in 2025, as set out in the DivorceMate calculations attached as **Schedule "B"**. This level of income includes imputed amounts of \$11,400.00 each year, which is what I find the wife can earn doing online internet sales, plus the actual investment income that she earned on her tax returns in 2022 to 2024. The wife's investment income for 2025, is based on the estimation/calculation done earlier on in this Judgment.

[188] In conclusion, I find the wife has some savings that she received from gifts and inheritances. The funds are not locked in. She has also made some poor financial choices post-separation. That said, the wife still does not have a lot of savings, and her budget is 'bare bones' right now.

⁹ I.e. The husband needs to pay spousal support in full and on time.

[189] I have considered whether some consequences should be imposed for the wife having come into this trial without a plan, for example should there be some additional imputation of income to incentivize the wife. However, based on the following summary of the evidence, which includes the portions of Dr. Swensen's evidence to which I am prepared to ascribe weight:

- (a) The wife has a number of mental health diagnoses. They are anxiety disorder, depression, attention deficit disorder, panic disorder, eating disorder (bulimia nervosa), asthma and migraine headaches. The wife's mental health is aggravated when there are situational crises; and
- (b) While there is insufficient evidence to find that the wife is completely unemployable and that is unlikely to change, given her mental health diagnoses, her lack of education and work history, and the stresses that she has experienced since the separation, I would not impute an income to her based on intentional under-employment or unemployment at this time.

D. Suggestions For Future Cases Involving Participant Expert Opinion Evidence from Family Doctors

[190] Before concluding my analysis about the wife's conditions, means and circumstances, I intend to address two issues about the health evidence in this case, because there were some problems that unfolded prior to trial (and during it), that could have been avoided. They need to be avoided next time, when the four-year review that I am ordering happens. What I say here may also serve as a guide in other cases.

[191] First, this Court strives to have single judge case management. Daurio J. was case managing this case. That included completing a Trial Scheduling Conference in the early fall of 2024. Yet there was then a period of almost a year when the parties next went before two other judges. Before one of those judges, they embarked upon litigating several disputes about the husband's valuator, among other things. The husband in particular delayed this case in so doing.

[192] When the parties then returned to Daurio J. a year later, they saw her at Trial Readiness Court. Meanwhile, during this close to a year long hiatus, they failed to resolve issues about the production of the wife's health records, leading to a different, live production issue when this trial started. This was quite surprising, since Daurio J. had earlier and proactively addressed the very production issue, in the fall of 2024.

[193] Although the health records issue had been dealt with in the fall of 2024 as indicated, this only got raised again it seems (at least to a judge) three days before the start of the trial. Daurio J. then addressed this complaint, again. At ¶ 6 of her Trial Readiness Endorsement of November 14, 2025, Daurio J. wrote:

Some records for a participant expert of the Applicant have been disclosed, others have not as the Applicant does not believe them to be relevant and disclosure would constitute an invasion of her privacy. The Court directed that the witness must bring the entire file to trial and a *voir dire* may be required (if determined by the trial judge). This may add to the length of the trial.

[194] Rule 20.2(14) of the *Family Law Rules* makes provision for a participant expert's report, if a party wishes to submit one. Additionally, rule 20.2(14)(b) requires production of documents supporting the opinion evidence that the participant expert plans to provide, at the request of the other party. In this case, the wife filed the four letters, which I have considered as reports pursuant to the subrule. But very few of the wife's health records had been produced for cross-examination. During the trial proper, I then learned that the decision about what from her health records would be produced prior to trial was left to the wife to decide herself, even though the privilege apparently being asserted required some legal analysis. The wife's side bears mostly bears responsibility for this.

[195] Disclosure is supposed to be addressed early, fully and properly. Where there are more complex production issues, like those that involve health records, this is even more important. This should have been better handled by the wife, with the assistance of counsel, proactively and much earlier. And if the husband was dissatisfied, then production issues of this kind ought to have been raised in case management much earlier prior to trial, and if necessary by way of pre-trial motion. A case management or motions judge could have decided, in accordance with the applicable legal principles such as in *M.(A.) v. Ryan*, 1997 *CanLii* 403 (S.C.C.), what additional material, if any needed to be produced.

[196] The parties in the end put this Court in the position, mid-trial, of having to oversee and deal with the problem, while ensuring that neither side was prejudiced in relation to timing of the production and the timing of their testimony. It made the conduct of the trial more complex and took up trial time. Fortunately with this Court's intervention, the production issues ended up not being litigated further, such as through the *voir dire* that Daurio J. opined at Trial Readiness Court had now become necessary. Mid-trial with her counsel's assistance, the wife made further

productions of her health records, totaling 333 pages in length, some of which had importance to the factual and credibility assessments in this case. Both sides relied on excerpts from the files.

[197] Second, there were complaints and objections by the husband to some of Dr. Swensen's evidence, which I already addressed. This could have been avoided had Dr. Swensen's letters and evidence been differently organized and presented, based on the above case law, all of which was available on CanLii, when the Court heard this trial. So in the future where a person intends to introduce evidence of a family doctor, acting *que* participant expert, it would be helpful for that evidence to answer the following questions (only some of which was done in this case, and only some of which was elicited after the Court asked):

- (a) To what extent did the doctor rely on self-reporting versus other diagnostic tools. What were the other tools, why were they selected and what weight did the doctor place on these different methods?;
- (b) What is the diagnosis? What do the diagnosed health conditions mean? What are their symptoms?;
- (c) What is the prognosis?;
- (d) If opinion is going to be offered about the impact of the medical condition on ability to work, then:
 - (i) How do the health issues impact the person's ability to work?
 - (ii) Can this person work at a previous job? Why or why not? What about on a part-time basis?
 - (iii) Can this person do some other kind of work? On a full-time basis? What about on a part-time basis?
 - (iv) What conditions are necessary to accommodate the medical issues for the person to be able to work somewhere, including even part-time work?
 - (v) For how long can this person not work? Why?
- (e) Regarding the treatment plan:
 - (i) Is there one? What is it? Has it been implemented yet?

- (ii) Is it being complied with? If not, why not?
- (iii) What medication is being prescribed? What is it for? Has it been effective? Would different medication help?
- (vi) What programs or services are available to address the health limitations?
- (vii) What is involved in going to these programs, in terms of frequency, location, wait lists, costs and duration?
- (viii) Have any referrals been made? Why or why not?
- (ix) Has the person followed through? Has there been participation in the program? What are the results?
- (x) Would there be any benefit to refer the person to a specialist?¹⁰

[198] I have drafted this list out as a guide, both for this case when the time for the review comes, but also for other family law cases. I strongly suggest that when it comes time for the review, the wife consider having any treating doctor(s) differently organize their medical evidence and opinions in a way that is better responsive to the kinds of questions the reviewing Court is going to have.

E. Analysis, Findings and Conclusions Regarding the Husband's Condition, Means, Needs and Other Circumstances

[199] Although the husband also had a difficult past, he was able to improve his circumstances over the years. While he had a series of low-income earning years, and his business interests have little value, his income has now been determined on consent, to be \$178,000.00 for 2022 to 2024, and \$165,000.00 going forward. This increased income is for the year of separation, and the years that followed it. I don't actually know when this increased income began, but no one made

¹⁰ Dr. Swensen did address this in her evidence. She testified about the role psychiatrists in Ontario currently play in a family doctor's treatment of a patient's mental health. She also testified that the wife has been referred to an eating disorders clinic.

arguments as to whether these are post-separation increases in income, and whether they should be treated differently in the support analysis, so I say nothing further about that.

[200] The husband's budget on his financial statement reveals annual spending of \$103,290.96. This budget has amounts missing. There is no amount budgeted for spousal support, and he placed TBDs for heat, water and utilities on his financial statement. Nonetheless, when considering the reasonableness of the budgets in this case, I observe that his budget is notably higher than the wife's.

[201] What the Court knows about the husband's new spouse's resources comes mostly from his Financial Statement sworn October 27, 2025. On page 5 of that statement, the husband says that his new partner earns \$35,000.00 per year and contributes \$2,000.00 per month towards the household expenses. Assuming this is accurate (as this was not really explored during the trial), this brings his annual budget down to \$79,290.96 (exclusive of the TBDs that he inserted rather than figures)

[202] Whereas the wife has savings from her inheritance, the husband does not have savings. He has debt according to his Financial Statement sworn October 27, 2025 (although \$30,000.00 of that debt is alleged to be money owing to his partner "for living expenses, legal fees, etc."). That said, the husband has a business which will continue to generate increased earnings, that the wife does not have.

F. Legal Principles Concerning the Length of Time the Spouses Cohabited

(1) The Relevance of the Length of Time the Parties Cohabited

[203] The dispute about the length of the parties' relationship was a significant one during this trial. In addition to being a statutory factor to consider in section 15.2(4)(a) of the *Divorce Act*, a finding about the length of time that the parties cohabited in this case has significance in the operation of the Without Child Support Formula of the SSAGs.

[204] Chapter 7 of the *RUG* says this about the Without Child Support Formula:

This formula relies heavily upon length of the relationship to determine both the amount and duration of support. Both amount and duration increase with the length of the relationship. This formula is constructed around the concept of merger over time which

offers a useful tool for implementing the mix of compensatory and non-compensatory support objectives in cases where there are no dependent children.

In short and medium length marriages without children the primary basis for entitlement will be non-compensatory and the formula generates transitional awards, with the length of the transition period proportionate to the length of the relationship. In longer marriages the basis for entitlement will vary depending upon the facts; it may be primarily non-compensatory (marriages without children), or a mix of compensatory and non-compensatory (marriages with grown children and crossover cases).

[205] *Molodowich v. Penttinen*, 1980 CanLii 1536 (Ont. Dist. Ct.) concerned the definition of unmarried spouses under provincial legislation. It remains the leading case that considers what it means to “live together in a conjugal relationship”. There was some debate in the closing submissions about whether the proper analysis is to consider if the parties qualified as spouses under section 29 of the *Family Law Act*, R.S.O. 1990, c. F.3, as amended, prior to the marriage. I am not doing that. Nor am I applying a statutory provision in *Family Law Act* in some other way to determine the length of the relationship.

[206] The proper question is to decide length of time the parties cohabited, cumulatively, which includes prior periods of cohabitation before marriage, and ending on the final separation. This analysis is done under section 15.2(4)(a) of the *Divorce Act*, not under the *Family Law Act*: see also Chapter 7 of the *RUG*. The factors in *Molodowich v. Penttinen*, still guide the analysis though: see *Kassabian v. Marcarian*, 2025 ONCA 239 ¶ 14.

(2) Applicable Legal Principles Concerning Cohabitation

[207] At ¶ 16 of *Molodowich v. Penttinen*, Kurisko J. considered 7 clusters of factors to decide whether there was cohabitation, namely:

- (a) shelter, which examines the parties living and sleeping arrangements;
- (b) sexual and personal behaviour, which examines the parties sexual relations, feelings, communications and interactions with one another;
- (c) services, which looks at how the parties behaved regarding domestic chores;
- (d) social factors, which considers how the parties acted in public and with each other’s families;

- (e) societal factors, which considers how members of community views the parties, including as a couple;
- (f) support or economic factors, which considers the financial arrangements between the parties, including about sharing expenses and acquiring property; and
- (g) children, which examines the parties' attitude and conduct concerning children.

[208] Now not every element in the above clusters of factors, needs to be present for there to be cohabitation: see *M. v. H.*, 1999 CanLii 686 (S.C.C.) ¶ 59. "The extent to which the different elements of the marriage relationship will be taken into account must vary with the circumstances of each case": see *Molodowich v. Penttinen* ¶ 16.

G. Analysis, Findings and Conclusions Respecting the Length of Time the Parties Cohabited

[209] The parties' narratives about this factor are very conflicting. Frankly there are inconsistencies in both of their accounts. Both sides awareness' of the impact of this finding on the spousal support claim, calls into question the credibility and reliability of the evidence given by both sides: see again ¶ 36(e) of *Re Novak Estate*. Because of the extent to which the accounts have conflicted, I have found it is useful to look to whether there is any objective evidence to help tip the scales: see *Macmillan-Dekker v. Dekker*, 2000 CanLii 22428 (Ont. S.C.J.)

[210] I prefer the husband's account as to the length of time the parties' cohabited. For the reasons that follow, I find the parties began cohabiting on November 7, 2011. I find there was an eight-month period of separation, between June of 2016, and January of 2017. The total length of this relationship for the purposes of section 15.2(4)(a) of the *Divorce Act* was 10 years and 4 months.

(1) The Residential Arrangements Between 2001 and 2011

[211] The wife was just 17 years old (turning 18), and the husband was 19, on December 7, 2001, when the wife says the parties started living together. The wife tied this date of cohabitation to the dysfunctional relationship she had with her mother. She said her violent and abusive mother

started kicking her out when she was 15 years old, and so that is how she “segued” out of the family home and I gather into a situation of cohabitation with the husband. The wife’s account was that she would return to her parents’ home for a day or two, from time to time, until she was eventually no longer able to officially come home.

[212] The wife says that when she left her parents’ home in 2001, she either lived with the husband at his parents’ house and snuck out in the mornings (which the husband denied), or they would stay together in motels. The wife then provides in her trial affidavit, a list of 14 residences in which she says the parties lived starting in 2002, along with the time periods that they purportedly lived there. She says these residences were the parties’ “main base[s]” over the years, although there were times that the husband was away for business or “had other gaps”.

[213] According to the husband, he made his first romantic gesture towards the wife on December 7, 2001, but they broke up within 6 months. It is common ground that they would break up and get back together many times over the years that followed. But according to the husband they were not living together back then. He pointed out that he didn’t even graduate from high school, he “crashed on friends’ couches” during the first, disputed decade, and he suffered from a drug addiction in the early 2000s. He didn’t have a job until the mid-2000s, and he was in receipt of social assistance and then assistance from JFCS, as already explained. He lived in poverty and experienced housing instability.

[214] I turn to the various specific residences between 2001 and 2011 that the wife says the parties shared, to highlight further why I prefer the husband’s account, as to the date of cohabitation.

▪ ***4099 Bathurst Street, North York, ON***

[215] According to the wife’s trial affidavit, this first place was a small, two-bedroom duplex that was not in good condition. The wife says that the husband and his friend, A.S. moved here in the summer of 2002, while she was in camp. She claims to have moved in later on, in about August. She also says that A.S.’ girlfriend lived there, too. The wife says she didn’t bring many of her personal belongings due to space limitations, and so many remained at her parents’ home.

[216] In his trial affidavit, the husband says that he still spent time at his parents’ overnights, even while renting this apartment. He says he wasn’t always in the apartment on a nightly basis. In December of 2022, the husband and A.S. went on a trip to Israel together. They moved into the next apartment, when they returned.

[217] While the wife may have visited the husband and even stayed over at this place, I do not find that the parties shared this residence as cohabitees. If there was any living together happening in this apartment, it was brief, and no more than a few months.

[218] It was common ground that this apartment was not in good condition. The wife's own testimony during her evidence-in-chief, included that this apartment was "decrepit", that she was "barely able to shower there", that she never saw the second bedroom, and that the bedroom that she allegedly occupied with the husband was devoid of furniture. She even said this residence was mostly used as a "home base" out of which the husband could sell drugs.

▪ ***35 Empress Avenue, North York, Ontario***

[219] It is common ground that the husband took over the lease to this place from his two friends, T.R. and M.F, after returning from the Israel trip. While it is common ground that the husband and A.S. moved here, the wife says that she and A.S.' girlfriend, moved here too. The latter is disputed.

[220] The wife says that she and the husband shared the master bedroom. The wife says in February of 2003, she hired a professional photographer to take pictures of her as a gift for the husband, which were hung over the bed. The husband agreed that the wife had given him photographs for Valentines Day, saying there was a time that the relationship was "hot and heavy". But he elsewhere said that he was casually dating the wife at this point only. He says that she did not bring her belongings, like clothes or toiletries, and she did not have a key. He says she visited, had dinner with him, or watched movies there, but didn't live there. He testified that he would be surprised if cumulatively she had even spent two weeks there.

[221] Notably, there was an armed robbery while at this residence. The wife says it occurred in September of 2003 and the parties no longer felt safe living there, so they moved. According to the husband though, the robbery happened almost immediately after the move in, in February of 2003, and he left soon thereafter. And the husband also says that the wife had a sexual relationship with A.S., causing strain. The husband says that when he stopped living with A.S. after the robbery, he did not see the wife for "an extended period of time". No one called A.S. or his girlfriend, to testify about these matters.

[222] I find the husband's account about the duration of time that he and A.S. occupied this place to be more accurate and reliable than the wife's, based on the evidence that came next. Once again, if there was any sharing of a residence here, it was temporary and transient. And the evidence

that came next established that there was then a lengthier period of time, that the wife did not account for, during which the evidence was much clearer, that two were not sharing a residence.

▪ ***322 Eglinton Avenue East, Toronto, ON, 5 Tangreen Court, North York ON, and H.A.'s Basement***

[223] After claiming that the parties remained longer at 35 Empress Avenue (until the robbery in September 2003), the wife did not really say where the parties lived for the next three or four months, until January 2004, when she claimed the parties moved into the next residence at 70 Kenwood Avenue. The husband, by contrast, and his witnesses, accounted for the next two years or so, until he moved to 70 Kenwood Avenue. He said the move to 70 Kenwood Avenue happened in April 2005, not January of 2004. Meanwhile, the husband's and his witnesses' evidence was that between 2003 and 2005, the two were not sharing a residence.

[224] For example, the husband says that after the robbery in February 2003, he left 35 Empress Avenue earlier than September. He moved in with a different friend, M.F., at 322 Eglinton Avenue East. He says he stayed there until September of 2003. He says he slept on a mattress behind the couch in the living room. He also says he went on a five-week trip by car with another friend, A.K., to British Columbia during this time frame.

[225] In his trial affidavit, the husband's friend, T.R., confirmed that the husband moved into this Eglinton Avenue address with M.F. He says this happened in March of 2003. He knew this because he used to live there too, but he moved out, when the husband moved in. Although in cross-examination, T.R. changed this evidence and said that he moved out by the early summer and not March, regardless, this happened before September.

[226] T.R. also explained that he continued to attend at 322 Eglinton Avenue East regularly even after moving out, on account of a business relationship he continued to maintain with M.R. T.R. confirmed that the apartment was a one-bedroom unit, and that the husband had replaced him sleeping in the living room. T.R. confirmed that the wife was not living there, although T.R. agreed that he may have seen the wife there on a couple of occasions.

[227] T.R. was confident that the wife was not living there; the apartment was too small. T.R. also knew, in general, that there were several periods of time during which the husband did not have a fixed address, and would be "couch surfing". Based on T.R.'s confirmatory evidence, I accept that the wife was not living with the husband at 322 Eglinton Avenue East, and that the husband was in fact living there for a time in 2003.

[228] The husband says that he next lived with his childhood friend R.D., in R.D.'s one-bedroom apartment at 5 Tangreen Court, in North York, between September 2003 and July 2004. While at 5 Tangreen Court, he slept on a reclining couch in R.D.'s living room. This too, stands in contrast to the wife's claim that as of January of 2004, the two had already moved into 70 Kenwood Avenue.

[229] In his trial affidavit, the husband's friend J.M. confirmed that in around 2003 to 2004, the husband was living on R.D.'s couch. J.M. knew this because he spent time at R.D.'s house "almost daily after work". He said he "never" saw the wife there, although in cross-examination, he said that perhaps his use of the word "never" was an overstatement. In any event, the point he made was that her presence there was not a regular occurrence. Based on J.M.'s confirmatory evidence, I accept that the wife was not living with the husband at 5 Tangreen Court, and that the husband was in fact living there for a time in 2003/2004.

[230] The husband then lived with another friend, H.A., who also gave evidence at this trial. The husband said he lived in the basement of H.A.'s home, between July and December of 2004, and then he returned to sleep on R.D.'s couch for the first part of 2005, until April.

[231] In her trial affidavit, H.A. explained how she came to know both the husband and the wife. She says that there were times where the husband would stay with her when he didn't have a place to stay. This included a period of time in or around 2003, when he stayed at in her home for six months.

[232] In cross-examination, the husband accepted that he may have been mistaken as to when he lived in H.A.'s basement, by six or eight months. H.A. was also asked about this, and admitted her historical account could have been off in a similar amount. The point that the husband made though, was that he was "bouncing around". And regardless of when he was in her basement, H.A. said that the wife did not live there; she was not welcome in her home back then, due to conflict. I accept based on H.A.'s confirmatory evidence, that the husband lived in H.A.'s basement for a time, and the wife did not live with them.

[233] In cross-examination, the wife contested that the husband was living in these places. But on another occasion, she said that there was a period of time between the robbery and the parties moving into the next place, being 70 Kenwood Avenue, that she could not remember exactly where she lived. Perhaps, she surmised, that she lived with a girlfriend, or at her parents' house. When

pressed on the latter, she maintained that she only went to her parents' house once per week, and only if she was able to. This recollection was not reliable.

[234] Notably, throughout this chaotic period, the husband was using drugs. He went from collecting Ontario Works to assistance from JF&CS. He said he hit his "rock bottom" in July of 2004, and he tried to kill himself. The husband said he only found the next place to live, being 70 Kenwood Avenue, around the time he obtained assistance from JF&CS. He saw a posting for this bachelor apartment on a wall while visiting his grandfather at a Jewish center. This happened in 2005.

[235] A 30 Day Assessment Report from June 2005, located in the husband's JFCS records, confirms that previously the husband had been staying with friends and couch surfing before he moved into the next place. The record then says that thereafter a family friend helped him to find an apartment and so he was now living in the Bathurst and St. Clair area of Toronto. 70 Kenwood Avenue is in that area of Toronto. No one called the author of this note during the trial, to contest its accuracy. This note, which I was referred to in closing submissions, is further confirmatory evidence that is consistent with the husband's account of when he started to occupy 70 Kenwood Avenue.

[236] I find the husband's and his witnesses' accounts more reliable as to this time period. While there were some minor inconsistencies in the husband's and his witnesses' accounts, they were more or less consistent about the housing instability that the husband experienced back then, and the absence of the two sharing a residence. The wife was unable to account for some of the time during this period.

▪ ***70 Kenwood Avenue, North York, ON***

[237] The dispute about 70 Kenwood Avenue is whether it started to be occupied in January of 2004 (the wife's account) or in April of 2005 (the husband's account), and regardless of that, whether the wife lived there. I have already accepted the husband's account about when he moved in. It is common ground that the husband kept this place, until August of 2005.

[238] Regarding whether only the husband, or both parties lived there, it is common ground that the husband rented this property in his name alone. The wife attempted to explain this away, by arguing JF&CS would not have provided accommodations for him, if they were aware he was residing with her. Not only do I not know that (such as by hearing from someone at JF&CS or reviewing some kind of document that sets out conditions of the support the husband was

receiving), but as the husband points out, there are other references in the subsequent JF&CS notes and records, to the husband being transparent about his living situation, such as with another roommate.

[239] In a different attempt to prove she was living with the husband at 70 Kenwood Avenue, the wife informed the Court that this residence did not have dedicated parking, so she parked on the street overnight. She referred the Court to a number of parking tickets that she obtained in the area (and near other subsequent residences) as evidence that she was living there. She pointed out that the number of parking tickets she tendered would not be exhaustive of the number of times she stayed there; they were just a representation of the times she received a ticket for parking illegally. The husband, by contrast, says the parking tickets were minimal.

[240] I reviewed the parking tickets closely. They do not support the wife's narrative, particularly as it concerns 70 Kenwood Avenue. Specifically, the wife tendered a package of 56 pages of parking tickets that she received between 2004 and 2006 on streets around the residences at 70 Kenwood, (and then near subsequent properties in which the husband resided, at 50 Raglan Avenue and 45 Dunfield Avenue).

[241] The first ticket in the package was from September 4, 2003, and was obtained elsewhere in Toronto; it had nothing to do with these apartments. The next tickets in the package were obtained on June 4, 2004 just after midnight, and then on July 13, 2004 at 4:22 PM in the afternoon, not overnight, outside addresses several blocks away in the Yonge and Eglinton area. Similarly I question the relevance of these tickets, as they pertain to 70 Kenwood Avenue.

[242] The first ticket near 70 Kenwood Avenue, was obtained in front of 58 Kenwood, not until May 26, 2005, at 1:40 AM, almost 1 ½ years after the wife claimed to have been living at the 70 Kenwood Avenue address. Not only is this more consistent with the husband's account about when he moved into this property, but again, the husband said that the wife's parking tickets would be minimal, and they were.

[243] Indeed, there were only four tickets on Kenwood Avenue, all overnights, being on May 26, 2005, May 30, 2005, June 9, 2005 and June 24, 2005. At best, the number of parking tickets reveals that the wife stayed over twice per month, in two months. This hardly proves a shared residence.

[244] I do not find on a balance of probabilities that the parties shared a residence at 70 Kenwood Avenue.

▪ ***50 Raglan Avenue, North York, ON***

[245] Next, in her trial affidavit, the wife says that she and the husband moved into this address in around August of 2005. According to her, they only stayed at this place for about a month or so, until the end of September of 2005. There is common ground as to the dates that this residence was occupied, but yet again not as to whether the parties lived there together.

[246] As with 70 Kenwood Avenue, it was the husband only, who was on, or associated with the lease (both parties say that the husband took over the lease for a friend). The husband testified that he moved his belongings from the previous residence, into 50 Raglan Avenue, in garbage bags, highlighting the situation of poverty in which he continued to live. He testified about having very limited financial resources, including not even having a cell phone plan. In cross-examination, the husband said that the wife came by this location rarely, if ever.

[247] Also once again, the wife says that she got parking tickets on overnights while here. Now the parking tickets that the wife obtained are greater than those she obtained near 70 Kenwood Avenue, but not by much. A careful review of these parking tickets that wife obtained on Raglan Avenue, or nearby on St. Clair Avenue West during this time frame, reveal that the wife was ticketed for overnight parking the area overnight, eight times in August and September, or about four times per month. There was a second ticket early in the morning of August 27, 2005 after what appears to have been an overnight on August 26, 2005, and additional tickets on the evening of Monday September 12, 2005 (i.e. sometimes there were multiple tickets obtained over the course of one stay, as opposed to signifying multiple stays).

[248] Both parties made reference to some police involvement that occurred at 50 Raglan Avenue, too. In her trial affidavit, the wife says that she was at a friend's house on September 2, 2005, when the husband stopped responding to her calls. She says she decided to "return" to the apartment, and heard a woman's voice inside. She knocked on the door, but the husband pretended that no one was home, and the husband called the police to have her removed. If the wife was then living at 50 Raglan Avenue, it was not clear to me how long she was away at her friend's for, and how it was that the husband sneakily arranged to have another woman come over, while she was out with a friend.

[249] Now a police occurrence report that was entered as an exhibit seems to suggest that this incident occurred in August, not on September 2, 2005 as the wife said. And the note does appear

to say that the wife was actually moving into this residence. But the husband says that he was spending the night with another woman he had met at a poker game hosted by his friend T.R. (T.R. also gave evidence about the poker game and the husband meeting this other woman). He says that the wife showed up and caused such a disturbance that the police were called. He highlights that the police report says the wife's home address was the same as her parents', and that she did not have a key or live there.

[250] No one called the police officer who authored this note to clarify what the note meant, or what was actually said. If the wife was moving in when this argument occurred, I don't know why she had to be banging on the door in 2005, as opposed to just entering with a key. And then a different report reveals that the police were called on September 2, 2005. That note says that on this occasion, the husband told the police he was trying to break up with the wife. The wife told the police that the husband was cheating on her.

[251] What all this reveals is the chaos that was happening. I don't know where the truth lies respecting the husband's two month stay at 50 Raglan Avenue in August and September of 2005, and whether the wife was actually moving in or not. There is a lack of clarity here. I am unable to find that the two shared a residence at 50 Raglan Avenue.

▪ ***45 Dunfield Avenue, Apt 2818, Toronto, ON***

[252] Next, in her trial affidavit, the wife says that the parties began living at 45 Dunfield Avenue on September 29, 2005, until June of 2006. This was a two-bedroom apartment that she says they shared with the husband's friend, A.K. The husband says he stayed at 45 Dunfield until December 2006, not June. This disparity doesn't matter.

[253] It is common ground that A.K. lived in this apartment. It is not common ground that the wife lived there too.

[254] In support of her narrative that she lived there, the wife says that she and the husband adopted a cat named "Kitty" from the neighbourhood while they lived there. The husband says that he adopted the cat on his own, and later on when the parties were actually living together, the wife let the cat out, and he says, "Kitty" never returned.

[255] The most reliable evidence about what went on during the husband's tenure at 45 Dunfield Avenue came from A.K.'s and J.M.'s accounts, combined with the parking tickets that the wife obtained nearby 45 Dunfield Avenue.

[256] A.K. agreed that the wife slept over when he lived with the husband at the Dunfield property at times. Perhaps by contrast, in his trial affidavit, the husband's friend, J.M., says he visited the husband and A.K. on a weekly basis. He recalls vividly during this time, that he travelled for work and would come directly from the airport to the apartment, to go out on weekends. He says that he, A.K., and the husband were living a "bachelor's lifestyle". He did not observe the wife living with them in the apartment. He did however recall the husband and wife later living together, at 177 Carrier Crescent, by contrast. J.M. testified that "we all got parking tickets" there, referring to the Dunfield property.

[257] But perhaps these accounts aren't inconsistent. In his trial affidavit, the husband said the wife would come over and scream at him. During his in-court testimony, he testified about a time that he was up late playing a video game, the wife wanted him to come to bed, and she caused a scene, screamed at him, slapped him, and spit on him. The husband testified that he spoke to A.K. about this the next day. As a result, she was not welcome in the apartment, and she did not visit for most of the remainder of his time living there. A.K. agreed that he and the husband tried to limit the wife being there, as the wife would argue with the husband, or yell when she visited, which made their living situation uncomfortable. He saw this incident of physical violence occur.

[258] 45 Dunfield Avenue is located in the vicinity of the intersection at Yonge Street and Eglinton Avenue, in Toronto. Notably, the parking tickets that the wife obtained outside 45 Dunfield Avenue, or on nearby Lillian Street or Soudan Avenue, were the most frequent. The wife obtained 39 tickets (9 of which were obtained over the course of only four different days (i.e. once again, more than one ticket per day)). In any event, the majority of the tickets were between the end of September 2005 when the husband moved in, until the end of December 2005. There was then a 5 month gap, with the last 6 tickets being obtained during a nine day period between May 31, 2006 and June 9, 2006.

[259] Based on the parking tickets, the wife appears to have visited more frequently at the Dunfield property, during the three months between the end of September 2005 and the end of the year. But consistent with their on again, off again relationship, and the evidence I heard about the fight that happened, followed by A.K. wanting the wife's attendance at the apartment limited, and the so-called bachelor lifestyle, the big gap in the tickets until mid-2006, is quite notable. Reconstructing this time period to the best of my ability, it is quite possible that the wife was a frequent presence at 45 Dunfield Avenue at first, then perhaps the fight happened, and then she wasn't allowed by A.K. to be present for several months. A.K. eventually moved out.

▪ **24 Cavotti Crescent, North York**

[260] In his trial affidavit, the husband says that he moved out of 45 Dunfield Avenue, because A.K. decided to move into a property his family owned. The husband says as he was then still in receipt of assistance from JF&CS, he could not afford to maintain the 45 Dunfield Avenue property on his own. So he moved into an unfinished basement in a home owned by a friend of his parents, that was being renovated.¹¹

[261] This next residence was located at 24 Cavotti Crescent. The husband says that while there, he started working for A&A Bumper and Fender, and got a German Shepherd named Princess from his employer. He stopped receiving assistance from JF&CS. This is when the husband started to turn his life around. The husband testified that he was working a lot when he lived at Cavotti, and he didn't see the wife frequently. He also said that his boss at the time didn't like the wife.

[262] The wife made no reference to this residence at all in her narrative in her trial affidavit. Then in cross-examination, she claimed that she stayed at 24 Cavotti Crescent too, which she went on to describe as a basement containing a toilet on a slab, a bed, a gym and various items. When it was put to her that she made no mention of this in her trial affidavit, she said she thought she had, and she was only there for a short period. Yet as I explain next, the wife said that the parties had already moved into the next residence at 4 Latimer Avenue, in Toronto, by this point.

▪ **4 Latimer Avenue, Toronto, ON**

[263] In her trial affidavit, the wife says that the parties lived in this bachelor apartment for three years, between June of 2006 and June of 2009. The husband by contrast, says he didn't move in there, until May of 2007, after leaving the Cavotti Crescent residence.

¹¹ I do note an inconsistency in the husband's evidence here, although it doesn't change my conclusion as to the date of cohabitation. In a JFCS 90 day progress report note covering the period between June 16, 2006 and September 14, 2006, that the husband referred me to in his written closing submissions, this move happened in September 2006, not June. Elsewhere he said he stayed at 45 Dunfield Avenue until December of 2006, as indicated.

[264] According to the wife, there was now tenant parking in the back, and so I gather the parking tickets stopped. The wife also says that the parties adopted the German Shepherd “Princess”, but as already indicated, the husband already had her from when he lived at 24 Cavotti Crescent.

[265] This is where one of the specific incidents of violence that I heard evidence about during this trial, occurred, the result of which the husband was criminally charged. I return to those details when addressing the wife’s tort claims later on, but insofar as whether the parties lived together at 4 Latimour Crescent or not is concerned, there is some information in the police records tendered about the incident, to which I was directed, and it has some bearing on the matter.

[266] A police occurrence report indicates that the wife’s residence was with her parents, as the husband would point out. At the same time, the synopsis dated August 19, 2007 says that the wife was spending 5 or 6 nights at 4 Latimour. When the wife was asked about the entry about her parents’ house, she said she told the police that she was living at her parents’ address, so as to not create confusion about her ODSP.

[267] For his part, the husband pointed out that there was a no-contact order in place after the criminal charges that were laid against him in August of 2007, in support of his argument that the two did not live there together. I was told that the charges were only withdrawn in November of 2009. The husband’s father was his surety. Yet he did not call his father to testify, for example to confirm whether the two abided by the release conditions and actually stayed apart.

[268] The husband’s claim that he did not have contact with the wife at all after the charges did not withstand scrutiny in cross-examination. In cross-examination, the husband watered down this evidence, saying it would have been weeks or months after the charges before the wife contacted him, that perhaps they bumped into each other somewhere, perhaps they went to one of her family events, or perhaps they had a lapse on a weekend, but they weren’t living together. The husband’s original statement about not having contact with the wife at all, is also inconsistent with the fact that the wife filled some prescriptions nearby, during the period of time that the criminal charges were pending.

[269] The wife however over-relied on the pharmacy record that she tendered, to try to prove a shared residence when the record did not establish that. The wife testified that she changed her pharmacy to a nearby drug store, since she was in fact living at 4 Latimour. She maintained in cross-examination, that she would not have driven “30 kilometers” to fill prescriptions at the pharmacy near her parents’ house. Yet by this point, on her account the wife had lived away from

her parents for years, so I am left wondering why the pharmacy had not changed beforehand. She also said she left her mail going to her parents, so on her version of events she would have been driving “30 kilometers” to get her mail.

[270] And like some of the parking tickets that she tendered, this over-reliance on the pharmacy record seemed exaggerated. The prescription history from the Shoppers Drug Mart near 4 Latimour only runs from September 25, 2008 to June 2009. It reveals that the wife filled prescriptions a total of five times only, over the course of eight months, once in each of September and October of 2008, twice in November of 2008, and then not again until June of 2009. In other words, in addition to the infrequent number of times that this record shows the wife used this pharmacy, the time period covered is less than one of the three years that she says she lived there. Perhaps she wasn’t taking medication consistently, but these time intervals were not explained during this trial.

[271] Finally, in his trial affidavit, the wife’s father recalled visiting the wife at this address. His statement about this does not tip the scales in the assessment of whether the wife was living there, though. He deposed that he went to pick the wife up, because the husband had lost his temper. This could have occurred if the wife was living there equally as if the wife was just visiting him. And in cross-examination, the wife’s father clarified that he did not enter the premises at 4 Latimour.

[272] In conclusion, I accept the husband’s evidence that he moved in here, in May of 2007. It may very well be that the wife was at the apartment at 4 Latimer a lot at first. At most, that was a four-month period. The evidence supports that stopped after the charges, at least for a while. I am unable to find on this record, that the parties were living together at 4 Latimour. I accept that the wife may have spent not insignificant periods of time there, particularly before the criminal charges, though.

▪ ***1448 Avenue Road, North York, ON***

[273] In her trial affidavit, the wife says that the parties began living in this residence between July of 2009, until approximately December of 2010. She describes this as a one-bedroom unit on the ground floor, with a small bathroom, and shared laundry facilities. The wife says that she converted a small nook in the apartment, into a “makeshift walk-in closet”.

[274] The husband’s account is that he moved in here, in November of 2009, after the criminal case against him was resolved. He says he lived here until January of 2011. He says that during

this period, he started dating the wife again, and they went on a trip together to Jamaica. But after the vacation, they broke up again. He said he dated other women, three of whom he provided the Court with their first names in his trial affidavit. The parties then went on a trip to Florida and on a cruise apparently, despite these other relationships.

[275] The precise details about the husband's apparent relationships with multiple woman are of lesser importance to the analysis. I accept in general that this is when the nature of this relationship started to change, in that some semblance of cohabitation began to emerge.

▪ ***2900 Bathurst Street, North York, ON***

[276] The wife says that the parties began living in this property in January of 2011. Based on her chronology, this lasted until about July of 2012. This was also a one-bedroom apartment. This residence followed the Florida trip and the cruise.

[277] In his trial affidavit, the husband says that he rented this apartment on his own, and he was the sole leaseholder, although during his in-court testimony, he said that the wife helped him find it.

[278] In his trial affidavit, the husband admits that the wife moved in, on or about November 7, 2011, as she was having arguments with her parents, and her parents attempted to have her committed to undergo a psychiatric assessment. After the wife was removed from her parents' home, her belongings were moved to a storage unit by her parents. The husband says that the wife moved in because she had nowhere to go. For the first time, she moved in clothing and other belongings. This was different from what happened respecting his prior residences.

▪ ***The Import of the Wife's Use of Her Parents' Address After 2001***

[279] A significant part of the wife's claim that she lived with the husband starting in 2001, rested on a claim that she had nowhere else to live. This was said to be so, even though the wife's parents' address continued to be used as the wife's reported address on a number of documents throughout the disputed decade, and for that matter after 2011 too.

[280] One interpretation of this, is that the wife was actually living with her parents, as the husband argued. The wife's explanation, repeatedly given, is that she just left her parents' home as her place of residence, as this was a stable place to have her mail delivered.

[281] The problem about drawing too many conclusions from this evidence about the wife's reported address on various documents, is that she continued to use her parents' address, even after it is agreed that she moved in with the husband. For example, irrespective of whether she lived with the husband beginning in 2001, or 2011, it emerged during this trial that the wife was dishonest with her relationship status to ODSP both before and after 2011. She never told ODSP that she was living with the husband, or later on, that she married him.

[282] The wife did the same thing with the Canada Revenue Agency. Exhibit 23 contains the wife's tax returns or Notices of Assessment for 2013 to 2024. In the tax years 2013 through 2019, the wife said that her address was at her parents' house and/or that she was single, even though she was already living with the husband, as of 2011. She said she was single on her tax returns for 2017, 2018 and 2019, even though she was married by then.

[283] 2020 is the first tax year that the wife listed as a residence, one of the residences that she was sharing with the husband. That year, she also reported herself as married, for the first time. Notably, this is also the first year in which the wife stopped receiving ODSP, but in favour of other government benefits to which her entitlement did not depend on marital status.

[284] For his part, the husband testified that it wasn't until 2019, when the wife disclosed to him that she was in receipt of ODSP, despite the fact that they had been married since 2017. I have reason to doubt the husband's claimed ignorance about the situation respecting ODSP, given the way the wife's tax and financial affairs were structured in 2020 and 2021, compared alongside his own returns. The wife first reported self-employment income, and then employment income earned from the husband's business to the Canada Revenue Agency, entitling her wife to other government benefits and employment insurance. The husband's Notices of Assessment for 2021 and 2022, attached to his Financial Statement sworn October 27, 2025, reveal that he used his parents' address for his tax returns, too, even though he was married by then. According to the 2019 and 2020 tax returns, included in Volume 2, Part 1 of the wife's Exhibit Book (which no one entered into evidence perhaps because of the settlement respecting the husband's income), the husband claimed to the CRA to be single until 2020 also.

[285] The bottom line here is that the manner in which one or both of them represented their addresses to ODSP or to the Canada Revenue Agency, does not assist me in determining when the wife no longer had a place to live at her parents house. It does however reveal another example of both of these parties lacking in credibility, since the wife was dishonest to ODSP, the husband probably knew about it despite what he claimed during the trial, and both were dishonest to the Canada Revenue Agency. It looks to me like they coordinated their tax filings to deceive ODSP and then to access other benefits.

▪ ***The Wife Was Removed From Her Parents' Home in 2011 and Had Nowhere Else to Live***

[286] While I did not find the evidence and arguments about the manner in which the wife used her parents' address to be of much assistance to resolve the dispute about when she had no where else to go, I did hear other, conflicting evidence, about whether the wife was kicked out of her parents' home for the first time in 2011 (thus aligning with the husband's narrative that 2011 marked the first time of significance that the wife actually moved in), or as early as 2001 if not earlier (thus aligning with the wife's narrative). While the wife agreed an incident occurred resulting in her removal in late 2011, she also said that she started to get kicked out of her family home before, much earlier too.

[287] The wife's father's trial affidavit said something similar. In it, the wife's father says that his spouse told their daughter to leave in 1999. While he says she returned for a few days on occasion, she was not permitted to live at home. During his examination-in-chief, the wife's father even testified that he and his wife had her belongings put into a storage locker for one month. His recollection was that the putting of her items into storage occurred a decade earlier than 2011.

[288] This stood in contrast to the admitted removal in 2011, which the wife's father admitted had also occurred, at which time items were put in storage, I guess again on these narratives. In particular he said that in 2011, a plan was devised to lure the wife to the family home, so the police could then give her a "strict ruling" to stay away. While he said she had been returning only infrequently before this, now she had to hand over her house key and her car key on this occasion.

[289] There was a prior inconsistency regarding the wife's father's claim though, that the wife had been decisively kicked out in 1999 or 2001, whenever it may have been (as opposed to only in 2011). In 2016, after the parties lived were living together, but during a period of time when the husband and wife were separated, the wife would get charged with criminal harassment and

extortion for her obsessive behaviour directed at the husband and his parents. The wife's father swore an affidavit in October 2016, in the criminal proceeding in the Ontario Court of Justice, in his support of his daughter. He deposed that his family used to live across the street from the husband's family years ago. At ¶ 3 of that affidavit he specifically wrote, "...[i]n approximately 2005, I moved my family to another home in the Thornhill area. The sole reason for the move was in attempts to keep [the wife] and [the husband] apart", because he felt that the husband was not "good company for [his] daughter".

[290] The affidavit says nothing about the husband and wife already cohabiting by 2005 (as the wife and her father would claim at this trial) and the wife already no longer living with her family of origin back then. Rather this affidavit specifically says that the wife's father was moving the family, his daughter included, to another home back in 2005, to keep the two apart. That would have been unnecessary, had the wife actually been kicked out in 1999 or 2001.

[291] In his cross-examination of the wife, the husband's counsel referred the Court to a health record dated November 10, 2011, found in the wife's clinical notes and records that she only produced mid-trial. The note reads as follows:

Ct attended appt as scheduled; she was upset, stressed has (*sic.*) she noted she had a panic attack, and her mother went to a judge to have ct hospitalized. Ct was taken to hospital by police. It does not seem that she was admitted into the hospital for an extended period of time. She attempted to get a hold of her father and initially he was speaking with her, but not (*sic.*) he is not communicating with ct. It seems that her family were providing her with support, but they have stopped doing this. Ct is attempting to obtain car, owes money for highway tolls and she is attempting to deal with this. Ct presently staying with her b/f [*my emphasis added*].

[292] This was a contemporaneous report.

[293] By contrast, where some of the wife's health records refer to her having lived with the husband in the past, they document the wife's historic, not contemporaneous reporting. For example, Dr. Swensen's letter of June 6, 2023, states that the clinic's records reveal, that when the wife first came to the health center, she was living with the husband at 2900 Bathurst. That is contemporaneous and largely accurate. Dr Swensen's letter of October 8, 2025 however, states that the clinic's records showed that as of 2011, the two had been living together for 10 years at 2900 Bathurst Street. This entry is obviously not accurate, as the husband only acquired the

Bathurst residence at the outset of 2011. When she was cross-examined, the wife claimed that her previous medical records of a former doctor would reveal contemporaneous reports about her addresses at the time, but these records were never produced.

[294] I find the wife was kicked out of her parents' house and had nowhere else to live as of November 2011, not in 1999 or 2001.

(2) Some Notable Changes In the Residential Arrangements After 2011

[295] The wife identified in her trial affidavit, six more residences that she says the parties shared between 2012 and the parties' separation in 2022 (i.e. 12 Carhartt St, North York, ON (2012-2013); 177 Carrier Crescent, Maple, ON (2013-2016); 1331 Major Mackenzie Drive, Vaughan, ON (2016); 15 James Finlay Way, North York, ON (2016-2017); 800 Lawrence Ave W, Toronto, ON (2017-2018); and 82 Golden Trail, Vaughan, ON (2018-2022). The wife continued to live at 82 Golden Trail post-separation, until the end of 2023.

[296] Given the common ground that the wife did move into the property at 2900 Bathurst Street, at least by the end of 2011, it is not necessary for me to follow through with the parties' narratives in as much detail about where they lived after 2011. What I find notable more about the post-2011 period are the presence of certain indicia of cohabitation after 2011, which were absent before.

▪ ***Utility Bills***

[297] For example, in cross-examination, the wife claimed that she had set up most of the utilities for all of the parties' residences, either in both of the parties' names, or in her name alone. She made a separate, specific statement, that her name was on a Rogers cable bill each year. While she claimed to have "produced a lot", she was confronted in cross-examination with the fact that she had not produced a utility bill prior to 2011, with her name on it. No such utility bill was entered as an exhibit.

▪ ***The Wife Began to be Identified on Rental Documents***

[298] Another example of things changing, is that the wife began to be identified on leases. She was listed as an "occupant" on the lease documents related to 12 Carhartt Street, and 177 Carrier Crescent.

[299] The wife would not just readily admit that she was not a tenant, or an occupant on any of the rental documents prior to this. In cross-examination, she said things like it is difficult to get evidence from so long ago, in addition to repeating that she was on the lease documents beginning with Carhartt Street (which came after 2011 anyway).

[300] Notably, the wife claimed that the Carhartt Street lease also “confirms our previous two addresses”. A close read of the document shows that it does not actually confirm that. Rather it just lists two previous addresses. And the applicant for the lease is the husband. The references are the husband’s friends. The employment information is the husband’s. This reference to previous two places of residence could equally be read as referring to the husband’s prior residences.

[301] This kind of argumentative testimony undermined the wife’s credibility.

▪ ***The Wife Began to be Identified on Tenant Insurance***

[302] The wife was a co-insured on a tenant policy at 177 Carrier Crescent. This too was after 2011.

▪ ***The Wife Only Had Keys to the Rentals, Starting in 2010***

[303] For his part, the husband testified that the wife never had a key to “anywhere”. This was an over-statement.

[304] In cross-examination later on, the husband was confronted with a police occurrence report dated September 12, 2010 that made reference to the wife having a key. Specifically this occurrence report that makes reference to the key and the wife spending a lot of time at the husband’s place. While I agree with the wife’s argument on page 9 of her written closing submissions, that the husband lost credibility when he claimed in cross-examination to have given the wife a key that morning, what I find more significant is this. The parties had resumed dating yet again in their on and off relationship, in 2010. This was just before the two went on the Florida trip, after which they would move in together in the Bathurst Street apartment the following year. The husband ought to have just admitted that the wife had the key as part of this time period during which the nature of their relationship was changing, instead of trying to tailor his evidence.

▪ ***The Parties Lived Apart At Times, But There Were Reasons For It***

[305] Before 2011, when the parties were apart, there were reason for it: break ups, housing instability, chaos, poverty, criminal allegations, charges and release terms.

[306] After 2011, when the parties lived apart, there were certain different reasons for it. For example, the husband gave evidence about how he was away for work in other provinces in 2014 and 2015. But notably he says they spoke over the phone daily, and he provided financial assistance to the wife. There was the time when the husband stayed with the spouse of a deceased employee, to assist her.

[307] Now there was also the time in 2016 after the wife's criminal charges. This was a separation and it was more akin to the pre-2011 chaos than any post-2011 separateness for a reason, but I am finding that the 2016-2017 8 months period should be deducted from the total period of cohabitation, explained later.

[308] For the most part though, unlike what went on before, these post-2011 periods when the parties were apart, are precisely the kind of situations in which two persons may be occupying separate residences, but still be cohabiting: see *Climans v. Latner* ¶ 58.

(3) The Parties' Sexual and Personal Behaviour

[309] In her trial affidavit, the wife says she doesn't have a lot of documented photographs between 2003 and 2010, because this was the era before Instagram, one before which "taking photos became common". She says she took photographs on digital cameras or on film rolls, but lost them over the years.

[310] The wife nevertheless talked about trips between 2003 and 2010, to New York, Montreal, Ottawa, Muskoka, Blue Mountain, Mont Tremblant, Jamaica and Florida. And despite the wife's statements about social media, she did manage to tender some photographs of the two acting as a couple in the community, or on their trips, including photographs that were taken during the disputed decade.

[311] The husband's response in his trial affidavit to the wife's evidence about travel, was not that it did not occur *per se*, but rather that the wife exaggerated the extent to which that travel reflected they had a luxurious lifestyle.

[312] These photographs, or the fact that the parties travelled together, aren't particularly dispositive of the issue of whether the parties were cohabiting though. They could also be

indicative of two persons who could have been merely dating and travelling together, at the times they were taken.

[313] By contrast, a more significant change in the nature of this relationship, that occurred after they started sharing residences in 2011, is that the parties got engaged. This happened in December of 2012.

[314] I heard too much, often distasteful evidence from the parties about their own sexual behaviour over the years, and allegations about the others. This included conduct before and after 2011. The relationship was clearly unstable during the first decade. If there was infidelity after 2011, it is not dispositive. The husband overstated the extent to which he was in relationships with other persons after 2011.

[315] What was more notable to me, was that the husband immediately resumed his relationship with the wife after these post-2011 relationships with persons named “Krista” and “Jordi” ended. In the case of Krista, the husband even started a trip to New York with her over the Christmas holiday in 2014, and ended the trip in early 2015, with the wife. After the relationship with Jordi ended, the parties reconciled, and married in June of 2017.

[316] Except perhaps because he sought to establish an eight month period of separation (with reference to his relationship with “Jordi” in mid-2016 into early 2017), it is peculiar that the husband otherwise sought to minimize the spousal nature of his relationship at all after 2011, such as by emphasizing the periods of time that he lived away for work, or his allegation that he found a condom in the house in 2014 (accusing the wife of infidelity). This was peculiar because his position by the end of the trial was that there was in fact cohabitation as of the end of 2011. As such, some of this evidence was unnecessary and by calling it, he undermined his credibility.

[317] Relatedly, it was unhelpful and problematic that the husband made untrue statements in his pleading about dates of cohabitation. In his Answer, he said the parties cohabited as of May 1, 2016, or as of February 2017. In his Financial Statements sworn August 1, 2023 and October 9, 2024, he said that he started cohabiting on May 1, 2016. During his in court testimony under cross-examination, he tried to recast these statements as typographical errors, or errors by his counsel. This undermined his credibility.

(4) Social and Societal Factors

[318] For the most part, I found the husband's collateral witnesses were credible and with some minor inconsistencies, their evidence was mostly reliable. I have already referred to some of that evidence, which I found credible. Although they were friends and perhaps his friends could be said to be partisan towards him, the husband called witnesses who had knowledge of the various places in which he lived during the disputed decade. The husband's witnesses observed this relationship to be toxic.

[319] By contrast, I did not find the wife's collateral witnesses to assist her position. I have addressed the wife's family doctor's evidence elsewhere. Her evidence about whether the wife lived with the husband or not prior to 2011, was based on the wife's historic and not contemporaneous self-reports.

[320] I have addressed some of the wife's father's evidence elsewhere. The wife's father said he was caught in between his wife and his daughter and their conflict, and he felt some guilt. The wife's father's credibility and reliability was undermined, when he testified about when the wife had to leave her parents' house.

[321] Incidentally though, there was even a notable change as it concerned the wife's father's evidence about the parties, after 2011. Whereas the wife's father only visited the wife's alleged residences once (Latimour) before 2011, he didn't enter the property. That was markedly different than his evidence about visiting the Bathurst Street apartment, after 2011, at which time he did some handyman work for the couple and enjoyed brunch with his daughter and her partner. In other words, he socialized with them as a couple, in their home, after 2011.

[322] The only other witness that the wife called to testify, was J.L. J.L. was a former business associate of the husband's. Perhaps J.L. was a more important witness on other points, had there not been a Statement of Agreed Facts on some of the financial issues, for example. As it concerns the relationship, J.L. didn't even meet the husband until 2009 (at the tail end of the disputed decade), there was a gap in contact between the husband and J.L. for several years after that, and what he knew about the husband's relationship after that was primarily based on general talk at work. He never even entered any of the parties' homes. J.L.'s evidence did not assist me. The absence of other evidence from friends or family supporting the wife's narrative as to the date of cohabitation, is notable.

(5) Financial Support

[323] The financial arrangements in this relationship changed in 2011, in that some were put into place, whereas they were not in place before. After the wife actually moved in with the husband in 2011, he provided her with financial assistance. The husband sent the wife e-transfers, and added her as a secondary cardholder on two credit cards. I was given records of the e-transfers starting in 2013. This provision of financial support also continued while the husband was out of the province for work. The husband testified that he gave the wife access to his banking password around the time the parties married. The wife testified that she became a beneficiary of the husband's health benefits in 2021.

[324] By contrast, I was not shown documentary evidence that these kinds of things happened prior to 2011. In cross-examination, the wife was asked whether these kinds of financial arrangements occurred previously; she responded that the husband gave her cash, and perhaps he gave her his bank card "sometimes" .

(6) The Eight Month Period of Separation Between June 2016 and January 2017

[325] There was an eight-month separation between about June 2016 and January 2017.

[326] According to the wife, the husband disappeared for a week after they moved into 1331 Major Mackenzie Drive in May of 2016. The wife says she continued to live there until end of May, when she was charged with harassment "by the husband's parents", and "by [him]". The wife says that the husband had disappeared to pursue a relationship with another woman. The wife says that the police told her she couldn't live there, after she was charged. The wife says she moved into 15 James Finlay Way in June of 2016. The husband says that the wife went to live with her parents after the charges.

[327] The wife says the criminal charges were resolved by way of a peace bond in November of 2016. She says the husband later moved back in with her in January 2017, after he ended relationship with "Jordi" in December 2016. The husband agreed that he moved in with the wife again, in January of 2017. Notably, the parties would then get married six months later, in June of 2017.

[328] The husband has an account of his whereabouts during this time frame, during which he talked about his relationship with "Jordi". Where exactly the husband was living and what he was doing, is unimportant to the findings that I am making. It is common ground that there was a separation, between June of 2016 and January 2017.

(7) Conclusions Regarding the Length of Time the Spouses Cohabited

[329] In conclusion, there are obvious credibility and therefore reliability issues with both parties' evidence as to the length of their relationship. I have addressed most, if not all of them. But based on my summary of the evidence and the findings above, I find the following emerges from the evidence about the situation prior to 2011:

- (a) The relationship was chaotic, unstable and dysfunctional;
- (b) The wife visited and stayed over at the husband's places at times, for spurts of time. There is no clear or established pattern of a shared residence;
- (c) The husband lived in poverty, experienced housing instability and drug addiction for a portion of the first decade in dispute, until he started to turn his life around;
- (d) The non-party witnesses better supported the husband's position than the wife's; and
- (e) There was conflicting evidence and credibility issues about when the wife was removed from her parents' house and thus had nowhere else to live. I have found that occurred in November of 2011, not in 2001.

[330] I find that the following emerges from the evidence about the situation after 2011:

- (a) The relationship was still chaotic, but there is common ground that the parties shared residences;
- (b) The wife began to be identified on documents associated with having a shared residence, like on lease agreements and tenant insurance documents;
- (c) The parties got engaged;
- (d) Even after the husband's trip to New York with "Krista", or after the eight month separation and the relationship with "Jordi", the parties immediately reconciled. In the case of the New York trip, it happened mid-trip;
- (e) The non-party witnesses' evidence about how they viewed the parties, and this relationship, changed; and

- (f) The husband began to provide the wife with financial support by way of e-transfers and access to his bank accounts and credit cards.

[331] I find the parties began cohabiting on November 7, 2011.

[332] I have considered the wife's argument, based on ¶ 37 of *Depatie v. Squires, 2011 ONSC 1758*, that brief periods of separation are not deducted from the length of cohabitation. But that paragraph of *Depatie v. Squires* refers to three short periods of separation, totaling either four to six months, or eleven months, after which the parties reconciled. There isn't even an agreement or a factual finding referred to in that paragraph of the case, about how long any particular separation was. While I agree with counsel's earlier submission about not examining this relationship too microscopically, and would not deduct time every time these two had a fight and the like, the eight months in issue in this case followed the wife's criminal charge, during which time the parties maintained separate residences for a number of months, and the husband was in some kind of relationship with someone else ("Jordi"). The *RUG* also says that periods of separation should be deducted: see again Chapter 7 of the *RUG*.

[333] Therefore, I will deduct the eight-month period between June of 2016 and January of 2017. I don't find a further period between January 2015 and August 2015 should be deducted, as stated in ¶ 30 of the husband's written closing submissions. I'm not clear on what exactly the husband says happened there, or why there should be a deduction.

[334] I find the parties cohabited for a total of 10 years, and 4 months (calculated as 132 months (November 2011 to October 2022 = 132 months) less the eight month separation = 124 months, or 10 years and 4 months).

H. Analysis and Findings Regarding the Functions Performed by Each Spouse During Cohabitation

[335] The next statutory factor to consider in section 15.2(4)(b) of the *Divorce Act* is the functions performed by each spouse during cohabitation.

[336] Little evidence was called about this factor. The evidence I heard about this was basically elicited by some brief questions in cross-examination of the wife, and briefly during the husband's evidence-in-chief.

[337] The husband worked outside the home, including out of the province at times, during their cohabitation before marriage. The wife did not work outside the home.

[338] In cross-examination, the wife said that she was a “homemaker”, she ran the household, cooked delicious meals, kept the house clean, did laundry, made sure that there was food in the house that the husband liked, and went grocery shopping almost daily.

[339] During his examination-in-chief, the husband said he paid bills (although the wife had access to his accounts as indicated elsewhere), he did yard work, and he bought groceries. He said that he cooked food for himself; he said the wife cooked for herself. He said that when the wife ordered take out, she would include items for him. He said the wife would ask him to pick up food items on the way home regularly. He said they both cleaned the house; he cleaned the kitchen. He said that neither were particularly good at cleaning, but together “we made it work”.

[340] I find the parties divided domestic chores roughly equitably, when the husband was at home.

I. Any Order, Agreement, or Arrangement Relating to Support

[341] The last statutory factor to consider in section 15.2(4)(c) of the *Divorce Act* is any order, agreement or arrangement relating to support of either spouse. The only Order that exists is the temporary without prejudice Order of Daurio J. dated November 3, 2023, discussed earlier. I have taken it into account in deciding whether there should be a retroactive Order (see below). There is no other order, agreement or arrangement.

J. Analysis, Findings and Conclusions Regarding Lifestyle and Economic Merger

[342] The wife exaggerated the parties’ lifestyle during the cohabitation and the marriage, calling into question the reliability of her evidence on this point, too. In her trial affidavit, the wife said that during both the relationship and the marriage, the parties “lived a privileged life that far exceeded what [she] could have ever afforded on [her] own.” She made reference to luxury vacations, expensive resorts, dining at “high end restaurants”, shopping at “high end retail stores” and going out “recreationally all the time”. She made reference to various trips. The wife also made reference to luxury cars, and the husband’s watch.

[343] I have already dealt with the trips elsewhere. I will add here that the husband has provided in his trial affidavit, conflicting evidence about the extent to which these trips were luxurious, and

about how they were paid for. The evidence about the wife's cars for example, generally revealed that that they were bought second hand at more modest cost. While I heard some evidence about an expensive handbag purchase that the wife made in Montreal (which turned out to be an imitation), the purchase price of the wife's purses that I heard about during this trial were otherwise more modest, too.

[344] In his trial affidavit, the husband denied ever owning a Breitling watch. There was no watch included on the husband's net family property, for reasons already addressed elsewhere.

[345] It bears repeating that for the first decade during which the wife asserted the parties were cohabiting, the husband was in receipt of social assistance, and then assistance from JF&CS. Essentially he moved repeatedly, while experiencing periods of homelessness. The wife was in receipt of ODSP until 2019, after the parties' married, and then collected other government benefits, as explained.

[346] I am prepared to infer that in the second decade, after the husband began to earn more (I don't know exactly when that happened), they spent more money. But this inference has to be tempered. They still moved several times. They rented properties; they did not buy. And as the husband says in his trial affidavit, he does not have savings. The wife is the one who has savings, as a result of *inter vivos* gifts, and her inheritance, not because of the fruits of this marriage or some kind of lavish lifestyle.

K. Analysis, Findings and Conclusions About the Impact of the Separation, Its Aftermath, The Parties' Conduct During the Prior Proceedings, and the Wife's Request for a Remedy Under Rule 1(8) of the *Family Law Rules*

[347] Both parties gave evidence about the separation, the impact of that on each of them, and how one or the other of them treated the other post-separation. I will address this evidence here, for the purposes of section 15.2(6)(a) of the *Divorce Act*, and to dispose of the wife's argument about rule 1(8) of the *Family Law Rules*.

[348] I accept that the wife was impacted by the separation and its aftermath. For example I accept that the husband did things like stopped paying rent, cut off the wife's access to his bank accounts and credit cards, and made mean comments to the wife. I accept that the wife has been worried about her financial circumstances post-separation and this contributed to heightening situationally, her mental health challenges.

[349] I accept the husband too, experienced anxiety after the separation (he described a “panic attack” that he had, brought on by the wife’s conduct). I accept that the wife inundated the husband with communications, the contents of many of which are inappropriate.

[350] Both sides’ behaviour was problematic in different ways, after the wife launched this proceeding on April 25, 2023. I do not intend in this particular Judgment to map out the prior proceedings in any more detail than I may have already done so; that history is otherwise fully documented in the Court’s Endorsements, in the Trial Record.

[351] In summary, the wife accuses the husband of playing games and delay. Both sides caused delay.

[352] The husband delayed providing disclosure and otherwise contributed to the delayed production of his valuation reports. The husband then settled the valuation and income issues with the wife, rendering the issue largely moot.

[353] The wife heavily relied on her mental health in this case, in support of her claims. But the production of her health records should have been differently handled prior to trial.

[354] The husband came into this trial in breach of Daurio J.’s temporary without prejudice support Order. According to a chart dated October 14, 2025, the husband stopped paying Daurio J.’s temporary without prejudice support Order in full, in July 2025. He only paid \$1,000.00 on July 21, 2025, and then nothing after that. Orally, I heard that he paid a further \$1,400.00 on November 18, 2025 (after the chart). That means he came into this trial owing \$11,600.00 in support arrears (i.e. \$2,800.00 per month x 5 months = \$14,000.00, less \$2,400.00). Unless he made further payments, his arrears under the temporary Order would now be higher as more months have passed while this decision has been under reserve.

[355] I heard some distracting evidence about the fact that the husband needed a tax letter, as some kind of excuse for the non-payment. It is not an excuse, and it should have been sorted out between counsel. In any event, quite notably once the tax letter was signed on October 14, 2025 (basically one month before this trial), the husband did not bring his arrears into good standing.

[356] The wife asked for a remedy under rule 1(8) (i.e. a form of security) at the outset of the trial. It was too late at this point. What she wanted me to order would have potentially derailed the trial, if the security was not then posted. The parties were ready to start the trial.

[357] At ¶ 8 of her written closing submissions, the wife then re-cast her request for a remedy under rule 1(8) as an end of trial request to order the husband to bring the arrears up to date forthwith, and to pay support properly while the Judgment is under reserve. In other words, an order to comply with an order. She also wanted me to say, that the failure to do so would have costs consequences.

[358] The Court didn't make that Order. Daurio J.'s temporary without prejudice Order already requires payment. If it goes unpaid, the husband is in default. I don't have to order him to comply. He is already obliged. I am not prepared to comment in advance on what the outcome will be respecting costs. The wife can argue whatever she wants about costs when the time comes as can the husband.

[359] While there is some merit to the suggestion that the circumstances of this chaotic, volatile and dysfunctional relationship, and the separation, and the husband's behaviour, particularly post-separation, have impacted the wife's mental health adversely, the wife's struggles with mental health are also long standing, they probably pre-date the start of the parties on and off relationship, and they certainly they pre-date the cohabitation in 2011. As already indicated, the causes of the wife's health problems are not "unifactorial".

[360] Nevertheless, I am prepared to say what should now be the obvious to the husband. Despite the fact that the wife exaggerated the severity of some of the husband's post-separation financial misconduct and the state of her own finances, it is never appropriate to disobey a support order. In a case like this, not ensuring that there is financial stability (by failing to comply with a support order), is extremely counterproductive to the husband's ultimate objective, which is for the wife to better her circumstances and achieve some self-sufficiency: see *Leskun v. Leskun* ¶ 21. If this kind of behaviour continues, it will likely impede the wife's progress: see *Jones v. Hugo*, 2012 ONCJ 211 ¶ 69, 75; see also this Court's treatment of non-compliance with a temporary support Order and its impact on both duration of support, and the form of a spousal support Order, in *Carter v. Carter*, 2024 ONSC 5414 ¶ 391 – 405, aff'd on other grounds by 2026 ONCA 29.

L. The Court's Support Order

(1) Retroactivity

[361] A trial judge can make a different final Order for prior periods, including those that Daurio J.'s temporary without prejudice Order covered. Were I to do so, my Order would replace Daurio J.'s temporary without prejudice Order.

[362] In *Kerr v. Baranow*, 2011 SCC 10, Cromwell J. wrote that the relevant factors for retroactive spousal support are the needs of the recipient, the conduct of the payor, the reason for the delay in seeking support, and any hardship the retroactive award may occasion on the payor spouse: see ¶ 207. At ¶ 211, Cromwell J. cited *MacKinnon v. MacKinnon*, 2005 CanLii 13191 (Ont. C.A.) for the proposition that the “usual commencement date” is the commencement of a proceeding, absent a reason not to make the order effective as of that date. Cromwell J. said that where an order is sought from the commencement of the proceedings, this will be a significant factor in how the relevant considerations are weighed.

[363] I have considered making a retroactive Order, or at least an order to the date of the wife’s application, given my finding of delay on the part of the husband, and his failure to come into this trial with Daurio J.’s Order in good standing. However I have in the end declined to do so because:

- (a) Although Daurio J. made a ‘rough and ready’ without prejudice Order at a case conference, as things turned out, the quantum she ordered falls between the medium and high range of the SSAGs for all the years post-separation, other than 2025. In 2025, it exceeds the high range just by \$48.00. With the benefit of hindsight, the Order she made was quite prescient;
- (b) Daurio J. ordered spousal support to start in November of 2023. I have ordered a post-separation accounting of the rent before that, which provides the wife with some measure of indirect support for the past (i.e. a form of housing support);
- (c) As the amount Daurio J. selected ended up falling within the SSAG ranges, I decline to make any further adjustments to spousal support retroactively, whether for the period she ordered, or beforehand to either the date of the application or the date of separation. This avoids the need to engage in any further tax adjusting calculations to net down the support to after tax dollars;
- (d) The husband doesn’t have any savings to pay additional retroactive support prior to November 2023 anyway. I have already ordered the post-separation accounting, which will be a financial imposition on him as it is (although one of his own making, given his failure to meet his rent obligations under the lease);
- (e) The husband has a second family. While that does not weigh heavy in my analysis of the go forward support (see below), I am prepared to take it into account in deciding

against ordering additional, retroactive support: see *Khan v. Khan*, 2024 ONSC 4045 ¶ 316;

- (f) To the extent that the wife has not been fully compensated, retroactively, this can also be taken into account when duration is finally determined in the review that I am ordering. Once it is collected in full, the wife will have received 2 years and 4 months under Daurio J.'s temporary without prejudice Order. As explained below, I am ordering front end loaded spousal support to start March 1, 2026 for a further four years, with a review. As my calculations below also reveal, when the front end loaded support is adjusted, the wife will have effectively received 8 years and 2 months of support at the high range by the time of the 2030 review, which is comfortably within the durational limit of the SSAGs; and
- (g) The review judge can take the total period of support paid into account at that time and decide what should happen beyond the review.

(2) Recognizing Disadvantage from the Marriage Breakdown and Relieving Economic Hardship

[364] Pursuant to sections 15.2(6)(a) and (c) of the *Divorce Act*, this Court's support Order should recognize disadvantage arising from the marriage breakdown and attempt to relieve any economic hardship that the wife is facing, arising from the breakdown of the marriage.

[365] My 2025 SSAG calculation at **Schedule "B"** to this Judgment produces ranges monthly support of \$2,064.00 at the low range, \$2,408.00 at the mid range, and \$2,752.00 at the high range.¹² In my view, these sums do not achieve either objective.

[366] The wife has a 'bare bones' budget as already indicated. Even were I to order support at the high range of the SSAGs, she would not have enough money to meet her needs.

¹² These range amounts may be modestly higher than what they should be, in reality. The 2025 DivorceMate Calculation attached uses a relationship length of 11 years, whereas it should have only been 10 years and 4 months. The new software data inputs did not allow me to input the 8 month separation (or if it did, I couldn't figure out how to achieve that). Given my decision to Order support above the ranges, any small discrepancy does not matter and I have not bothered to try to manually calculate the difference to the range amounts.

[367] Aggravating that, at ¶ 71 of her written closing submissions, the wife advances a proposed budget that would provide her with a better standard of living, but one that she describes as still relatively modest. It totals between about \$5,600.00 and \$5,800.00 per month, depending on whether there is continued health coverage available to her through the husband's plan.

[368] On the one hand, the proposed budget is inflated in two respects. First, the wife has \$1,046.00 per month for taxes, based on her DivorceMate Calculations. The taxes are inflated above what will be owed in reality, as they are premised on the Court ordering higher amounts of spousal support that it intends to Order. The wife's tax calculation also fails to take into account the evidence that I heard, that the wife recently became eligible for the disability tax credit. This lowers the taxes she pays.

[369] Second, the wife has also increased, in her proposed budget, her rent expense from \$2,500.00 per month to \$3,000.00. This is not reasonable. While her financial statement complains that her current rental is small, the only other evidence I heard about this was from the husband, who said she chose to rent in an expensive area. I do not find it reasonable for the wife to include an amount to upgrade her housing, when she already has housing in place, there are limited resources to go around here, and various other interests need to be balanced, including her own need to focus on her health.

[370] On the other hand, the wife's proposed budget doesn't include amounts for medication. I didn't hear great evidence about how much these cost. That said, the wife either wants the husband to maintain his benefits for her, or to pay her a separate amount of \$250.00 to purchase a health plan. As I am dealing with this separately, I need not make any other adjustment to her budget for medication. But the wife did not include in her proposed budget, any amounts for the psychotherapy, that Dr. Swensen testified is recommended. This is different than the medication. Insurance coverage, whether through the husband's existing plan, or a paid replacement plan, will not fully cover psychotherapy. For example the existing insurance coverage that the husband has, only pays \$600 per year.

[371] Therefore, when I remove the taxes, leave the rent expense at \$2,500.00 as is currently on the wife's Financial Statement, add in \$500 per month for psychotherapy (estimated twice monthly sessions (in addition to the free services that Dr. Swensen provides) at an estimated cost \$250 per session), then with her proposed food budget of \$750.00, utilities of \$100.00 per month, gas and insurance of \$400.00 per month, phone and internet of \$200.00 per month, and minimal

entertainment expenses of \$100.00 per month, the wife requires net disposable income of \$4,550.00.

[372] The 2025 DivorceMate calculation at **Schedule “B”** reveals that the wife needs monthly support of \$3,647.00 to achieve that, when her other minimal income is taken into account. If I increase the spousal support amount by a little over \$300.00, to \$4,000.00 per month, this will allow the wife some modest discretionary spending so that she can have a better quality of life.

[373] I recognize that the sum of \$4,000.00 per month exceeds the SSAG ranges. I am choosing to “front-end load” the support in this fashion to enable the wife to live, and to get treatment, and to develop a plan: see Chapter 10 of the *RUG*: see also *Jones v. Hugo* ¶ 69, 75.¹³ In the end, this benefits the husband too, because it puts the wife in a position to succeed.

[374] I note the “basic needs/hardship” exception in Chapter 12.7 of the *RUG* also allows the Court to depart upwards from the Without Child Support Formula where the recipient has little or no income, and the formula generates too little support for her basic needs. The authors of the *RUG* state that this exception is not used that often. I too do not need to rely on it *per se* in light of the front end loading, although I find it would have been an alternative remedy on the facts of this case, had I not used front end loading.

[375] I am ordering this quantum of support despite any arguments about the husband’s second family. At ¶ 38-41 of *Fisher v. Fisher*, 2008 ONCA 11, Lang J.A. writes that while courts generally recognize a “first-family-first” principle, “inevitably new obligations to a second family may decrease a payor’s ability to pay support for a first family”.

[376] The issue has to be considered in context. Having another child produces obligations to the second child that will affect the first family because of the new obligation to a child. But in *Fisher v. Fisher*, the payor voluntarily assumed significant responsibility for the second family when he knew, or should have known of the pre-existing obligation to the first family, the second

¹³ In *Jones v. Hugo*, Sherr J. ordered support at the high range of the SSAGs on a motion. While he didn’t go above the SSAG ranges, I rely on this decision for his analysis about the support recipient needing more support immediately, to meet his needs, but also in aid of working towards self-sufficiency.

family was capable of contributing towards its own support, and there was no evidence that the obligations to the second family would impoverish the first.

[377] There are some similarities here. On the one hand, the husband has a new obligation to his new child. On the other hand, he entered into this new relationship knowing of his obligations to the wife. In any case the result I am ordering leaves the husband with just about 60% of the net disposable incomes to meet his own expenses, which include his second family. In particular, he is left with \$7,100.00 per month, or \$85,200.00 per year, which meets his annual adjusted budget of \$80,000.00 (after his new spouse's contribution – see above). This is even after paying for additional amounts for life insurance, and health benefits that I am ordering (if he cannot maintain his existing health benefits for the wife) (see below).

(3) Promoting Economic Self-Sufficiency, Duration of Support, and Review Orders

[378] Pursuant to section 15.2(6)(d) of the *Divorce Act*, the Court's spousal support order should, insofar as practicable, promote the economic self-sufficiency of each spouse within a reasonable period of time: see also *Leskun v. Leskun* ¶ 25-28.

[379] My 2025 SSAG calculation's duration does not produce indefinite support. The duration ranges from 5 years and 2 months, to 10 years and 4 months,¹⁴ subject to variation and possibly review. While the wife has not proven that she can never work again, she has not begun to work towards self-sufficiency either, as indicated.

[380] I would not order a termination of spousal support now as primarily argued for by the husband. I do not know when to do so. I agree with the closing submissions that there is uncertainty. I am prepared to try to give some direction as to a plan for the spousal support review, based on the evidence I heard from Dr. Swensen about next steps: see also *Leskun v. Leskun* ¶ 36-38.

[381] Review orders are to be tightly circumscribed: see *Leskun v. Leskun* ¶ 39. Because the parties came to an agreement as to the husband's income mid-trial (before the Court heard the rest

¹⁴ The actual calculation says between 5 ½ and 11 years of support, but I have adjusted this downward to account for the period of separation: see the previous footnote for further information.

of the evidence and rendered this decision), and that agreement includes a review of the husband's income in January 1, 2028, there may unfortunately need to be two reviews. I would not necessarily have ordered two reviews, but for the parties' agreement, as I already indicated.

[382] While I make provision for it to respect their consent, the parties do not need to embark upon the 2028 review, if they do not want or need to. And again, the only purpose of the January 2028 review is to look at the husband's income.

[383] This 2028 income review should be a simple review. For example, the parties could simply agree to exchange disclosure and undertake calculations using a methodology similar to one the valuator used prior to this trial (whatever that methodology is; the report was not introduced into evidence given the settlement), to determine the husband's income. They could then apply the other findings that I have made in this Judgment about the wife's income, to determine whether there should be an adjustment to the wife's support after that. But they also have to recognize that I front end loaded the support, in part by looking at the wife's needs, and the parties' budgets. A variation to the husband's income may or may not change the number ordered.

[384] If they cannot agree and the question is litigated, then the husband will likely have to obtain expert evidence of his income, just as he did during this proceeding. I am prepared to remain seized in 2028, to streamline any income determination issues, and to adjudicate the review.

[385] I am setting the main review to occur any time after four years from the commencement date of this Court's spousal support Order (i.e. at any time after March 1, 2030). Another four years should give the wife time to move on from this relationship, to deal with her health and to consider what she wants to and can do for work.

[386] Assuming all the support arrears owing under Daurio J.'s temporary without prejudice Order and the amounts owing under this Court's Order are paid in full by the time of that review, the husband will have paid \$270,400.00 in gross dollars. This is effectively 8 years and two months of support at the high range (i.e. \$270,400.00 divided by \$2,752.00 per month = 98.25 months, or about 8 years and 2 months). Although because of the front end loading, the wife is getting more now to address her needs for a shorter period of time, when adjusted back down to the ranges, this effective period of 8 years and 2 months is a bit more than the mid-point of the durational range that the SSAG calculation generates.

[387] I am not requiring the wife by Order, to take specific steps pending the review. But she is responsible for her mental health and she will be expected by the Court in the future review to

have acted reasonably. The Court heard from Dr. Swensen about the referral to the eating disorders clinic, about the need for dialectical behavioural therapy, and about the need for additional psychotherapy. If the wife doesn't follow through with these treatments proactively and stops accessing health care as she has done in the past, until the next crisis, the reviewing court may look upon this unfavourably. If the wife spends her front end loaded support irresponsibly, and does not access the health care that I have made provision for, the reviewing Court may look upon this unfavourably.

[388] Indeed, the wife can expect that when this matter is reviewed the review judge will want to know what the wife has done, including whether she has continued to meet regularly with Dr. Swensen, why or why not, whether she has attended at the eating disorders clinic, whether she has accessed regular psychotherapy, and whether she has participated in a 12-week course of dialectical behavioural therapy. The wife can expect that the Court will want to hear about the results of those treatments, and what efforts she has made to re-enter the work force. Earlier, I set out some guidelines about what the wife's medical evidence should have contained at this trial. The wife can expect she will need to answer similar questions in the review.

[389] Because the review is happening before the upper durational limits in the Court's SSAG calculations, the review judge can decide, whether the support should terminate at the time of the review, or whether the wife should continue to receive support, for some or all of the remaining duration in the SSAG calculation, and if so in what amount. Or, if the husband continues to breach orders and doesn't pay, or some other not contemplated incident happens, the situation may be different. Or the reviewing judge may consider whether the duration should be extended under the illness and disability exception based on further medical evidence at the time: see Chapter 12.4 of the *RUG*. Or, the wife needs to understand that at some point the husband's support obligation to her may be fully discharged, even if she continues to have need and health issues: see *Bracklow v. Bracklow* ¶ 60 and 61.

[390] In other words, what both sides should be taking from this ruling is a warning, already expressed elsewhere in this Judgment: their behaviour between now and the review will be scrutinized in the review; the husband needs to fully comply and pay; and the wife needs to start taking some steps here to address her issues.

[391] This main review cannot proceed in a summary fashion as the more narrow 2028 income review that the parties agreed to. In 2030 (or thereafter if the review is pursued later) either party

will have to bring a Motion to Change, and the case will proceed in the normal course in case management. The parties are to return to Daurio J. as their case management judge.

M. Health Benefits

[392] The wife testified about the various health costs she has, and that she used the health benefits made available to her under the husband's plan, to cover them. Given what I heard from the wife's family doctor, I do not need to address this further. I have already accepted that the wife has or should have health expenses, like medication and therapy, that are necessary pending the review.

[393] The wife says that starting in May of 2023, and again in around August of 2024, the husband removed her access to his health benefits plan. Counsel had to get involved. Quite frankly, the wife's evidence was confusing about whether the wife had been removed as a beneficiary, or whether this was exaggerated. It may be that the husband had just changed her ability to make claims directly to the insurance company via an online app or insurance website. In cross-examination, the husband said that the wife remained a beneficiary of his health plan, both at the date of separation, and at the time of the trial too. He denied removing her access to the benefits, but admitted to having changed a password to an online portal.

[394] This issue was also raised prior to trial in case management. In his Endorsement of March 14, 2025, Bennett J. noted that the wife wanted access to the online portal, but granting that would allow the wife to see "all of his private information". Bennett J. recommended that the parties contact the insurer to see if a separate password could be given, that accessed only her medical information, failing which claims would have to be submitted by paper.

[395] Unhelpfully no meaningful solution was offered up to this conundrum after that, or during this trial. The husband claimed he said he would pay for benefits for the wife "until this matter was resolved in court". That doesn't address what will happen going forward and it didn't address how claims would get submitted. Both sides acted irresponsibly by not addressing health benefits issues fully and properly prior to trial. Frankly, they should have settled.

[396] In that regard, I wasn't even given the benefits book originally, to know whether coverage could be maintained for the wife after a divorce. I was also not given evidence of the cost of another benefits plan, and then wife then said she wanted \$250.00 per month.

[397] At the end of this trial, the husband's benefits book was entered as an Exhibit (only at my request), after the testimony about the benefits had already occurred. The first few pages of the benefits book include a benefits card for the wife. There are details about how claims get submitted. No one sought to call any further oral evidence about the benefits, after introducing the benefits' book.

[398] Page 6 of the benefits book has information about how claims can be submitted. While claims can be submitted through a portal, the wife can also have providers submit claims directly if they are willing to do so (like a pharmacist or a dentist), and anything else can be submitted manually. I take this to mean that at least some of the wife's health expenses (such as any drugs obtained at a pharmacy) will be directly submitted and paid to the provider. There is no problem with that.

[399] The larger problem is that it is not clear to me whether the wife's coverage will continue after a divorce. Page 4 of the benefits book provides that the parties are spouses by virtue of marriage, or common law for more than 12 months. Page 5 of the book requests that the Plan Administrator be notified of a separation or a divorce. No one called any evidence about whether the husband can maintain the wife, for example post-divorce.

[400] I am prepared to order the husband to take all steps to maintain the wife as the beneficiary of his health plan, including after the divorce, if he is allowed to do so by the terms of the plan. The wife can have any health care providers who are willing to do so, such as pharmacies or dentists, submit claims directly to the insurer. If she has to submit other claims herself, then she can do so manually by paper claim. The husband will be ordered to sign a direction to the insurance company, a copy of which is to be given to the wife, directing that any insurance proceeds for claims that she submits, be reimbursed to a bank account of her choosing. If the insurer will not do this and the husband receives any reimbursements of health expenses that the wife paid for, he shall within 48 hours of receipt, send them to the wife by e-transfer with proof of the deposit. Any non-reimbursed amounts to the wife may be enforced as spousal support.

[401] The wife asks that I order the husband to pay \$250.00 per month for health benefits if the existing benefits are not provided. While the evidentiary record about the cost of this is imperfect, this amount seems to be a reasonable enough estimate. I will order that if the husband cannot continue to make his benefits available because the plan will not allow it, he is to provide written confirmation from the plan. If the plan will only allow the husband to designate one spouse, he is to designate the wife, and not his new partner. If the plan will not allow the wife's coverage to

continue as a spouse, because of the separation or divorce, the husband is to inquire as to whether he can buy the same coverage for the wife through his group plan. If so, he shall do so. His written conformation is to address fully all of these things.

[402] If the husband can do none of these things and these matters are confirmed by the insurance company, then commencing the first of the month after the coverage ceases, the husband shall pay the wife an additional \$250.00 per month. The wife can use these funds to buy her own plan, or to spend on health, like her medication, directly. The cost of therapy is already separately calculated in the budget and the spousal support number, above.

[403] The obligation to maintain health benefits or to make \$250.00 payments as an alternative, will be made subject to the four-year review.

N. Life Insurance

[404] The wife asked for life insurance in the amount of \$500,000.00. Like the health benefits, I heard insufficient evidence in support of the wife's claim for life insurance.

[405] The husband only has \$25,000.00 of life insurance. The beneficiary of the policy used to be the wife, but it is now his child of his new relationship (according to his testimony – documentary proof not tendered as an exhibit during the trial).

[406] At ¶ 74 of *Katz v. Katz*, 2014 ONCA 606, Simmons J.A. wrote:

... where there is no existing policy in place, a court should proceed carefully in requiring a payor spouse to obtain insurance. This case demonstrates the desirability of having evidence of the payor's insurability and of the amount and cost of the available insurance. Careful consideration should be given to the amount of insurance that is appropriate. It should not exceed the total amount of support likely to be payable over the duration of the support award. Moreover, the required insurance should generally be somewhat less than the total support anticipated where the court determines that the recipient will be able to invest the proceeds of an insurance payout. Further, the amount of insurance to be maintained should decline over time as the total amount of support payable over the duration of the award diminishes. The obligation to maintain insurance should end when the support obligation ceases – and provision should be made to allow the payor spouse to deal with the policy at that time. Finally, when proceeding under the *Divorce Act*, the court should first order that the support obligation is binding on the payor's estate.

[407] In keeping with these principles, the wife does not need life insurance of \$500,000.00. The total obligation from the start of Daurio J.'s temporary without prejudice Order (some of which has already been paid) until the review, is \$270,400.00, in gross dollars. This sum doesn't take into account that some payments have already been made, or that the amount should decline over time.

[408] No evidence was called about the husband's insurability, or the cost of buying some other policy. So I asked, given his prior health conditions, including a stroke.

[409] The husband testified that he had looked online to see how much a new insurance policy would cost. He said he looked at a \$100,000.00 policy and a \$1 million policy. Why such a huge range, I do not know. He said it had previously cost him \$100 per month to get a \$60,000.00 policy, and that he had such a policy for about 8 months to a year, but it lapsed. He said that there was no medical examination required for this policy, but when he looked at another \$400,000.00 policy that would cost \$1,500.00 per year, and there was a medical requirement.

[410] I was not given any documentation about any of this. More importantly, what the husband will be able to obtain, whether a \$400,000.00 policy like the one he looked into, or a lesser one, and at what cost, is not clear to me given his prior stroke, and the fact that a medical examination has not been pursued.

[411] Because of the oral evidence (the only evidence that I have) that he was able to obtain the \$60,000.00 policy without a medical examination, I will order that. Given that this sum appears on its face to be less than what the wife requires, I will not order that the obligation step down pending the review. I will also first Order that support be binding on his estate, as *Katz v. Katz* directs. The obligation to maintain life insurance, and the amount of life insurance will be made subject to the four-year review.

O. Whether Spousal Support Should Be Indexed

[412] The wife has asked for the Court to order that her spousal support payments be indexed. Section 34(5) of the *Family Law Act* provides statutory authority to order indexing, but this case is governed by the *Divorce Act*. There is no specific statutory language about indexing in the *Divorce Act*. Case law provides there is authority in a *Divorce Act* case to order indexing in a manner consistent though: see *Linton v. Linton*, 1990 CanLII 2597 (Ont. C.A.); see also *Majeed v. Chaudry*, 2018 ONSC 4758 ¶ 121.

[413] As the Ontario Court of Appeal wrote in *Linton v. Linton*, the purpose of indexing is to insulate the payee from having the support erode due to inflation. It also avoids additional variation applications. However at ¶ 84 of *Johnson v Taylor*, 2015 ONSC 3750, Healey J., citing an earlier decision of Perkins J. in *Hogan v. Hogan*, 2001 CarswellOnt 3436 (SC.J.), added an additional consideration, being the assessment of which spouse is better able to bear the risk of inflation.

[414] I would not order indexing in this case for the following reasons:

- (a) I have front end loaded the support, going above the SSAG ranges;
- (b) The quantum arrived at takes into account the wife's needs and her proposed budget, which was based in part on estimates;
- (c) It also takes into account the husband's budget and capacity to pay;
- (d) The husband is self-employed; I do not know that his income will increase commensurate with inflation. Evidence about the likelihood of that prospect was not called; and
- (e) There is also provision being made on consent, for an income review in 2 years, and I am ordering the main review thereafter. The concerns about any erosion due to inflation are not as prevalent here under the circumstances; any appropriate adjustments can be made in due course.

[415] The request for indexing is dismissed.

PART VII: THE WIFE'S CLAIM FOR DAMAGES FOR INTENTIONAL TORTS

A. The Wife's Pleading and Her Change in Position at Trial

[416] The wife claimed in her Application "general, aggravated, punitive and special damages payable by the Respondent to the Applicant for the tort of family violence pursuant to the common law consistent with the findings in *Ahluwalia v. Ahluwalia*, 2022 ONSC 1302 (CanLii)". Subsequently the Ontario Court of Appeal reversed the trial judge's creation of a new tort of family

violence: see *Ahluwalia v. Ahluwalia*, 2023 ONCA 476.¹⁵ An appeal of the Ontario Court of Appeal’s decision had already been argued before the Supreme Court of Canada when this trial was heard. The Supreme Court’s Judgment has not yet been released.

[417] The wife did not amend her pleading after the Ontario Court of Appeal’s decision. In her Opening Trial Statement, the wife’s counsel said that the wife was not pursuing the tort of family violence. She reframed her claim for damages based on the torts of battery, assault and intentional infliction of emotional distress. Her counsel sought to qualify that, saying that perhaps the situation would change mid-trial, if the Supreme Court released its Judgment (which did not happen). The Court asked counsel for the wife whether the wife was seeking an adjournment. Counsel confirmed that the wife was not seeking an adjournment.

[418] My analysis will therefore be according to the existing torts that the wife in the end pursued, despite her failure to formerly amend. She effectively asked to amend at trial. I intend to follow what Vella J. did in *Barreto v. Salema*, 2024 ONSC 4972: see ¶ 156; see also McGee J.’s analysis in *Sethi v. Sethi*, 20205 ONSC 5079 ¶ 39-57, about the role of pleadings and how the Court considered the tort claims notwithstanding improper pleadings.

[419] The husband did not object when the wife said she intended to proceed in this fashion. He was not taken by surprise; he responded with evidence. The husband included with his closing submissions, his analysis about the three traditional torts.

B. Applicable Legal Principles

[420] The torts of assault and battery are distinct. So are they both distinct from intentional infliction of emotional distress (formerly called intentional infliction of mental suffering).

(1) Assault

[421] To establish an assault, the wife bears the onus to prove on a balance of probabilities that she experienced “the apprehension of harmful or offensive contact” created intentionally by the husband: see *Ahluwalia v. Ahluwalia* ¶ 64; see *Barreto v. Salema* ¶ 257; see also A Linden, B.

¹⁵ All subsequent references to *Ahluwalia v. Ahluwalia* in this Judgment, are cited to the Ontario Court of Appeal’s decision, and not to the trial decision.

Feldthusen, M. Hall, E. Knutsel and H. Young, “Canadian Tort Law”, 12th Edition (Toronto: LexisNexis, 2022) at ¶2.04.

[422] The wife must subjectively believe that contact is imminent. The belief must be reasonable in the circumstances: see “Canadian Tort Law” at ¶ 2.04, pages 55-57.

(2) Battery

[423] To prove battery, the wife bears the onus to prove on a balance of probabilities that the husband made non-consensual intentional physical contact of more than a trivial nature, or the bringing about of harmful or offensive contact. The onus then shifts onto the husband to establish that the contact was neither intentional nor negligent. He can also establish a defense, like self-defense: see *Ahluwalia v. Ahluwalia* ¶ 61-62; see *Barreto v. Salema* ¶ 258-261; see also “Canadian Tort Law” at ¶ 2.03.

(3) Intentional Infliction of Emotional Distress

[424] To establish the tort of intentional infliction of emotional distress, the wife must prove on a balance of probabilities that the husband’s conduct was flagrant and outrageous, calculated to harm her, and the conduct caused her to suffer a visible and provable illness.

[425] The latter no longer requires a medically diagnosed psychiatric disorder or ailment. But the illness “must be serious and prolonged and rise above the ordinary annoyances, anxieties and fears that people living in society routinely, if sometimes reluctantly, accept”.

[426] Under this relaxed definition, the Court is concerned about the symptoms caused by the conduct, rather than about a formal diagnosis. The Court may infer the requisite intent for this tort, where the perpetrator wishes for the consequences that follow the act, or “if the consequences are known to be substantially certain to follow”: see *Ahluwalia v. Ahluwalia* ¶ 69-70; see *Barreto v. Salema* ¶ 169-171; see also “Canadian Tort Law” at ¶ 3.02.

C. Context, Myths and Stereotypes

[427] The Court acknowledges what other courts, including the Ontario Court of Appeal and the Supreme Court have said in recent times, about the context in which family violence occurs.

[428] In particular:

- (a) It is pervasive, and it to be recognized, denounced and deterred: see *Ahluwalia v. Ahluwalia* ¶ 1, 37;
- (b) There can be significant challenges when it comes to proving violence that occurs in a family environment;
- (c) Although Karakatsanis J.’s comments to this effect at ¶ 144 of *Barendregt v. Grebliunas*, 2022 SCC 22 were made in the context of a relocation case, where the Court was considering the broad statutory definition of “family violence” under the *Divorce Act*, the Supreme Court nevertheless recognized these problems of proof. Citing social science and legal literature, the Court recognized that allegations of family violence are “notoriously difficult to prove”, with family violence often taking place behind closed doors. There may be a lack of corroborating evidence; and
- (d) A victim of violence may suffer trauma, and may not be clear, detailed or consistent in her or his chronology of the events in question: see *M.A.B. v. M.G.C.*, 2022 ONSC 7207 ¶ 179.

[429] For these and other reasons, the Court must be aware of myths and stereotypes surrounding family violence, and ensure that they do not infect the Court’s reasoning. Inappropriate reasoning would include finding that the wife wasn’t mistreated by the husband, for example because she didn’t leave the relationship. Or, that she may have consented to offensive treatment because she didn’t leave the relationship. Or, that she did not behave in a certain manner and therefore cannot be believed: see *Barreto v. Salema* ¶ 166; see also *Fleury v. Budd*, 2025 BCSC 2035 ¶ 383. These myths and stereotypes play no role in my analysis.

[430] Another myth that can arise in some cases, is when a trier relies on the fact that a person didn’t complain to a person in authority, or to others like family, to conclude that abuse didn’t happen: see *Barreto v. Salema* ¶ 166 (c). This is not applicable in this case before me, in that the factual foundation for the myth to even be engaged, doesn’t exist. The wife did complain to others. She called evidence about some of her complaints to others. She also told the Court about other complaints to others, but sometimes did not then call that evidence, or fully call it. I come back to the significance of the latter, below.

[431] On the other hand, while being mindful of the need to avoid inappropriate reasoning, the Court must also be mindful that the wife is not absolved of proving her claims on a balance of

probabilities. The Court must be alive to the possibility that allegations are fabricated or exaggerated: see *Barreto v. Salema* ¶ 161; see also *M.A.B. v. M.G.C* ¶ 180.

D. Analysis and Findings Respecting the Alleged Tortious Conduct

[432] The wife's evidence about the violence was of two kinds; some of it was more general in nature, of the husband's behaviour towards her over time, and some of it was of specific incidents of violence. The wife does not need to prove specific incidents to make out the torts. Patterns of conduct can be relied upon also: see *Ahluwalia v. Ahluwalia* ¶ 73-91. Because she called both kinds of evidence, I address both.

[433] Having considered all the evidence, I accept that the husband mistreated the wife during this relationship, and after it. He even admitted some bad behaviour. The wife mistreated the husband too; specific examples of her mistreatment of him also follow. Insofar as the wife's tort claims are concerned though, I am left questioning at the end of this trial what happened. The wife's evidence both about the patterns and about the specific incidents consisted of her oral and affidavit evidence, and some prior statements to others. Yet there are inconsistencies in the evidence, including even within the supposedly prior consistent statements. There is at least one significant omission respecting an incident of violence that the wife said happened in 2015. The wife failed to conduct a fulsome cross-examination of the husband about his alleged behaviour. The wife made allegations that she did not prove. The wife's closing submissions list a series of facts she wants the Court to find, without putting those facts into the applicable tort frameworks. She provided very little guidance about the quantification of damages in her written submissions.

[434] The wife bears the onus here. For these reasons, the wife has not met it. Her claim for damages based on three intentional torts fails. I will now explain why I have come to these conclusions, more specifically.

E. The General Evidence or Patterns of Violence, and the Husband's Responses to It

[435] At ¶ 3 of her trial affidavit, the wife framed the family violence that she says occurred during this relationship as follows:

I want to say that the abuse I have experienced has been pervasive and all encompassing. It has run the gamut from physical abuse, emotional abuse, threats to my health and safety, and financial abuse, including leaving me struggling with very little at the date of separation. [The husband] was my sole source of financial support, and the breakdown of

the relationship has devastated me financially, including to the point I had to sell most household and sentimental items I owned simply to ensure I had some money to survive.

[436] Beginning at ¶ 90 of her trial affidavit, the wife says that the physical abuse was significant, such as choking, kicking, and punching, in addition to verbal abuse, psychological abuse, threats to her life and sexual abuse, without discussing specific incidents. She says these were part of a pattern of ongoing intimidation, degradation and control that existed throughout the relationship and after the separation. At ¶ 96, the wife says that the strangling occurred often, to the point where she almost passed out.

[437] The husband's response to all this, was to "vehemently" deny it. The husband's view, for example, at ¶ 109 of his trial affidavit for example, was that this was a "very toxic relationship". He said, "[a]ny periods in which we were separated would be framed as cheating. If I simply chose not to answer my phone and engage in an argument with her, she would accuse me of neglecting and abusing her".

[438] At ¶ 111-113 of his trial affidavit (and during his in court testimony), the husband specifically denies that he "hit, choked, kicked or punched" the wife. He says he believes that these claims were often fabricated at times, when he and the wife were having relationship issues, or when the wife was being cautioned or charged by the police.

[439] The husband says that the wife was often physically and verbally aggressive towards him during the relationship, and her violence included slapping, punching, and scratching him, pulling his hair, and spitting. He says he would put his hand up or push the wife off him, in defense. He says that the wife was verbally abusive, often in the form of body shaming.

F. Whether the Husband Engaged In "Gaslighting" Behaviour In Mounting His Defense

[440] As can be seen, part of the husband's defense is that he was not the aggressor, but rather the victim of the wife's violence towards him. I considered whether this wasn't a form of "gaslighting" behaviour, and whether in the process, the husband was trying to mislead or deceive the Court about what happened, through portraying himself as the victim. I considered gaslighting

because of his claim that the wife made up reports of abuse in a retaliatory way, or when it was convenient to do so.

[441] At ¶ 158-159 of *Barreto v. Salema*, Vella J. described gaslighting as follows:

[158] “Gaslighting” is a type of pervasive behaviour in which the perpetrator artificially creates scenarios, the objective of which is to convince the victim that he/she/they are crazy. The aim is to have the victim question their perception of reality. According to the Cambridge Dictionary (Online version), gaslighting is a noun that means: “the action of tricking or controlling someone by making them believe things that are not true, especially by suggesting that they may be mentally ill.” The dictionary describes gaslighting as a form of psychological abuse.

[159] According to the Meriam Webster dictionary, gaslighting is defined as the “psychological manipulation of a person usually over an extended period of time that causes the victim to question the validity of their own thoughts, perception of reality, or memories and typically leads to confusion, loss of confidence and self esteem, uncertainty of one’s emotional or mental stability, and a dependency on the perpetrator”.

[442] At the same time, I have no hesitation in agreeing with the husband that this was a toxic relationship. There is also evidence that corroborates the husband’s account, that he was the victim of the wife’s mistreatment, and even violence, at certain times. For example, two of the husband’s witnesses gave evidence that they saw the wife mistreat the husband. One of the husband’s witnesses saw the wife be physical with the husband at 45 Dunfield Avenue.

[443] The wife engaged in voluminous, bothersome and abusive written communications directed at the husband too, as the husband said. The wife was charged with harassment and extortion in around May of 2016. The fact of those charges is corroborated in several of the police occurrence reports, filed. While the wife says that this happened at the behest of the husband’s parents, and the husband, his use of the police was part of his abuse, the charges were resolved by way of a peace bond in November of 2016, and the complaint was overall a false one, I am not persuaded of that. I was directed during the wife’s cross-examination, to several pieces of evidence showing the wife engaging in bothersome behaviour of a harassing nature, towards the husband, and others affiliated with him. And this just didn’t happen in May 2016; it happened several times in multiple different years.

[444] For example:

- (a) In September of 2011, the husband's friend, A.K. called the police because the husband tried to break up with the wife, and the wife started calling A.K. "non-stop" to get the husband to answer. The police occurrence report states that the wife called him approximately 100 times. According to the occurrence report, the wife admitted to calling A.K. The police cautioned the wife on this occasion. When questioned about this, the wife said that she had "already taken responsibility" (whatever that means) and she was panicking;
- (b) The police occurrence reports related to the 2016 harassment and extortion charges, refer to the fact that the wife had been making voluminous contacts with the husband and his parents. In the police officer's view, there was some basis to charge her;
- (c) I was directed to literally pages, and pages, and pages of text messages that the wife sent the husband (hundreds of pages to be precise) in different exhibits, as well as responses from him, between May 15, 2021 and January 27, 2023 (located at Exhibits 33 and 44). Not each and every one was referred to, but the volume of these messages in itself is notable. Once again, the wife testified that she "assumed" these were messages of her "panicking", after the husband said he would cut her off financially. Notably, the wife referred to the husband as "flubbertits" repeatedly in these messages (i.e. a form of body shaming, as the husband and his witness H.A. said had occurred);
- (d) I was referred to even more messages, elsewhere in the record. In an email to the husband dated November 19, 2022, the wife told the husband that he was a "fat hairy pathetic man miserable piece of shit keep wasting my time flubbertits". When the husband responded and said that is why he was not taking her calls or responding to her emails, she then sent him a barrage of messages on November 27, 2022, that said "Respond You cheating fat fuck";
- (e) Included in these messages are communications about the stroke that the husband testified that he suffered from, in 2000. The husband said that after his stroke, he tried to improve his health, by starting to do things like more exercise. He testified that the wife took serious offense to this, and barraged him with emails or text

messages. He said she would ridicule him that he was a “stroke victim”, including when he was proud of himself for having lost weight or exercised. The husband testified about how some time after his stroke, he posted on social media a picture of himself from when he had been in the hospital. The wife wanted the husband to take the post down. He showed me her text messages to him. On June 24, 2021, the wife sent the husband innumerable messages, saying things like:

- Take it down now Flubbertits (she said this several times, repeatedly);
- I’m calling your office (she said this several times, repeatedly);
- Now!!!! (she said this several times, repeatedly);
- Take the post down now (she said this several times, repeatedly);
- You did not take them all down take it down now; and
- There is even one message, that says “The way you have abused me since your stroke I hope God repays you”.

[445] By contrast, the husband’s responses to these messages during this particular incident, were few and far between, and short and to the point, telling the wife to stop messaging and calling him, and that he was at work.

[446] The husband testified that when the wife had these blow ups at him, she was overpowering. This is patently obvious. He said she would threaten to shut his company down, or his phone, or his employees. This upset him as he felt she knew how much his job meant to him.

[447] The husband agreed that he reacted to the wife’s messages, sometimes by getting frustrated, and otherwise by just missing her calls and emails. He admitted to having said hurtful things to the wife too, that he was not proud of. But the husband also said that these exchanges with the wife made him feel less than human, demeaned and “like trash”. He said he felt his soul was gone.

[448] The husband’s friend, H.A. deposed in her trial affidavit, that she heard the wife call him vile names and body shame him. In addition to the fact that H.A. testified as to this, I read the wife doing this myself.

[449] The parties consented at the end of this trial to a mutual conduct Order. Had they not consented, I may have been asked to make a restraining Order or a conduct Order, and I would have considered making it mutual myself.

[450] But just because the wife behaved badly, or just because the husband may have also been the victim of violence from her, doesn't in itself mean that he was not violent towards her.

G. The Wife Asked Very Few Questions of the Husband in Cross-Examination

[451] However, as the husband's counsel then argued, the wife's side also chose to ask very few questions of the husband in cross-examination about her allegations. On the one hand, the failure to cross-examine a witness at all, or on a specific issue, may support an inference that the opposing party accepts the other's evidence in entirety or at least on the specific point: see *R. v. Quansah*, 2015 ONCA 237 ¶ 79. But I know the wife's account of the violence in the relationship is quite different from the husband's and neither accepts the other's account. And the wife as the applicant, called her case first. The husband had an opportunity to review her trial affidavit prior to trial, and he then had an opportunity to hear her testimony before he entered the witness box. In these circumstances, if the failure to cross-examine still engaged the rule in *Browne v. Dunn*, I considered whether perhaps the rule was violated in a less offensive way.

[452] Upon further reflection, I was left at the end of the trial, not having heard or seen fully how the husband would stand up in cross-examination about a number of the allegations against him. The concerns about fairness to the trier of fact in *R. v. Quansah* at ¶ 77(iii) are still engaged here.

H. Analysis, Findings and Conclusions About the Specific Incidents of Violence that the Wife Alleged

[453] In this additional context and backdrop, I will now address the wife's evidence of the specific incidents of violence she says occurred in chronological order and I explain how I am treating the evidence.

(1) The Hilton Garden Inn Incident in 2004

[454] In her trial affidavit, the wife says that the parties spent the evening at a Hilton Garden View Inn on January 21, 2004, to celebrate her birthday. She says she walked into the bathroom and found the husband doing heroin. She says he became enraged and punched her in the face

with a closed fist. She says she went to sit in the car while the husband calmed down, because she had no where else to go.

[455] The husband did not specifically address this in his trial affidavit. Neither party addressed it in her and his oral testimony either, including in cross-examination. I note that the wife said this incident happened at a time when she did not account for her, or the couple's whereabouts, in her historical account of the parties' residential arrangements. Cumulatively, these deficiencies in the presentation of this evidence did not assist the Court discharge its job to make findings of fact.

(2) The August 2007 Incident at 4 Latimour

[456] In her trial affidavit, the wife says that the husband was physically violent towards her in 2007, and he was criminally charged with assault. She explains that the parties were supposed to go out for the day, but got into an argument. The wife says the husband started to gather clumps of lint and cat hair and throw it into her purse. I don't have a good understanding from the account about why he was doing this. In any event, the wife said asked the husband to stop, but he ignored her, so she tried to grab her bag. In court, the wife testified that she "smacked" the husband on the arm, to get him to stop.

[457] In her trial affidavit, the wife says the husband became enraged, grabbed her by the throat and did not let go, despite her screaming. She says that the husband let her go when she said she was going to call his father. During this trial, the wife made reference to the husband's father as a moderating influence or as a protective factor, saying that she could call him when she needed help to de-escalate the husband's violence. She said his father had told her to call him if he assaulted her.

[458] In her trial affidavit, the wife says the husband retaliated by saying he was going to call the police on her, which he knew was a trigger for her. The wife says the husband slammed the kitchen door on her hand, when she tried to enter the kitchen, as he was calling the police. During her in court testimony, she said that this made her nail fall off, and she was "gushing blood". The husband then got arrested when the police arrived.

[459] The wife says that she did not later testify out of fear, and the criminal charges were dropped. She made reference to a DVD of her "testimony" though, which I understood to mean a recorded statement she made to the police. She said that she was back with the husband "within 24 hours", even though there was a "restraining order" in place.

[460] The husband's account of this incident, in his trial affidavit, is that it happened when he was living at 4 Latimer, and when the wife would visit him. He says they had several arguments, to the point that neighbours made noise complaints. The two had one of their arguments on August 19, 2007, that escalated to the point of police involvement. It is agreed that he is the one who called the police.

[461] The husband's specific defense regarding this incident, was the wife was the aggressive one, and she tried to charge at him. He closed the door to protect himself. I gather that is how her nail broke, according to him.

[462] The husband says in his trial affidavit that the wife admitted to the police that she had hit him, and then alleged that he had "put [his] hands around her neck, but she had no bruises and she said "it did not hurt". Later in his trial affidavit, the husband says that in her witness interview with the Toronto Police, the wife admitted to having hit him, and that he was the only person with marks. He says that she told the police that he did not grab her throat hard or leave a mark.

[463] The following challenges present in the evidence about this incident:

- (a) Both sides made reference to the wife's KGB Statement to the police, but it was not played for the court, or drawn to my attention in some other format, such as a transcript. It seems there is a link to the video in the wife's Exhibit Book, but neither side sought to introduce it, play it, or ask questions about it, notwithstanding that both referred to it. This may or may not have tipped the scales in the assessment of the evidence, but I don't know because it wasn't introduced;
- (b) The husband's criminal charges were apparently resolved by way of a peace bond. While the wife said it was because she was afraid to testify, I was not given the peace bond, or any evidence of what happened at the time the peace bond was entered into. I do not know what submissions were made to the Court when the charges were withdrawn and the peace bond agreed to;
- (c) The husband's father was not called to testify at the trial even though the wife made reference to him more than once, as a person she called for help; and
- (d) I have already found that both parties made untrue statements about what was going on at the time of these charges, specifically about how quickly they got back together after

the charges, in violation of the husband's release terms, or about whether they were living together.

[464] In conclusion, there are at least two, and possibly more possibilities on this evidence as to what happened. One is the husband attacked the wife as alleged. The other is the husband went into the kitchen to remove himself from the situation, and damaged the wife's finger in the process of fleeing her. Maybe something else happened. I don't know what the charging decision that was made. The KGB statement although referred to differently by both parties, wasn't introduced. I don't really know why a decision was made for there to be a peace bond. I don't know what the husband's father has to say. The wife has not proven battery on a balance of probabilities regarding this incident.

(3) The Alleged Damage to the Wife's Property

[465] In her trial affidavit, the wife says that the husband threatened to destroy her belongings when angry, and there were "many occasions" when she came home to find "entire rooms had been trashed, or [her] personal belongings torn or destroyed" by the husband. She says one of these incidents occurred on July 21, 2014 and she sent a photograph to the husband's father.

[466] The husband denies that he destroyed the wife's belongings in his trial affidavit. His response to this allegation, is the wife staged the photograph. In cross-examination, he said that he couldn't remember the exact incident, other than the fact that he did not destroy the items in question.

[467] In this instance, unless it was actually "staged", the photograph is stronger evidence that this destruction of property incident occurred. The wife not only took a photograph, but sent it to the husband's father by text message, with a note saying that the husband had "crash[ed]" and "raged" due to taking Percocet, and that he needed help.

[468] But once again, this evidence is incomplete. Not all of the text exchange with the husband's father is included. For example, the husband's father wrote to the wife the next day "Neither you nor Jonathan are answering your phones despite..."; the rest of text message was cut off in the exhibit. I didn't hear evidence about the Percocets. The husband's father, who was said to be a recipient of a text message from the wife documenting this, was not called as a witness to testify about what happened on this occasion, or how he responded. Given the text message that the wife reached out to him for support on this occasion, he likely would have had evidence about what he

had been told happened this time, and how he handled it. I also wasn't specifically told where the wife would have this incident of destruction of property fit within the torts frameworks.

(4) The January 2015 Assault and the Wife's Pregnancy

[469] This alleged incident is significant and is troubling both in its description, but also from an evidentiary point of view. There is a significant omission, and inconsistencies, in the evidence about what happened on this occasion.

[470] In her trial affidavit, the wife says that there was a serious incident of violence that occurred in January 2015, during which the husband physically attacked her while she was pregnant. She says that she and the husband had plans to go to the husband's brother's house for the weekend. She says that husband was out somewhere, but she asked him to come home and pick her up on the way. She says he refused, and told her to drive herself. She says that when she insisted otherwise, he became enraged. She says he came back to the house and burst through the front door, ran up the stairs, pushed her and started kicking her in the back, stomach and side. The wife says she managed to run to the bathroom, where he attacked her a second time. She says he grabbed her by the neck and strangled her until she almost passed out. Her in court testimony about the circumstances of the violence was similar.

[471] In her trial affidavit, the wife says that a few days after this incident occurred, she went to her doctor for a routine check up on February 3, 2015, to monitor the progression of her pregnancy. The wife says she learned that the fetus no longer had a heartbeat. She says that she was told the baby was "absent cardiac activity".

[472] In his trial affidavit, the husband "vehemently den[ies] these claims that he assaulted [the wife] while she was pregnant". He says that he did not choke her, and alleges that she fabricated these claims later on, around the time she was being cautioned and charged for criminal harassment. Later on in his trial affidavit at ¶ 116, he added that the wife fabricated the allegation around the time he left her for another woman.

[473] During the trial, I was referred to a note in the wife's medical chart dated January 7, 2015. The note documents that the wife had called the clinic looking for a Plan B emergency contraceptive pill on January 7, 2015, as she was 72 hours post intercourse. In a later counselling note of Tania Correa, dated February 3, 2015 there is reference to the wife's LNMP ("last normal

menstrual period”) having occurred on January 1. There is then mention of a positive pregnancy test, and a discussion about the wife keeping the baby versus a “TA” (therapeutic abortion).

[474] There is mention of the wife being in “abusive relationship w/ fiancé”, but the note says that that the “fiancé currently away on business”. There is no reference to an assault on January 15, 2015, as has been claimed in the trial affidavit. The wife also admitted to “frequent infidelity” in this note. And after that discussion, the wife said that she wanted the abortion.

[475] The next note to which I was referred was from February 20, 2015 was of someone else at the clinic named Cristin Thomas. In this note, there is now a report that the wife was pregnant despite taking plan B, that she had an ultrasound, she was unaware that there was no heartbeat, and she had a therapeutic abortion. The February 20, 2015 note also says that the wife had a potential new partner, so she may be ready to leave the husband soon.

[476] It was not until closing submissions, that I was directed to another health note of October 13, 2016 of nurse practitioner Tania Correa, from a year later, in which the wife said that physical violence occurred at the time of the pregnancy. The timing of this specific report came after the wife’s harassment charges as the husband argued. The wife around this time was asking for a letter to use in her criminal court case.

[477] I was also then drawn in closing submissions, to a police occurrence report of January 20, 2023. This was post-separation. On that date, the police attended the wife’s home as the wife was having a panic attack related to the level of financial assistance being provided to her post-separation. To the police on January 20, 2023, the wife referred back to this incident, which she said happened in February of 2016, not in January of 2015. Then, she linked the loss of the pregnancy to a physical attack, again.

[478] There are some challenges with this evidence too, namely:

- (a) I have instructed myself, again, to be cautious with this evidence about what the wife did and didn’t report at the time. For example, one possibility is that she didn’t report all of the details of the violence that had happened based on a trauma response, embarrassment, or something else;
- (b) Yet even in the 2015 notes, there is mention of the abusive relationship. The nature of the relationship was being discussed. In that context, I am left not knowing why the details of the incident are not described, as opposed to a general use of the word “abusive”. There

is also the mention of the husband not even being in town, but rather being away for work, around the time that the attack is said to have occurred. I am left not knowing if he was physically present at the time;

- (c) A different possibility, arising out of the fact that the first specific link in the records, between the loss of the pregnancy and physical violence, only came through the wife a year later, could be the husband's theory that this claim was made after the wife was charged; and
- (d) It would have been helpful to have heard from the nurse practitioner Ms. Correa. She could have filled in these gaps and help resolve the factual dispute. But she was not called to testify as to what was discussed at the time, or even a year later. She could have explained to the Court whether the wife reported physical violence at the time of the pregnancy and whether her note was just devoid of detail for some reason, or whether the pregnancy discussion in 2015 focused on something else, which may be inferred from the way the notes are written.

[479] Similarly, the wife testified she sought services from Yellow Brick House, the Barbara Shleiffer Clinic, and Luke's Place. The wife testified that she went to Yellow Brick House in May of 2015, about three months after the assault she experienced when pregnant. She didn't call any admissible evidence from Yellow Brick House as to what was reported in May of 2015, but I know a report of something was made at the time given the wife said so.

[480] I do not find the wife's account of what happened in January of 2015 to be reliable in these circumstances. I do not know what happened. I do not know where the husband was. I do not find there was a battery on a balance of probabilities on this occasion. Nor does that mean I can find that physical violence caused the loss of the pregnancy.

(5) The Choking Incident in 2021 or 2022

[481] In her trial affidavit, the wife says that at the end of 2021, or the beginning of 2022, the husband barged into the bathroom while she was taking a bath, grabbed her by the neck, and started hitting her. She says these incidents happened so often that she doesn't remember what brought on the assault, but it happened frequently. The husband says that the wife in April of 2021, told the York Regional Police that he had never been physically abusive to her. I address this particular note in more detail below. But I am once again left wondering what happened here. It may be

that there were reasons the wife told the police that the husband was never physically abusive to her. It may also be that the wife was being truthful with the police.

(6) The Husband's Alleged Threat to Murder the Wife

[482] In her trial affidavit, the wife says that on March 2, 2021, the two got into an argument about the company laptop that she had been provided with, during the brief time that she worked for the husband's company. The wife recorded the conversation, and says the husband threatened to kill her.

[483] The wife testified about the circumstances behind her making this recording. She said that the husband was making threats, engaging in violence, and he had become out of control. She said she didn't think that he was able to go one day, "without uttering threats or being violent". She said she pulled out her phone and started recording the husband. The wife added that she didn't have others like this, because she wasn't regularly recording, and it was a "fluke" that she captured this.

[484] The wife played the recording in Court. At ¶ 105 of her trial affidavit, she excerpts only part of the recording as follows:

JR: "If he gets exposed to it, there won't be us. That's it. I don't know if there will be a you."

MN: "There is no us as long as you have temper like this"

JR: "I don't know if there will be you."

MN: "You're going to murder me?"

JR: "I don't know... what I'll do. But I'll tell you I won't be happy."

[485] When giving evidence about this relationship, the husband conceded that he may have lashed out verbally at the wife, as he was being pushed "incessantly" by her. He does not deny in his trial affidavit that he yelled at the wife, called her names, or sent angry text messages. But he says that he never threatened to kill or harm her.

[486] There was an initial objection to the introduction of this recording into evidence, that the husband's counsel then withdrew. His withdrawal of the objection is not dispositive of the weight that the Court will ascribe to this evidence.

[487] At ¶ 167 of *Sethi v. Kaur*, 2025 ONSC 5760, Justice Seema Jain had before her in the evidence, a video had been admitted on consent. Despite that, citing *Van Ruyven v. Van Ruyven*, 2021 ONSC 5963, she held that she retained discretion about how to treat the evidence when the evidence's probative value outweighed the strong policy against its admission. To this I would add that for a recording to be admitted into evidence (or once admitted, for it to be useful) it must accurately depict facts, there must be an absence of any intention to mislead, and the recording has to be verified by its maker: see *Rodger v. Strop*, 1992 CarswellOnt 386 (Gen. Div.); see also *Webster v. Suteu*, 2015 ONCJ 538 ¶ 44. That was in essence the husband's counsel's objection, that the recording needs to be complete, and by extension not misleading. And the recording was incomplete.

[488] As the recording went into evidence on consent, I listened to it. The wife started recording in the middle of an argument that was clearly already in progress. I didn't hear the first part of the argument, because it wasn't recorded. While the husband had a raised voice and was clearly upset, the recording that I was given does not document a physical interaction between the two. It does not prove battery. Regarding whether this exchange rises to the level of an assault, or whether it is relevant to the wife's intentional infliction of emotional distress claim, I accept that the husband was very clearly upset about something that had happened before. He perceived the wife to be interfering with his work. I accept the wife was impacted by this argument.

[489] But it was the wife who uttered the word "murder". During the trial, the husband says he was speaking about terminating the relationship, not harming the wife. I do not know given the incompleteness of the tape if there has been some taking of this incomplete recording out of context here.

I. The Wife's Prior Consistent (and Inconsistent) Reports to Others

[490] I have considered how to address the evidence of the wife's prior complains to others that I was pointed to during the testimony, or later in the written closing submissions.

[491] Prior consistent statements are not generally admissible for the truth of their contents, unless for example they are contained in an admissible business record. This evidence is normally used in aid of rehabilitating credibility, for example to rebut claims of recent fabrication. When

credibility is rehabilitated, the Court must still decide what happened based on the evidence that is admissible for its truth: see S. Lederman, A. Bryant and M. Fuerst, “Sopinka, Lederman & Bryant: The Law of Evidence in Canada”, 5th ed. (Toronto, LexisNexis: 2018) (“Sopinka”) ¶ 7.4 to 7.30, pages 431-440; see also D. Paciocco and L. Struesser, “The Law of Evidence”, 7th ed. (Toronto, Irwin Law Inc.: 2015) (“Paciocco”) ¶ 4.3, 4.5, pages 531-536.

[492] As the husband has alleged recent fabrication, I am prepared to consider the wife’s prior statements to others in this context. I have already done so when addressing some of the specific incidents of violence that the wife alleged, but I do so again here in general, for completeness. Adding to the complexity of this analysis though, is the fact that some of the supposed prior consistent statements were premised on facts that I have not found. Some are not contemporaneous reports. There are also even inconsistencies within the supposedly prior consistent statements.

[493] For example, first, Dr. Swensen gave oral and written evidence about the wife’s reports of abuse. However the factual underpinning of some of what Dr. Swensen understood from the wife to be so, was not proven at this trial. For instance, Dr. Swensen wrote in one of her letters, about abuse that occurred during times the parties lived together, but some of that was her recounting what the wife told her about the past. I have now found that the parties were not then living together.

[494] Second, Dr. Swensen was asked about the frequency of the wife’s reports to her. Dr. Swensen testified that the reports were most heightened when she was being followed more closely by the nurse practitioner (Ms. Correa). Dr. Swensen said that she talked to the wife more about “past abuse”. In other words, some of the evidence that the wife elicited from Dr. Swensen, was to confirm that the wife made prior, but more contemporaneous reports, to someone else, who was not called to testify.

[495] Third, I have already addressed the wife’s failure to call Ms. Correa, when addressing the 2015 incident, above. But in this vein, during the oral testimony during trial proper, I was actually pointed to very few entries of prior consistent statements in the wife’s health records by the wife. Both counsel then made references to others in their closing submissions. A number of those notes make reference to “abuse” in general, or to verbal or emotional, but not physical abuse. Some others do make reference to physical abuse generally; and others particularly after the 2016 charges, are more specific complaints of violence. But most of the health records referred to were authored by Ms. Correa, Ms. Martin, Ms. Thomas, or perhaps another nurse practitioner, none of

whom were called to elaborate and explain what their notes meant, where a note that was lacking in detail and called for an explanation or elaboration.

[496] Fourth, there are inconsistencies within the prior statements, over time. For example, there is an early 2012 report of the husband grabbing the wife. Several months later, in June of 2012, when the wife was upset with her mother she reported the husband was “very supportive and good to her”, a similar statement she would report again several more months after that. There several references to physical abuse in 2016, some of which as I have said are more detailed and specific, after the criminal charges.

[497] There is a reference in a health note of May 31, 2021, to the husband “continuing” to be “abusive” after his stroke in 2020. Meanwhile, I was specifically referred during the trial, to written messages between the parties sent on March 25, 2021, two months earlier. On that day, the wife wrote:

You never yelled at me or were abusive or unsupportive before you had a stroke and all the sudden now I have to deal with getting screamed out every day. I am not interested.

[498] The wife was specifically asked in cross-examination, about the inconsistency between her written message of March 25, 2021 (that the husband had not been abusive before his 2020 stroke) and her claim that the husband was abusive throughout the relationship. The wife said that what she meant, was that after the marriage (in 2017), the husband was fine, but then he could not control his emotions again, after his stroke. This stands in contrast to what the written communication says though, and in contrast to other statements the wife made, that his conduct was pervasive throughout.

[499] There is the statement to the police on April 7, 2021, that I alluded to above. To the police on this occasion the wife described the husband’s behaviour as having been different after the stroke (i.e. losing his temper more frequently and easily), but she also said the husband had “never been physically abusive and that it was just emotional”. This is another inconsistency.

[500] Then on January 20, 2023, when the wife called the police during her panic attack, she wife apparently told the police that the husband had assaulted her between 7 and 15 times throughout their relationship, which included at the time of the pregnancy in 2016, not 2015 as indicated.

[501] The husband next pointed out to the Court his “serious concern”, that he was almost arrested and charged with assault in March of 2023. He notes that the police discontinued that

particular investigation when the wife asked them to “pause” to see if she could obtain spousal support. If she obtained support, she did not want the husband charged, but if not, she wanted to revive the charge. I will repeat this note of March 2, 2023 verbatim. It says:

On March 2, 2023, Grewal spoke to [the wife] to further investigate the utterances of assault as well as schedule an interview. [The wife] stated that she was upset with her ex-husband as he impregnated another woman and left her to be with this woman. [The wife] does not work or have any money and [the husband] stopped paying rent for their apartment. Based on the above factors [the wife] had a panic attack on the day in question.

When asked about the utterances regarding historical assaults, [the wife] would not provide any details or clarify any further. [The wife] states she had recently hired a divorce lawyer and she was actively seeking spousal support from [the husband]. [The wife] asked Grewal to pause the investigation until she knew if she would receive spousal support and then resume it should spousal support not be rewarded. It was explained to [the wife] that the spousal support hearing cannot dictate the course of the investigation.

[The wife] stated she did not wish to provide a statement or provide any details of past incidents to the police. [The wife] advised should any future incidents occur she would then contact the police.

J. The Wife Made Allegations that She Did Not Prove

[502] The wife made allegations that she did not prove, and exaggerated other evidence relating to violence allegations. One example of this, concerned what she said in her Application, compared to the evidence I heard at trial. In her Application, the wife claimed that the husband had a handgun, obtained around the time of the Covid-19 pandemic, and which still existed at the time of the separation. The husband denied this, and gave some context about considering obtaining a license in his Answer.

[503] The wife did not call any evidence to prove that the husband obtained a handgun in around 2020, or that he had one around the time of the separation. There is a passing reference to “owning firearms” in her trial affidavit. At trial I heard a different allegation from her too, that there were firearms stolen at the time of the armed robbery incident in early 2003. The wife also made reference to weapons in a health record in October of 2016.

[504] If a gun actually existed, then that may have an indicator in support of finding the wife experienced “the apprehension of harmful or offensive contact”, for the purposes of her tort of assault claim. But the gun was not proven.

[505] Another example of allegations not proven, included that the wife accused the husband of sexual abuse. She didn’t call any evidence to establish that. She accused the husband was using sex workers, also unproven.

K. Whether The Wife’s Unproven Claims of Financial Abuse, and The Husband’s Post-Separation Conduct, Ground Her Claim for Intention Infliction of Emotional Distress

[506] The wife alleged that there was financial abuse during the relationship and the marriage itself. She did not prove financial abuse during the relationship. Unproven allegations cannot ground tort claims.

[507] Much of the wife’s claim for damages for intentional infliction of emotional distress seems to turn on the husband’s post-separation treatment of her, specifically cutting off her access to bank accounts, and not complying with the Court Order. It is true that after the separation, the husband engaged in some problematic financial behaviour. But for example, at ¶ 147 of *D.B. v. M.K.*, 2023 NBKN 223, Boudreau-Dumas J. found that the failure to pay child support was not “flagrant and outrageous conduct calculated to produce harm” for the purpose of the intentional infliction of emotional distress tort. There may very well be a *Frame v. Smith* problem with arguing that the non-payment of support for example, can ground this tort. Neither side argued this either.

[508] Ignoring the Court’s findings that the wife exaggerated somewhat, and assuming for a moment (without needing to decide), that the facts the wife has proven about the husband’s post-separation conduct can ground this tort, the wife has statutory remedies here to address this particular harm that I am awarding in the circumstances of this case: see *Ahluwalia v. Ahluwalia* ¶ 39-46, 136-141.

[509] The Court is ordering a spousal support award that is front end loaded. It is choosing not to order a termination, in favour of a review. I am making certain orders for health benefits, which also address the complaints about the husband’s post-separation behaviour related to health benefits (not all of which I found to have occurred as alleged). The wife intends to raise the husband’s bad behaviour under rule 1(8) of the *Family Law Rules* when it comes to costs. She can do so if she wishes.

L. Contributory Fault or Apportionment

[510] Finally there would be an issue with contributory fault or apportionment in this case had I found damages to be warranted: see for example “Canadian Tort Law” pp. 101-103; see also *Barreto v. Salema* ¶ 428. Had I found any of the torts were made out, I would not have been satisfied that the husband was entirely responsible for the impact on the wife’s mental health. I did not hear submissions about how to apportion fault in this case.

M. Summary and Conclusions

[511] For those reasons, the wife’s tort claims are dismissed.

PART VIII: OTHER ISSUES

[512] The parties did not call the evidence needed for me to complete the divorce. As such, I will sever the divorce. The wife, as the Applicant, can complete the divorce on an uncontested basis.

[513] There was a complaint raised about whether there would be cooperation in obtaining a Ghet for some reason. I was then immediately told there is no issue. The parties agreed to cooperate. This is already noted in my trial Endorsement of November 27, 2025.

[514] The wife claimed a restraining order under the *Family Law Act*, which I referred to earlier. It was not pursued at trial. The parties instead agreed that there should be restrictions on their contact with each other. I already made a without prejudice order on November 25, 2025, that neither would go to the other’s residence, when the husband testified as to his current address. The parties were to each give me proposed language for a final conduct Order with their closing submissions. I am prepared to make a mutual conduct order, with their general consent, although the terms that I am imposing were not necessarily all agreed to. I rely on section 47.1 of the *Family Law Act*, when making the conduct Order.

[515] The parties each asked for confidentiality orders, specifically that this Judgment use initials, and that certain exhibits be sealed. I already noted this request in my trial endorsement of November 27, 2025. I am prepared to accede to this request. The evidence in this matter, and some of the exhibits specifically, contain sensitive details about the parties’ histories of trauma and their mental health difficulties. The wife also turned over a large swath of her health records. Although counsel apparently entered into some form of out of court confidentiality agreement

about that, the health records are nevertheless now filed with the Court, and in evidence. The husband introduced records of his own struggles too, including the involvement of JF&CS and even a record that made reference to suicide.

[516] Privacy interests may in some cases constitute an important public interest warranting limits on openness. There is sensitive information in the records about mental health. This case involves two litigants with current and/or past mental health challenges. These circumstances warrant a limited confidentiality order: see *Kirby v. Woods*, 2025 ONCA 437 ¶ 17; see *W.A.C. v. C.V.F.*, 2021 ONSC 6894 ¶ 172, 173.

[517] I have considered the need to give notice to the media: see *Kirby v. Woods* ¶ 25-26. Given the limited restrictions being imposed and the likely lack of any public interest in this case or the parties' identities, I will dispense with that requirement: see *W.A.C. v. C.V.F.*, 2021 ONSC 6894 ¶ 270. If I am mistaken, an interested member of the media can apply to the Court on notice to the parties, to ask to have the confidentiality order varied.

PART IX: ORDERS

[518] I make the following final Orders:

Pursuant to the Family Law Act:

Equalization, Post-Separation Adjustments and Set-Off

- (a) The wife shall pay to the husband an equalization payment of \$973.70;
- (b) The wife's equalization payment owing to the husband shall be set off against the post-separation adjustments that the husband owes the wife, in the amount of \$14,364.63;
- (c) Therefore, the husband shall pay to the wife the sum of \$13,390.93, which is the husband's post-separation adjustments owing to the wife, net of the equalization payment that she owes him, above (i.e. \$14,364.63 - \$973.70 = \$13,390.93);

Conduct Order

- (d) Pursuant to section 47.1 of the *Family Law Act*, neither party shall attend at the other's residence or place of employment, or have direct written contact with the other party, without his or her express written consent. Neither person shall speak ill or criticize the

other person to her or him directly, or in a public forum, or to a third person privately if the message may be relayed to the other person by the third person. To be clear, this clause does not prevent either party from accessing therapy or mental health treatment and having candid discussions in that context;

- (e) The restriction on direct written contact in the previous paragraph does not include sending any necessary communications to implement aspects of this Judgment. For example, neither party is prohibited from communicating in writing about such matters like the payment of support, the default of any term of this Order, the sharing of health benefits and related documentation, the payment of reimbursed insurable amounts, or the implementation or enforcement of life insurance. If there is any direct communication about these kinds of matters, the communication shall be brief and cordial, minimal in volume (i.e. only as necessary), and restricted to implementing the terms of this Judgment only, without containing any insulting or offensive remarks. Any requests shall be answered promptly, within 48 hours. Repetitive written communications about the same subject matter, or one party demanding a response from the other after a response has been given, are prohibited. If there is any non-compliance with a term in this Judgment and an unsatisfactory response is given from the other side, then other enforcement tools will have to be pursued;
- (f) In addition, either person may also send a third party to the other's home, place of work, or other places he or she may be for the purposes of delivering court documents if necessary, for the purposes of any future court proceedings or enforcement matters;

Pursuant to the Divorce Act

Completing the Divorce

- (g) The divorce is severed from the corollary relief. The wife, as the Applicant, may complete the divorce on an uncontested basis. The husband shall cooperate, such as by filing a Notice of Withdrawal;

Retroactive Spousal Support

- (h) The temporary without prejudice Order of Daurio J. dated November 3, 2023 continues to govern spousal support for the period between November 1, 2023 and February 28, 2026. Any arrears owing to the wife under that Order continue to be due and payable. The wife's

claim for additional spousal support for a period prior to that covered by Daurio J.'s temporary without prejudice Order, or during it, is dismissed. The husband's claim that a new Order should be made effectively reducing the amount in Daurio J.'s temporary without prejudice Order dated November 3, 2023 retroactively, is also dismissed;

Prospective Spousal Support

- (i) Commencing March 1, 2026, and on the first of each month thereafter, the husband shall pay spousal support to the wife in the amount of \$4,000.00 per month;

Review in January 2028

- (j) On consent, based on the language to which the parties agreed in the Statement of Agreed Facts, either party may request a review of the husband's income commencing January 1, 2028, to determine whether \$165,000.00 remains the proper income for support purposes. The spousal support Order contained herein remains subject to a material change in circumstances, separate from this review;
- (k) The Court adds the following additional directions regarding the 2028 income review. If either party seeks to proceed with this income review, the parties shall arrange an attendance before me by 14B Motion at the time, to obtain any procedural directions that are needed, such as in aid of the determination of the husband's income, and to set a process and a date for hearing the review. I shall remain seized of the review. While the process will be set in consultation with the parties, it should proceed efficiently and summarily, if it occurs;

Review In or After March 1, 2030

- (l) On March 1, 2030 or anytime thereafter, either party may seek to review spousal support more comprehensively. The purposes of this review shall be to inquire into the wife's health and other circumstances at the time, including the steps she has taken between the release of this Judgment and the 2030 review to address her mental health and her ability to earn an income. This review will necessarily also require the determination of the husband's income and his financial circumstances;
- (m) This review cannot proceed as summarily as the potential 2028 income review. If either seeks to proceed with this review, he or she shall commence a Motion to Change and

proceed through the case management system in the normal course. The parties shall return to Daurio J. as their case management judge;

- (n) The husband's spousal support payments to the wife in the sum of \$4,000.00 shall continue pending an order of the Court otherwise in either of the reviews, or an agreement between the parties, which they shall have incorporated into a consent variation order;

Health Benefits

- (o) If the husband is able to maintain his existing health benefits for the wife after a separation or a divorce, he shall continue to do so;
- (p) If so, the wife already has a benefits card. She is able to have health care providers who are willing to do so, such as pharmacies and dentists, direct claims to the insurer for their direct reimbursement. This does not require the husband's involvement, or the wife to complete any online claims;
- (q) Within 7 days, the husband shall sign a direction to his insurance company, a copy of which shall be provided to the wife, which shall direct his insurance company to reimburse the wife directly, into an account of her own choosing, any other insurable amounts for her health care, that she pays out of pocket and then submits directly to the insurer by paper claim;
- (r) If the insurance company will not act on such a direction and reimburses the husband instead, for amounts the wife paid out of pocket, then the husband shall reimburse the wife with any insurance reimbursements he receives on her behalf, within 48 hours of receipt. He is to provide the statement showing the insurance company's calculation of the reimbursement, when he pays the wife the insurance funds he receives;
- (s) If the husband fails to do so, the wife may submit such reimbursed amounts to the Family Responsibility Office for enforcement, and any such amounts shall be enforceable as an incident of spousal support;
- (t) If the husband cannot maintain health benefits for the wife through his existing benefits plan, then he shall inquire of the insurer whether he can purchase a supplementary plan for the wife with comparable coverage through his group plan. If he can, he shall do so, provide the wife with proof of the coverage, a new card the benefits book, and similar

documentation as that set out above, as needed (but with any necessary modifications). He shall continue to maintain the new benefits plan in good standing;

- (u) If the husband takes the position that the existing benefits can no longer be maintained after the trial, the husband must provide the wife with written proof. Written proof means written proof from the insurer that he cannot maintain the benefits. That written proof is to include whether he is able to continue to maintain the wife, as opposed to his new spouse. If he is able to continue to maintain one spouse, even if it is a former spouse instead of a new spouse, he shall maintain the wife on his existing benefits in favour of designating his new spouse. Any written confirmation from the insurer shall also include confirmation that a replacement plan is not available for purchase for the wife through his group plan, if that turns out to be the case;
- (v) If the husband cannot maintain his existing benefits for the wife or purchase a new plan for the wife through his existing plan, then in tandem with providing the aforementioned written proof, commencing the first of the month after the wife's existing benefits terminate, the husband shall pay to the wife an additional sum of \$250.00 per month. This sum shall be enforced through the FRO as an incident of support. The wife can use this sum to purchase her own health insurance, or she can use the money to make direct payments for her health care;

Security for Spousal Support in the Event of Death

- (w) The husband's spousal support obligation is binding on his estate;
- (x) Within 14 days, and then continuing thereafter, the husband shall:
 - (1) purchase a policy of life insurance in the amount of \$60,000.00 on his life;
 - (2) name the wife as the irrevocable beneficiary;
 - (3) ensure that he keeps the policy in good standing;
 - (4) provide the wife proof of the coverage and of the beneficiary designation; and
 - (5) sign an irrevocable direction to the wife and to the insurer, entitling the wife to check with the insurer from time to time that the policy is in force and in good standing.

- (y) If the husband defaults on any life insurance premiums and the wife finds out about this and pays them, such amounts are enforceable as spousal support through the Family Responsibility Office;

Health Benefits and Life Insurance Are Reviewable In or After March 1, 2030

- (z) The husband's obligation to maintain health benefits, or to make \$250.00 monthly payments in lieu, and to maintain a life insurance policy in the sum of \$60,000.00, may be reviewed, in the review to occur on March 1, 2030 or thereafter;
- (aa) To be clear, the life insurance review includes both the obligation to maintain life insurance, and a review of the amount of life insurance required. The amount of life insurance required may lower than \$60,000.00 being ordered in this Judgment. Or it may be higher given the reasons above, for only being able to order \$60,000.00 at this time;

Tort Claims and Damages

- (bb) The wife's claim for damages is dismissed;

Other Orders, Including Confidentiality Terms and Costs, Pursuant to the Courts of Justice Act

- (cc) On consent, the parties shall cooperate to obtain a Ghet;
- (dd) The parties have been referred to in this Judgment by initials, on consent, but with reasons also given;
- (ee) On consent, but with reasons also given, Exhibits, 48-52 (Wife's Health Records), Exhibit 64 - page 20 (An excerpt from Police Records), and Exhibit 65 (the Husband's JF&CS Records) shall be sealed and shall not form part of the public record;
- (ff) This confidentiality Order does not prevent the Court from having described the contents of some of these records in this Judgment, to the extent that it saw fit and necessary to dispose of the issues raised during the trial. Nor does the Court's confidentiality Order prevent this Judgment from being published;
- (gg) A member of the media may apply to Court on notice to the parties, to seek to vary the Confidentiality Order if they wish and if they feel there are grounds to do so;

- (hh) The parties should try to settle costs. If they cannot, the wife as the Applicant may make written submissions in writing first. On or before March 12, 2026, she may submit up to 5 pages of costs submissions, double spaced, plus a Bill of Costs and any Offers to Settle. She may reference case law in her written submissions if she likes, but she need not supply it. A CanLii citation suffices;
- (ii) The husband's written costs submissions subject to the same restrictions on length and contents shall be submitted by April 13, 2026;
- (jj) The Court intends to deal with costs in writing, but reserves the right to invite oral submissions if necessary; and
- (kk) All other claims of both parties are dismissed.

Justice Alex Finlayson

Released: February 12, 2026

CITATION: M.N. v. J.D.R., 2026 ONSC 870

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

M.N.

Applicant

– and –

J.D.R.

Respondent

REASONS FOR JUDGMENT

Justice Alex Finlayson

Released: February 12, 2026

SCHEDULE “A”:

**NET FAMILY PROPERTY AND EQUALIZATION PAYMENT
CALCULATIONS**

	WIFE	HUSBAND
VALUATION DATE		
<i>Assets</i>		
Handbag Collection	\$14,840.00	
BMW X1	\$8,500.00	
CIBC Chequing Account	\$18,517.43	
TD Chequing	\$1.63	
Steel/Sheet Metal		\$12,000.00
2013 Dodge Ram		\$3,000.00
Scotiabank Account		\$7,993.50
Scotiabank Investment Account		\$14,449.00
Cryptocurrency		\$9,226.96
Money Owed to Husband from His Business		\$40,560.00
<i>Debts</i>		
Visa		\$8,982.96
Mastercard		\$8,237.35
Loan RE: Business		\$47,332.00
SUBTOTAL	\$41,859.06	\$22,667.15
DATE OF MARRIAGE		
<i>Assets</i>		
Handbag Collection	\$5,840.00	
2009 BMW	\$5,000.00	
Bank Accounts	\$2,389.98	

<i>Debts</i>		
Credit Card		\$4,004.54
SUBTOTAL	\$13,229.98	(\$4,004.54)
NET FAMILY PROPERTY	\$28,629.08	\$26,681.69

EQUALIZATION PAYMENT OWING FROM WIFE TO HUSBAND

\$973.70

Calculated as follows:

$(\$28,629.08 - \$26,681.69) = \$1,947.39$, divided by 2 = **\$973.70**